KNOX TRAIL MIDDLE SCHOOL

STUDENT

HANDBOOK 2026-2027

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This handbook has been prepared for students, parents and guardians to ensure that all are informed of Knox Trail Middle School expectations, policies, rules and regulations pursuant to Massachusetts General Laws Chapter 71, Section 37H and other relevant state and federal laws.

> *The school committee of every city, town, or district will publish its adopted rules or regulations pertaining to the conduct of teachers or students. Copies of the rules or regulations will be provided to any person upon request, and without cost, by the principal or headmaster of every school within each city, town, or district.*
>
> The full text of MGL Ch.71, S37 H is included in Appendix I, p. 31 of this document and by clicking on the link above.

Any supplementary student handbook material passed out separately from time to time will be treated as part of the student handbook and where appropriate will replace materials already included within this book. It will be the responsibility of individual students to be thoroughly familiar with such supplementary materials, if such are circulated, and to retain them for reference throughout the year.

Massachusetts General Laws Chapter 76 Section 5

> *Every person will have a right to attend the public schools of the town where s/he actually resides, subject to the following section. No school committee is required to enroll a person who does not actually reside in the town unless said enrollment is authorized by law or by the school committee. Any person who violates or assists in the violation of this provision may be required to remit full restitution to the town of the improperly-attended public schools. No person will be excluded from or discriminated against in admission to a public school of any town, or in obtaining the advantages, privileges and courses of study of such public school on account of race, color, sex, gender identity, religion, national origin or sexual orientation.*

All courses, activities, and services offered by Knox Trail Middle School are available without regard to race, color, sex, gender identity, religion, national origin, sexual orientation, or disability. Full text of the Spencer/East Brookfield Regional School District nondiscrimination policy in compliance with all Federal and state laws is found in Appendix II of this document, page 37. The Pupil Services Department oversees compliance. Any complaints/concerns should be directed to the Pupil Services Director at (508)885-8515.

The Spencer East Brookfield Regional Public Schools strive to provide a safe, supportive, and respectful learning environment where all students can thrive. In accordance with Massachusetts General Laws Chapter 76, § 5 and Title IX of the Education Amendments of 1972, the district does not discriminate on the basis of race, color, sex, gender identity, religion, national origin, sexual orientation, disability, pregnancy or pregnancy-related conditions, or homelessness in its educational programs, activities, admissions, or employment practices (see Appendix II).

The school district does not tolerate any form of discrimination, bias-based intimidation, harassment, or retaliation against any community member.

MISSION STATEMENT

Knox Trail Middle School engages all students through a challenging academic program to be life-long learners and responsible citizens. We provide students with the opportunity to achieve personal excellence in a safe and supportive environment, so they can grow to be capable, kind and active contributors to the world in which we live.

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ACADEMICS

Consistent with Massachusetts regulations, 603 CMR 26.05(1), the Spencer-East Brookfield RSS, through its curricula and materials, encourages respect for the human and civil rights of all individuals, regardless of race, color, sex, gender identity, religion, national origin or sexual orientation. In accordance with district guidelines, families may request information from the building principal on available accommodations related to curriculum content.

Course Expectations

Teachers will distribute a summary to students at the beginning of each course that outlines:

- Curricular and behavioral expectations
- A course syllabus, which describes the larger learning goals and assessment objectives
- Grading procedures

Knox Trail uses data to guide scheduling decisions, including the identification of students eligible for enrollment in advanced courses. Student grades, MCAS scores, iReady Assessments, and reading ability are the primary factors used to make this identification, but students who consistently exhibit the following behaviors also receive consideration:

- Keeps track of own grades and academic progress
- Seeks help outside of class when necessary to improve understanding
- Completes homework assignments on time in a dependable and thorough manner
- Asks purposeful questions during class
- Enthusiastically participates in lesson activities
- Takes on a leadership role for group projects and works independently on individual projects
- Organizes own notebook and prepares own study guides for tests/quizzes
- Demonstrates a strong interest and passion for the subject matter
- Completes work that is, in quantity and/or quality, above and beyond what has been assigned

Extra Help

- Teachers will provide students with opportunities to obtain extra help with a set day of the week scheduled for each teacher.
- Peer tutoring can be arranged as needed afterschool or during school time when appropriate.
- Teachers may be contacted via email, which is available through the parent/guardian PowerSchool account or on our school website.

Homework and Grading

- Homework is intended to be an extension of the classroom assignment.
- Student is responsible for completing his/her assignments.
- Work is expected to be completed and passed in on time.
- Students should be able to complete most assignments in 20-30 minutes per class.
- Students have a maximum of five (5) school days to complete work after an absence.
- If a child is out three or more days, parents should reach out directly to the school for work that may be completed at home**.**
- Teachers may issue an incomplete grade to a student for a marking term when extenuating circumstances exist. When a student gets an incomplete grade, the student has ten (10) school days to complete assigned work.

Cheating/Plagiarism/Forgery

Cheating/Plagiarism/Forgery on any schoolwork is not allowed and is unacceptable. Teachers, administrators, and parents should discuss with students the merits of honesty and integrity regarding their schoolwork and accepting responsibility for their actions. Teachers and administrators may take disciplinary action when violations occur in the classroom and school environment. Disciplinary action for acts of cheating/plagiarism may include, but are not limited to, assigning a grade of zero on the activity, requiring a retake, and/or assigning a detention or a suspension. Forgery of a parents'/guardians' signature on school documents will result in parental contact by the principal or assistant principal.

AI Policy

As technology evolves, the use of artificial intelligence (AI) tools in education has become increasingly common. While AI can enhance learning and support academic endeavors, it is essential to maintain integrity and honesty in all academic work. The school district adopted a policy on the use of Artificial Intelligence, and is included in the Appendix, as well (Appendix IX). This section outlines the expectations for students regarding the ethical use of AI in their coursework.

Purpose

The purpose of this policy is to:

(a) Promote academic integrity in the use of AI tools.

(b) Provide clear guidelines for students on acceptable and unacceptable uses of AI.

(c) Foster a culture of honesty, respect, and responsibility in academic work.

Definitions

- **AI Tools**: Any software or application that uses artificial intelligence to generate, analyze, or assist in the creation of content (e.g., writing assistance, code generation, data analysis).

- **Academic Integrity**: The commitment to honesty and ethical behavior in academic work, including the avoidance of plagiarism, cheating, and other forms of dishonesty.

Acceptable Uses for AI Tools

- **Research Assistance**: Using AI to gather information, summarize articles, or understand complex concepts, provided that the student engages critically with the material.

- **Idea Generation**: Utilizing AI for brainstorming or generating ideas as a starting point for original work.

- **Drafting Support**: Employing AI tools to help draft outlines or structure for essays (but the final product must be the student's own work and perspective).

Unacceptable Uses

- **Plagiarism**: Submitting AI-generated content as one's own without proper citation or acknowledgment.

- **Completion of Assignments**: Using AI to produce work that is intended to be completed independently, such as essays, reports, or projects.

- **Misrepresentation**: Presenting AI-generated ideas or solutions as the student's original thoughts or efforts.

When using AI, students should:

1. Clearly acknowledge the use of AI tools in their work where applicable.
2. Ensure that their submissions reflect their own understanding and creativity.
3. Familiarize themselves with the capabilities and limitations of AI tools to use them effectively and ethically.

Educators at the District will:

1. Provide guidance on the ethical use of AI in academic work on an ongoing basis.
2. Offer instruction on proper citation practices and the importance of academic integrity.
3. Encourage critical thinking and originality in student work.

Consequences of Violating the Policy

Violations of this policy may result in disciplinary actions, which can include:

- A warning or notification to the student.
- Requiring the student to redo the assignment.

- Receiving a zero on the assignment.
- Further disciplinary measures in accordance with the school's code of conduct.

The responsible use of AI can greatly enhance learning experiences, but it is crucial to uphold academic integrity. It is important that students engage in honest and ethical academic practices, preparing them for future challenges in their educational and professional journeys.

PowerSchool Access

PS is an automated student record management system that allows administrators, teachers, students and parents to keep timely and up-to-date records of student performance and progress. All parent/guardians are given a username and a password which allows
parents/guardians to go online and monitor student progress at www.sebpowerschool.org. Parents may expect grades to be updated at least every ten (10) school days.

Progress Reports

- During the course of a year, parents may request assistance by calling the school so they can access their PowerSchool account. A PowerSchool account enables parents to view student progress as teachers input grades into the system. We encourage parents to take advantage of PowerSchool at www.sebpowerschool.org. A printed copy of username and password are given to students on the first day of school.
- Grades and teacher comments will be updated at the midpoint of each grading term.
- Parents who wish to receive a paper copy of their child's progress report may do so by putting their request in writing to the principal or administrative assistant.

Report Cards/Quarterly Grades

- Grades will be stored quarterly and can be viewed daily on Power School during the school year.
- Each marking period will be approximately ten (10) weeks in length.
- Number grades will be placed on report cards for each marking period.
- Teachers will provide comments regarding student progress, including conduct, effort and performance.
- Quarter grades determine eligibility for **extracurricular** activities, field trips, dances, and sports. Progress reports will be used to update the eligibility list and potentially restore eligibility.
- Students will receive all paper reports cards in afternoon HR for the first three quarters with parents signing that they received them. Students are to return them to their HR teacher the next day.
- The last report card is not sent home. Parents/guardians who wish to have a copy, please contact administration.

The grading system will be as follows: A-Excellent B-Above Average C-Average D-Passing F-Failing

The letters correspond with the following numerical values:

A+ 97-100 A 93-96 A- 90-92
B+ 87-89 B 83-86 B- 80-82
C+ 77-79 C 73-76 C- 70-72
D+ 67-69 D 63-66 D- 60-62
F 59 and below

Honor Roll

- Honor rolls are published after each marking period to recognize students who have demonstrated high academic achievement.
- High Honors: Student must receive all A's.
- Honors: Student must receive all B's or better.

Scholarships, Prizes, and Awards

All scholarships, prizes and awards distributed to students are free of discrimination in accordance with the non-discrimination policy.

- Edward Goodlight Award
- Paul Jolie Award
- Kaitlyn Langlois Award
- Priscilla Walker Award
- General Knox Award

Promotion

- Promotion to the next grade is not automatic.
- The educational, psychological, emotional and physical well-being of the pupil is always considered in any final decision.
- Students may be required to attend summer school.

Retention

Not all pupils benefit from retention, as there are some who continue to find it difficult to achieve. Each pupil's situation is a unique case and should be treated as such. Retention can be a valuable alternative when a common-sense approach is used. In most cases, retention should not occur more than once in a student's academic career. The goal of retention should be to ensure the continuous academic success of the student. Retention should be viewed as a means to allow the student to acquire the necessary grade level skills and knowledge to meet the next challenge.

It is important that at the first sign of academic difficulty, lines of communication between parent and teacher are opened. Continual reporting (progress reports, failure warnings, conferences and report cards) of academic difficulty is recommended. By using these tools and common sense, parents understand that the teacher is a professional who gives the utmost deliberation to each child, and whose advice should be carefully considered. If the teacher continually corresponds with the parent, a sense of trust and cooperation is fostered, and parents are more likely to accept the teacher's recommendations

Listed are **suggested** procedures and a **suggested** timetable for the implementation of retention:

- Parents are encouraged to go online and monitor student progress regularly through their PowerSchool accounts at www.sebpowerschool.org.
- The school will make the final determination regarding retention. The input of parents, students, teachers, and specialists will be sought when making this determination. Parents may appeal the school decision to the superintendent.

Summer School

If offered by the school district,, summer school may be available to students who fail one or more core course (English, Mathematics, Social Studies, Science) and will be part of the plan for promotion to Grade 9.

Parent Conferences

- Parents' night is held in the Fall after completion of the progress reports. At this time, parents meet for a short conference with their child's teachers to discuss the students' progress. Parents will be notified in advance of these sessions.
- If more time is needed for a conference, parents can call the guidance office to make arrangements.
- Parents may meet with a teacher at any time during the year by calling the guidance counselor and scheduling an appointment. The guidance counselor will notify teachers of parental requests for conferences.

Overview of the Massachusetts Comprehensive Assessment System (MCAS)

MCAS is no longer a requirement for students to earn a high school diploma

To earn a Massachusetts diploma, a student must meet the Competency Determination (CD) standard and meet local graduation requirements. The Massachusetts Education Reform Law of 1993, G.L. c. 69, § 1D established the requirement that all students meet the CD standard. In November 2024, Massachusetts voters approved a ballot question that amended the CD requirement in the law. In May 2025, the Board of Elementary and Secondary Education voted to amend the CD regulations, 603 CMR 30.00, in accordance with the legislative changes.

Competency Determination Requirements

As described in the new regulations, the CD represents two accomplishments: showing a mastery of skills in English language arts, mathematics, and science; and the satisfactory completion of relevant coursework aligned to the standards measured by the high school English language arts, mathematics, and science MCAS assessments administered in 2023.

(d) To show mastery, a student must successfully complete in accordance with the district's grading policy: (1) the final assessment for a course; or (2) a capstone or portfolio project; or (3) an equivalent measure identified in the district's CD policy.

(e) To satisfactorily complete coursework, a student must earn full credit in accordance with the district's grading policy in the courses outlined in DESE's guidance.

Students who met the CD standard in English language arts, mathematics, and/or science prior to January 3, 2025, retain that benefit.

Class of 2027 and Beyond

Students in the class of 2027 and beyond must earn full credit in accordance with the district's grading policy in the courses listed in the table below:

Content Area	Coursework Requirements
English Language Arts	The equivalent of two years of high school English language arts courses.
Mathematics	The equivalent of one year of both Algebra I and Geometry courses, or the equivalent of one year of both Integrated Math I and Integrated Math II.
Science	The equivalent of one year of any one of the following disciplines: Biology, Physics, Chemistry, or Technology/Engineering.
U.S. History	The equivalent of a one-year United States history course.

Notice to Parents Regarding Teacher Qualifications

Parents have the right to know the professional qualifications of the classroom teachers. Although a school report card sent home during the third term addresses these topics, federal law allows parents to ask for the following information:

- Whether the Massachusetts Department of Education has licensed or qualified the teacher for the grades and subjects he or she teaches
- Whether the Massachusetts Department of Education has decided that the teacher can teach in a classroom without being licensed or qualified under state regulations because of special circumstances.
- The teacher’s college major, whether the teacher has any advanced degrees and, if so, the subject of the degrees.
- Whether any teacher’s aides or similar paraprofessionals (Title I only) provide services to students, and if they do, their qualifications.

ATTENDANCE

It is imperative that all children attend school regularly. When attendance is poor, the student is at risk for retention. The following policies address school attendance.

- Students must be in homeroom by 7:45 AM.
- In the event of an early dismissal due to inclement weather, parents should have a plan in place to ensure adequate supervision at home.

Tardiness

Students arriving after 7:45 AM are considered tardy and must report to the main office for a pass.

Dismissal

- Students should not seek dismissal from school for appointments that can be made after school hours. If an early dismissal is necessary, the student must present a written request to the main office.
- Students can only be released to a parent/guardian.
- Students must attend school until 11:00 AM to be eligible for participation in any after school program or extracurricular activities.

Absence

For all student absences, a telephone call from the parent/guardian to the school nurse (508-885-8556) explaining the absence must be made by 7:45 AM on the day of absence. Parents or guardians must supply the name and grade of the student along with a reason for the absence. If a pupil is absent and the school has not been notified by the designated time, the school will call the parent or guardian to inquire about the absence.

Excused absences:

An absence will be considered *excused* if:

- It is due to short term illness/injury with proper medical documentation.
- It is a religious obligation, the death of a family member, or a court hearing.
- Pre-arrangement was made with the principal to allow a student to participate in or attend any non-school sponsored activity/event on a school day.

Notes:

1. Repetitive and/or chronic absence due to illness or injury may require a medical documentation from a health care provider.
2. Seventh and eighth grade students who anticipate applying to Bay Path Regional Vocational High School must provide a physician's note to excuse any medical absences due to illness or injury, regardless of length, in order to avoid a loss of points on the application.
3. A student who is absent from school may not participate in after school activities.

Unexcused Absences:

An absence will be considered *unexcused* if:

- It is health-related, exceeds 5 days and is not documented by a note from a health care provider.
- Pre-arrangement was not made with the principal for non-health related reasons
- It is for vacation during regularly scheduled school days.

Note: Please contact the principal if a student is going to be absent from school for more than three days as the result of a planned vacation.

Consequences for Excessive Unexcused Absences/Tardiness

- Students who are tardy more than 10 times may be required to make up the time after school or during lunch detention, depending on the seriousness of the tardiness, at admin discretion.
- Unexcused absences beyond 8 days in a quarter, is considered excessive and in violation of Massachusetts State Laws concerning truancy. A poor attendance record may affect the student's academic performance which may prevent student promotion to the next grade level. Parents or guardians of students with excessive absences may receive:
  - A telephone call from the nurse at or about the sixth (6th) absence

- A letter from the assistant principal at or about the eighth (8th) absence and a home visit with the school resource officer.
- Written notification to meet with the principal or his/her designee if absences exceed twelve (12)

days. Per Massachusetts General Law,

The school principal or headmaster, or a designee, make a reasonable effort to meet with the parent or guardian of a student who has 5 or more unexcused absences to develop action steps for student attendance. The action steps will be developed jointly and agreed upon by the school principal or headmaster, or a designee, the student and the student's parent or guardian and with input from other relevant school personnel and officials from relevant public safety, health and human service, housing and nonprofit agencies.

It is important to note that, since attendance concerns could sometimes potentially be related to a disability, it could result in the need for a special education initial evaluation.

To address attendance concerns not resolved by the action steps developed per the preceding paragraph the principal and/or designee may:

- Refer the problem to the Superintendent of Schools and do a Home Visit with the School Resource Officer.
- File a CRA (Child Requiring Assistance) petition with the court if a child between the ages of six and sixteen persistently and willfully fails to attend school or persistently violates lawful and reasonable regulations of his or her school. The Court's authority pursuant to a CRA petition includes the power to place the child in the custody of the state agency known as the Department of Children and Families
- File an Adult Failure to Cause complaint with Worcester Juvenile Court along with a 51A report with the Department of Children and Families for suspected child abuse or neglect. Under Chapter 119, section 51A of the Massachusetts General Laws, a report can be filed on behalf of a child under the age of eighteen for educational neglect if a child is not attending school on a regular basis.

CODE OF CONDUCT

The following is a general standard of conduct that should be used as a guide by all students. Not all acts of misconduct can be itemized in this regulation; however, this list of infractions *may lead to disciplinary action such as lunch/office detentions, removal from class, confiscation of material, suspension, and/or expulsion.*

- Abusive behavior, violence, force, coercion, bullying, threats, intimidation, insubordination, instigation of a fight, or other similar conduct that endangers another person's safety or violates their civil rights.
- Breach of security, or any behavior that compromises the safety of the School, including: tampering with the physical plant (i.e. locks, alarms, and windows), entering vehicles, and/or unauthorized use of telephones, computers, and equipment.
- The willful causing or attempting to cause damage to private or school property.
- False communications about the presence of fire or explosive devices in the building.
- False communication in any form: this includes withholding information which may jeopardize the safety of students or the school.
- Fire setting, any intentional behavior that may cause a fire includes tampering with electrical outlets and appliances.
- Student has in his/her possession contraband or has brought into school an item that is a disruption to the learning environment or potentially dangerous. (i.e. lighters, matches, laser pointers, hair straighteners, blow dryers, etc.).
- Possession, use, dispensing, or selling of tobacco products, e-cigs, vapes, alcoholic beverages, or over the counter medications, inhalants, drug paraphernalia, illegal substances, prescription medication, or any controlled substances.
- Stealing or attempting to steal private or school property.
- Threatening or intimidating any person for the purpose of obtaining money or property from another person.
- Knowingly possessing or handling any object that is ordinarily or generally considered to be a weapon.
- Truancy or failure to attend classes, required activities, or teacher/office detentions.
- Tardiness to school, assigned classes, or required activities.
- Using language or gestures, which by school standards is considered inappropriate, vulgar, obscene, demeaning, or intimidating. This includes possession of any sexually explicit or graphically violent materials.
- Inappropriate display of affection including indecent exposure, sexual activity.
- Incorrectly identifying oneself to a staff member, including a substitute teacher.
- Possession, use, or distribution of any type of fireworks.
- Repeated violation of any valid rules of conduct and classroom behavior (i.e. disruption; repeatedly unprepared for class).
- Trespassing by being present in an unauthorized place in the school or on school grounds; refusing to leave school

property when told to do so by an official; or leaving school property onto private property without landowner's permission.
• Engaging in any activity forbidden by the laws of Massachusetts or the United States (i.e. sexual harassment, gambling, identity

theft, etc.).
- Hazing (See also page 26 and Appendix IV, page 41).
- Bullying (See also page 27 and Appendix V, page 43).

The code of conduct is applicable to Students with Section 504 Accommodation plans.

Behavior Expectations
Every pupil is expected to adhere to the regulations contained within the school's handbook. Parents, guardians, teachers, and administrators must work cooperatively to help each student become a self-disciplined individual. Whenever a question concerning discipline arises, parents or guardians are encouraged to contact the school administrators.

Each case of misconduct is specific and is affected by different circumstances. It is the ultimate responsibility of administrators to screen information related to each case and to render the appropriate decision necessary for remediation. In general, the severity of the behavior and/or the frequency of disciplinary referrals will dictate which of the following measure(s) will be taken. These measures may be utilized individually or interchangeably:

- Teacher detention
- Teacher conference
- Parent contact
- Assistant Principal/Principal conference
- Office detention
- In-school suspension
- Out-of-school suspension
- Expulsion

The power of the school committee, or of any other teacher, administrator, or other employee or agent of the School Committee, to maintain discipline on school property will not include the right to inflict corporal punishment on any student.

Detentions
When a student receives a teacher detention or an office detention from an administrator, the student will be told he/she has detention. Parents will be notified in writing or by phone call by either the teacher, administration or student. Students must report to office detention on second bell dismissal on the day the detention is issued and remain until 3:00 p.m. Parents should make arrangements to pick the student up at 3:00 p.m. unless otherwise notified.
- A bus student may serve his/her detention the day after a detention is issued.
- No one is excused from detention. Should transportation be a problem, arrangements can be made to serve the detention the next school day with a note from the parents.
- Failure to report to detention may result in an additional detention or extended time on the detention and/or in school suspension.
- Serving a detention takes precedent over participation in extra-curricular activities.
- Further discipline may be imposed when a student continues to have excessive detentions, which may include extended detention time and/or suspension.

The school relies heavily on parents to aid in the growth of their child's self-discipline. A parent conference will be required if a child receives an excessive number of detentions in any marking term.

School Materials
Students are responsible for the proper care of all school materials issued to them for use during the school year. • Any electronic devices, textbooks and/or workbooks issued in classes must be maintained.
- If there is misuse or abuse of materials, students will be assessed replacement or repair costs.
- Any student with an outstanding obligation may not be promoted to the next grade level until the obligation is cleared.

Searches by Staff
School administrators may search students and inspect a student's property. This includes searches by Drug-Sniffing and/or Weapon

Sniffing Canine and/or by Metal Detectors. Searches of students, their possessions, their vehicles, and/or their lockers will be conducted in a manner that preserves individual rights and supports the educational process. Whenever a student search is conducted, the following will apply:

- No search will be conducted unless there is reasonable suspicion that the student is in possession of an item or items that violate school rules or laws.
- Searches will be conducted by an administrator, with at least one other faculty member present, preferably another administrator.
- Whenever a personal search is deemed necessary, the student will be advised of the reason for the impending search.
- No school official will ever conduct a "strip search" of a student.
- Should a student refuse to comply with a request for a search, the student may be detained until parents, and if necessary, police, arrive to assist. A student may face additional consequences for refusing to comply with the search.
- Any illegal substances or contraband will be turned over to the appropriate authorities. Suitable disciplinary and /or legal action will be taken.
- Nothing herein will be construed to limit the right of the School Committee or administration to make use of external detecting resources should such become necessary or desirable.

Suspensions and Expulsions

All suspensions and expulsions are governed by M.G.L. Ch. 71 S 37H, M.G.L. Ch. 71 S 37H ½ and M.G.L. S37H3/4. For full text see Appendix I, page of this document.

Short-term Suspensions for a specific incident may be issued by the administration for a maximum period of ten school days. Students may receive more than ten total school days of suspension for multiple infractions over an extended period of time. Every effort will be made to inform the parent of any suspension and each student will be provided with a hearing. Written communication will be mailed to the parent.

Due Process Rights of All Students

Short-term Suspensions

In cases of suspensions for ten school days or less (short-term suspensions), the student has the following rights.

- The right to oral and written notice of the charges against him/her in English and the primary language of the home if other than English;
- The right to an explanation of the basis of the accusation and evidence which school authorities have against him/her;
- The opportunity to present his/her side of the story to an impartial decision maker (who may be a school administrator)

The notice will include:

1. The disciplinary offense and basis for the charge;
2. Potential consequences, including the length of suspension;
3. The opportunity for a hearing with the principal or designee and the parent, including the opportunity to dispute the charge;
4. The date, time and location of the hearing;
5. The right to an interpreter during the hearing;
6. If the student may be placed on long-term suspension following the hearing, then:
   a. The rights set forth under long-term suspensions (more than 10 school days); and
   b. The right to appeal the principal's decision of the hearing to the superintendent.

Right to Hearing:

The purpose of the hearing with the principal is to hear and consider information regarding the alleged incident for which the student may be suspended, provide the student an opportunity to dispute the charges and explain the circumstances surrounding the alleged incident, determine if the student committed the disciplinary offense, and if so, the consequences for the infraction. The principal shall discuss the disciplinary offense, the basis for the charge, and any other pertinent information. The student also shall have an opportunity to present information, including mitigating facts, that the principal should consider in determining whether other remedies

and consequences may be appropriate. The principal shall provide the parent, if present, an opportunity to discuss the student's conduct and offer information, including mitigating circumstances, that the principal should consider in determining consequences for the student.

Based on the available information, including mitigating circumstances, the principal shall determine whether the student committed the disciplinary offense, and, if so, what remedy or consequence will be imposed.

The principal shall notify the student and parent of the determination and the reasons for it, and, if the student is suspended, the type and duration of suspension and the opportunity to make up assignments and such other school work as needed to make academic progress during the period of removal. The determination shall be in writing and may be in the form of an update to the original written notice.

Although the above procedures should normally precede any suspension, in emergency situations the student may be summarily removed from school with a hearing to follow as soon as possible.

Emergency Removal under Section 37H ¾

Nothing in the regulations shall prevent a principal from removing a student from school temporarily when a student is charged with a disciplinary offense and the continued presence of the student poses a danger to persons or property, or materially disrupts the order of the school. The temporary removal shall not exceed two (2) school days following the day of the emergency removal, during which time the principal shall:

1. Make immediate and reasonable efforts to orally notify the student and the student's parent of the emergency removal, the reason for the need for emergency removal, and the other matters set forth in 603 CMR 53.06(2);
2. Provide written notice to the student and parent as provided for short-term and long-term suspensions; 3. Provide the student an opportunity for a hearing with the principal that complies with the procedures set forth for short-term or long-term suspensions, as applicable, and the parent an opportunity to attend the hearing, before the expiration of the two school days, unless an extension of time for hearing is otherwise agreed to by the principal, student, and parent; 4. Render a decision orally on the same day as the hearing, and in writing no later than the following school day, which meets the requirements set forth for short-term or long-term suspensions as applicable.

A principal may not remove a student from school on an emergency basis for a disciplinary offense until adequate provisions have been made for the student's safety and transportation.

Long-term Suspensions

Due process for a student who is a subject to suspension for more than ten days (long-term suspensions) includes the same procedures outlined above for short-term suspension in addition to the following procedures **(please refer to Appendix I for Massachusetts Law 37H, 37H ½, and 37H ¾):**

1. In advance of the hearing, the opportunity to review the student's record and the documents upon which the principal may rely in making a determination to suspend the student or not;
2. The right to be represented by counsel or a lay person of the student's choice, at the student's/parent's expense; 3. the right to produce witnesses on his or her behalf and to present the student's explanation of the alleged incident, but the student may not be compelled to do so;
4. the right to cross-examine witnesses presented by the school district;
5. the right to request that the hearing be recorded by the principal, and to receive a copy of the audio recording provided to the student or parent upon request. If the student or parent requests an audio recording, the principal shall inform all participants before the hearing that an audio record will be made and a copy will be provided to the student and parent upon request;
6. The principal shall provide the parent, if present, an opportunity to discuss the student's conduct and offer information, including mitigating circumstances, that the principal should consider in determining consequences for the student;
7. Based on the evidence, the principal shall determine whether the student committed the disciplinary offense, and, if so, after considering mitigating circumstances and alternatives to suspension, what remedy or consequence will be imposed, in place of or in addition to a long-term suspension. The principal shall send the written determination to the student and parent by hand delivery, certified mail, first-class mail, email to an address provided by the parent for school communications, or other method of delivery agreed to by the principal and the parent.
8. If the principal decides to suspend the student, the written determination shall:

   a. Identify the disciplinary offense, the date on which the hearing took place, and the participants at the hearing;
   b. Set out the key facts and conclusions reached by the principal;

c. Identify the length and effective date of the suspension, as well as a date of return to school;
d. Include notice of the student's opportunity to receive education services to make academic progress during the period of removal from school;
e. Inform the student of the right to appeal the principal's decision to the superintendent or designee, but only if the principal has imposed a long-term suspension. Notice of the right of appeal shall be in English and the primary language of the home if other than English, or other means of communication, where appropriate, and shall include the following stated in plain language:

i. the process for appealing the decision, including that the student or parent must file a written notice of appeal with the superintendent within five calendar days of the effective date of the long-term suspension; provided that within the five calendar days, the student or parent may request and receive from the superintendent an extension of time for filing the written notice for up to seven additional calendar days; and that,
ii. the long-term suspension will remain in effect unless and until the superintendent decides to reverse the principal's determination on appeal.

Students placed on long-term suspension following a hearing with the principal shall have the right to appeal the principal's decision to the superintendent. To do so, the student or parent shall file a notice of appeal with the superintendent within five calendar days of the effective date of the suspension, but may receive an extension for up to seven additional calendar days if they make the request within the five calendar days following the suspension.

The superintendent will then hold the hearing within three school days of the request.

The superintendent will make a good faith effort to include the parent in the hearing. The superintendent shall be presumed to have made a good faith effort if he or she has made efforts to find a day and time for the hearing that would allow the parent and superintendent to participate.

The superintendent shall send written notice to the parent of the date, time, and location of the hearing.

The superintendent shall conduct a hearing to determine whether the student committed the disciplinary offense of which the student is accused, and if so, what the consequence shall be. The superintendent shall arrange for an audio recording of the hearing, a copy of which shall be provided to the student or parent upon request. The superintendent shall inform all participants before the hearing that an audio record will be made of the hearing and a copy will be provided to the student and parent upon request. The student is entitled to all the rights afforded the student at the principal's hearing for long-term suspension (see above).

The superintendent shall issue a written decision within five calendar days of the hearing. If the superintendent determines that the student committed the disciplinary offense, the superintendent may impose the same or a lesser consequence than the principal, but shall not impose a suspension greater than that imposed by the principal's decision.

The decision of the superintendent shall be the final decision of the school district, charter school, or virtual school, with regard to the suspension.

In-School Suspensions

In-school suspensions may be used as an alternative to short-term suspensions.

When a student repeatedly violates the code of conduct or commits a serious offense, an in-school suspension may be given. The student will be isolated from the student body during the period of suspension where he/she can complete assignments given by the classroom teachers. Students assigned to in-school suspension will report directly to the ISS room upon arrival at school unless otherwise instructed. A student on in-school suspension is responsible for all schoolwork, including tests. Schoolwork is provided during the suspension period. Any student who has an in school suspension is not to participate or attend any school events on the day(s) of the suspension period.

The principal shall make reasonable efforts to orally notify the parent on the same day as the in-school suspension decision as soon as possible of the disciplinary offense, the reasons for concluding the student committed the offense, and the length of the in-school suspension. The principal shall offer the parent an opportunity to meet to discuss the student's academic performance and behavior, strategies for student engagement, and possible responses to the behavior. If possible, such a meeting shall be scheduled on the day of the suspension, or otherwise as soon as possible thereafter. If the principal, after two documented attempts to reach the parent, is

unable to reach the parents, such attempts will be considered reasonable efforts for purposes of orally notifying the parents. The principal shall provide written notification to the student and the parent about the in-school suspension, the reason and length of the suspension, and offer the parent an opportunity to meet to discuss the student's academic performance and behavior, strategies for student engagement, and possible responses to the behavior.

Written notice may be made by hand delivery, first-class mail, certified mail, email, or other delivery method agreed upon by the principal/designee and the parent.

Out-of-School Suspensions

Suspension from school is a punishment for serious misconduct of a disruptive or criminal nature. This may include, but is not limited to, the following infractions: smoking, drinking, use of drugs, attacking other students, disruptive behavior, sexual harassment, vandalism, possession of weapons, stealing, and use of fireworks. It is essential that the parents/guardians meet with the assistant principal or principal to discuss the problems that have resulted in the suspension. Any student who has been suspended is not to be on school grounds or at school events during the suspension period. A student on out of school suspension is responsible for all schoolwork, and schoolwork will be provided during the suspension period. *In all cases involving the violation of State/Federal laws, the school has the legal obligation and responsibility to notify the local police departments*.

Principal's Authority to Expel

Section 37H (a) and (b) , as well as section 37H ½, of the Massachusetts Educational Reform Act (1993) gives the principal authority to expel a student who • is found on school premises or at school sponsored or school-related events in possession of a dangerous weapon, explosives, or a controlled substance (drugs and alcohol), or who assaults school personnel on premises or school related functions.

- has been issued a criminal complaint for either a felony or a felony delinquency, if the principal determines that the student's continued presence at school would have a substantial detrimental effect on the general welfare of the school.

Any student who is found in possession of a dangerous weapon, explosives, or a controlled substance, or who assaults school personnel as described above, shall be notified in writing of an opportunity for a hearing; provided, however, that the student may have representation, along with the opportunity to present evidence and witnesses at said hearing before the principal. After said hearing, the principal may, in his/her discretion, decide to suspend rather than expel a student who has been determined by the principal to have been in possession of a dangerous weapon, explosives, or a controlled substance, or assaulted school personnel as described above.

Any student who has been expelled from a school district pursuant to these provisions shall have the right to appeal to the superintendent. The expelled students shall have ten days from the date of the expulsion in which to notify the superintendent of his appeal. The student has the right to counsel at a hearing before the superintendent. The subject matter of the appeal shall not be limited solely to a factual determination of whether the student has violated any provisions of this section.

Any school district that suspends or expels a student under this section shall continue to provide educational services to the student during the period of suspension or expulsion, under section 21 of chapter 76. If the student moves to another district during the period of suspension or expulsion, the new district of residence shall either admit the student to its schools or provide educational services to the student in an education service plan, under section 21 of chapter 76.

Districts shall report to the department of elementary and secondary education the specific reasons for all suspensions and expulsions, regardless of duration or type, in a manner and form established by the commissioner. The department of elementary and secondary education shall use its existing data collection tools to obtain this information from districts and shall modify those tools, as necessary, to obtain the information. On an annual basis, the department of elementary and secondary education shall make district level de-identified data and analysis, including the total number of days each student is excluded during the school year, available to the public online in a machine readable format. This report shall include district level data disaggregated by student status and categories established by the commissioner.

Under the regulations promulgated by the department, for each school that suspends or expels a significant number of students for more than 10 cumulative days in a school year, the commissioner shall investigate and, as appropriate, shall recommend models

that incorporate intermediary steps prior to the use of suspension or expulsion. The results of the analysis shall be publicly reported at the school district level.

Due Process Rights of All Students

- The right to oral and written notice of charges against him/her
- The right to an explanation of the evidence that the school authorities have against him/her
- The opportunity to present his/her side of the story
- The right to cross-examine witnesses against the student
- Time to prepare for a hearing
- The right to present witnesses and testimony
- The right to counsel

Special Education Provisions

The SEBRSD observes the state and federal guidelines pertaining to the application of discipline to children and students eligible under the Individuals with Disabilities Education Act (IDEA), including manifestation determination and all other due process provisions, and considers the student's Individual Education Plan (IEP) when taking or considering disciplinary action (34 CFR 300.519-529). The Massachusetts Department of Education has adopted a policy regarding "disciplining students with special needs" which implements M.G.L Chapter 71B, Section 3 of the Massachusetts General Laws. Both documents outline procedures and protections for students on Individual Education Plans

The IEP for every special needs student will indicate whether the student can be expected to meet the regular discipline code or if a modified discipline code is required. Modifications will be written into the IEP.

Current Federal Special Education Regulations (34 CFR 300.519-529) require the following discipline policies and procedures for special needs' students:

- After a student with special needs has been suspended for 10 school days in any school year, during any subsequent removal, the public school provides sufficient services for the student to continue to receive a free and appropriate education (an In-School-Suspension does count towards the 10 school days);
- The following constitutes a change in placement:
  - A suspension of longer than 10 school days; or
  - A series of suspensions that constitute a pattern because either: (i) the series of removals total more than 10 school days in a given school year; (ii) the child's behavior is substantially similar to the child's behavior in previous incidents that resulted in the series of removals; and (iii) of such additional factors such as the length of each removal, the total amount of time the child has been removed, and the proximity of the removals to one another.
- Prior to a suspension that constitutes a change in placement, the IEP Team convenes to:
  - Develop or review a functional behavioral assessment of the student's behavior intervention plan or develop an assessment plan;
  - Make a *Manifestation Determination* (The team will determine if the student behavior is a direct result of their disability).
  - Take steps to amend (with parent consent) the IEP, the placement, or the behavioral intervention plan, if the team determines that the behavior IS a manifestation of the disability.

disability:

-Services to enable the student, although in another setting, to continue to participate in the general education curriculum and to progress toward IEP goals; and -As appropriate, a functional behavioral assessment and behavioral intervention services and modifications, to address the behavior so that it does not recur.

- The review may find

the IEP must be modified to reflect a new program designed to better meet the student's needs OR

- the IEP and the suspension are appropriate, but an amendment will be developed to provide the delivery of special education services during the period of exclusion AND/OR
- the original IEP will be modified to affect a long-term plan designed to assure continued involvement with an educational program.

If a suspension will result in accumulated exclusion of more than 10 school days with the current IEP, immediate written notification of the suspension must be made through the school system's Director of Pupil Services office.

Note: Regardless of the manifestation determination, the District may place the student in an interim alternative educational setting (as determined by the Team) for up to 45 days if the behavior involves:

- Weapons
- Illegal drugs or another controlled substance while at school or a school function
- Evidence that the student is "substantially likely" to injure him/herself or others

***** If the behavior is a manifestation of the student's disability, the district must follow the law.

The District provides written notice to the parent of all rights to appeal and to an expedited hearing. If the parent chooses to appeal, during the appeal the student stays in the placement on the last accepted IEP or the interim alternative placement, unless the parent and the school district otherwise agree.

504 Discipline: (Please refer to Appendix XIX for information covering parent and student rights under section 504)

Students identified as eligible for protection under Section 504 may not be removed from their educational placement for more than ten school days unless it is determined that the behavior which resulted in the disciplinary infraction was not linked to the student's disability, or inappropriate placement (*manifestation determination*). The prohibition against removals of more than ten school days also applies to shorter removals which cumulatively total ten (10) school days within a school year and reflect a pattern of exclusion.

Upon completion of discipline, students who require 504 accommodations will be returned to their original placement if the behavior is not a manifestation of the disability, unless the parent and district agree otherwise, or a hearing officer orders a new placement. If the behavior is found to be a manifestation of the disability, the student will be returned to their original placement unless the parent and district agree otherwise or a hearing officer orders a new placement.

If a student is suspended or expelled when the behavior is not a manifestation of the disability, such services may be provided: tutoring, functional behavior assessments and behavioral intervention services and modifications, to address the behavior so it does not recur.

Note: Regardless of the manifestation determination, the District may discipline the student in if the behavior involves weapons or illegal drugs or another controlled substance while at school or a school function, and/or the behavior involves infliction of serious bodily injury on another on school grounds or at school-related functions.

A child who has not yet been determined to be eligible for special education and related services may assert the disciplinary protections under IDEA provided that the District had a basis of knowledge that the child had a suspected disability before the behavior that precipitated the disciplinary action occurred. The

District is deemed to have knowledge if the child's parent expressed concern in writing to administrative or supervisory personnel of the school or District that the child is in the need of special education evaluation; or the child's teacher or other school or District personnel expressed specific concerns to the Director of Special Education or to other supervisory personnel about a pattern of behavior demonstrated by the child. The school or District is not deemed to have knowledge of a disability if the parent has not allowed an evaluation or has refused special education and related services, or the child has been evaluated and determined not to be a child with a disability.

Procedural requirements for students not yet determined eligible for special education.
603 CMR 28.00 Special Education Regulations – Massachusetts State Law for Special Education Services may be found in Appendix III of this document.

School Property

The school property is defined by fencing. Students in an unauthorized area will be disciplined. Students trespassing on our neighbors' property may be suspended from school. Students are expected to stay on paved walkways to and from school. Skateboards are not allowed at school. Bicycles must be kept in the bike rack and walked off campus, helmets must be worn. Electric and/or motorized modes of transportation are not permitted on school grounds.

DAILY EXPECTATIONS

Before School

- Upon arrival for the school day, students will report to their homeroom.
- Students may not enter the building before school unless they have a pass from a teacher or an administrator.
- Breakfast begins at 7:20. Students who are eating breakfast may come to the cafeteria and stay until finished.

Corridor Conduct

- No running, jumping, yelling, or physical contact of any kind.
- No punching, banging, kicking, or slamming of lockers.
- No use of distracting cologne, deodorant, hair spray, or any scented items.
- Students may access their lockers before/after school and during transition times between classes.
- Backpacks and oversized tote bags are to be kept in lockers
- Cell phones, iPods, and all electronic equipment must be turned off and must be secured in a locker or provided to the teacher for holding for the duration of the school day during the homeroom block, unless specifically directed by a teacher to bring electronic devices to class.
- Students cannot have any open drinks in their lockers, nor may they have open drinks or food in their possession at any other time during the school day except as otherwise authorized, except in the cafeteria, during breakfast and lunch. Exceptions can only be granted with a medical excuse that is on file with the school nurse.
- Students may not have in their possession soda, coffee, or energy drinks.

Students will be responsible for filling out their Smartpass electronic pass to leave their designated area.

After School

- First round bus students should leave the building at the first bell.
- Second round bus students will wait in the cafeteria until their bus arrives, students being picked up, and walkers should leave the building at 2:10.
- Students who play sports are not to leave school prior to second dismissal for practice or games. Exceptions may be made by administration when students have an away game.
    - Students who leave school prior to their designated time without authorization may face disciplinary action including detentions or suspensions.
- Driving in the circular driveway is prohibited. *All parents should drop off and pick students up in the parking lot*

Personal Appearance

In keeping with the KTR mission statement to *provide students with the opportunity to achieve personal excellence in a safe and supportive environment*, students are expected to be clean and appropriately dressed. Appropriate dress demonstrates respect for oneself and others. Student dress is deemed unacceptable if it causes issues of safety, health, cleanliness, or is otherwise a distraction to the educational process. Students are expected to adhere to the following guidelines. Those who do not may be asked to remove or cover the items and/or may be sent home to change.

- Clothing not allowed includes but is not limited to:
    - Clothing displaying inappropriate inscriptions or images (profanity, alcohol, tobacco, sexual innuendo, violence, gang-related symbols, drug promotion and the like) that would cause distractions or disruption within the school environment
    - Torn clothing
    - Pajamas (except during Spirit Week)
    - Outdoor clothing including coats, hats, boots, etc., except for medical or religious reasons.
    - All clothing items and accessories (chains, sharp earrings, stud bracelets, and the like) that are deemed to be safety hazards
    - Clothing that reveals the stomach area, buttocks or underwear.
    - Hats and hoods, except for medical or religious reasons
- Students are not allowed to graffiti themselves with ink, paint, etc.
- Pants must be worn at the waist.
- Hair should not cover eyes, nose, or mouth. Face must be seen.
- During participation in Physical Education classes, students are required to remove all accessories that would pose a safety hazard to the student and others.

In cases requiring disciplinary action, administration will exercise discretionary authority.

Lockers

Lockers are assigned to each student. Students are responsible for keeping their lockers neat, clean, and locked at all times. The school is not responsible for items taken from unlocked lockers.

- <u>Students must use school issued locks.</u>
- Students will be charged $5.00 for a lost or stolen lock.
- School authorities, acting in the interest of maintenance, health, and safety may inspect school properties, including student lockers. School lockers are the property of the school.
- <u>Students are not permitted to have open drinks in their lockers.</u>

Students are allowed locker access during designated locker times. For instance, the start of the school day, during WIN, lunch block and end of the school day

Hall Passes

- Students must have a pass when there is a need to leave the class.
- Students should use restroom facilities before homeroom and during lunch.

Telephone Use

- A telephone is available with permission in the administrative offices for student access. It can be used during the student's lunch time with permission. This phone should not be used for making social plans but rather to arrange after-school activities as needed.
- Parents may call the school office to leave messages as needed for their child.
- The use of cell phones by students to make and receive personal telephone calls or texts during the school day is prohibited unless otherwise explicitly authorized.
- The wearing and use of Meta Glasses in school are strictly prohibited.

Elevator Use

Only handicapped or injured students with the nurse's permission will have access to the elevator. Any unauthorized use of the elevator by a student may result in disciplinary action.

HEALTH SERVICES

School health policies have been developed to protect the health and promote the safety of the children while at school. The school nurse's office is located in the administrative wing. The following information serves as a guide to the health services program:

- Each day, calls will be made to the homes of students who are absent from school and whose parents/guardians have not contacted the school to inform us of the absence.
- If a child becomes ill at school, the school nurse will initiate a dismissal to a parent/guardian or emergency contact.
- Chronic illnesses, communicable diseases, and severe allergies must be reported to the school nurse immediately.
- The school nurse will provide first aid treatment to any student injured on their way to school or on the school premises.
- Hearing and vision screenings are done on 7th grade students, vision screening only on 5th grade students. Only failure notices will be mailed home.
- Postural screening is performed on all students. Only abnormal observations will be mailed to parents.
- BMI calculations are completed for 7th grade students which are based on an individual's height and weight. Results will only be sent home if requested by parent/guardian.
- School policy requires physicals on 8th grade students if one has not been provided to the school in the past four years. Parents must obtain one from their physician and provide the school a copy of the physician's report.
- Upon written request, a parent or guardian may seek an exemption from physical examinations or screenings for their child on religious grounds except with respect to communicable diseases.

Programs for pregnant students

1. Pregnant and parenting students are permitted to remain in regular classes and participate in extracurricular activities with non-pregnant students throughout their pregnancy, and after giving birth are permitted to return to the same academic and extracurricular program.
2. The district does not require a pregnant student to obtain the certification of a physician that the student is physically and emotionally able to continue in school unless it requires such certification for all students for other physical or emotional conditions requiring the attention of a physician.
3. Children, infants and toddlers are not allowed in the instructional areas of the school. Parenting students are expected to contact school administration if they are unable to attend school that day due to an issue with child care.

Medical Emergency Response Plan

Medication Policy

As a general policy, no medication will be dispensed at school except that designated as emergency medication. Examples of such emergency medications are those required for diabetic reactions, asthmatic attacks, and anaphylactic reactions. With other medications, students are to have their schedule arranged by their family doctor so as to avoid needing medication during school hours. These include medicines required three or four times a day. This policy does not apply to psychotropic medication covered under the regulations found in Massachusetts General Laws Chapter 71 section 54B.

Any medications dispensed at school must be kept in the original pharmacy bottle. These medications must be accompanied by a medication permission form, which has been signed by the doctor and parent/guardian. Forms are available through the school nurse's office.

Medication will be dispensed by the school nurse or a designated trainee only when absolutely necessary in accordance with the school policy and will not be dispensed after regular school hours. Each school will be responsible for maintaining a current and accurate record of all students attended to and actions taken.

Inhaler Use

A doctor's order is required for inhaler (inhalation therapy) use. Medical documentation must be in the student's medical record. Students will be responsible for their inhalers. The student's

name must be on the inhaler. Students who use an inhaler may be required to have it with them to

participate in physical education class.

Non-Prescription Drugs
A Medication Permission Form completed by the parent/guardian must accompany any medication that must be administered in school, including aspirin or any other over-the-counter drugs. All non-prescription drugs/over the counter medication must be stored in the nurse's office and be in their original containers. These will be dispensed by the school nurse. Vitamins, energy supplements, and energy drinks are not allowed and should not be brought to school.

Note: Failure to comply with the Prescription/Non-Prescription Drug Policy may result in disciplinary action.

Physical Examination for Sports
Any student trying out for interscholastic athletic teams must secure a physical examination by his/her physician before the start of the season. A copy of a physical completed within 13 months of the tryout date is acceptable, but the record must be on file with the school nurse. The school nurse will determine if a student has met this requirement.

Substance Use Prevention Policy & Use of Verbal Screening
The Substance Use Prevention Policy of the Spencer East Brookfield Regional School District aims to promote prevention and early intervention for adolescents at risk for substance use. This is accomplished by providing the mandated annual verbal screening of students for substance use disorders (Mass. General Law chapter 71, sec 97) in grade 8 and 9. The verbal screening approach is referred to as the "Screening, Brief intervention and Referral to Treatment" (SBIRT) which utilizes the evidence based CRAFFT screening tool to structure the conversation and interaction with students on the subject of substance use. Screening, Brief Intervention and Referral to Treatment is a public health approach to deliver early interventions regarding substance use. The interventions can range from positive reinforcement, for students making healthy choices, to referrals for those students at risk. The SBIRT components are:
"S"creening- Short, well tested questionnaire identifies risk (CRAFFT) interview.
"B"rief "**I"**ntervention- Short, structured conversations that feature feedback and options for change. **"R"**eferral- For in-depth assessment and/or need for "**T"**reatment.
This screening will remain anonymous **unless there is "substantial" risk of harm**. Aggregate screening data that is deidentified is communicated to the Department of Public Health annually. The interview process is private and confidential
and delivered by specially trained staff.

This is a harm prevention program. All students will receive some educational material and a resource list. Students "at risk" have referral to counseling staff and/or community resources. Results of screening are not part of the **student's health record**.

The mandated annual verbal screening will be communicated to parents, students and community in advance and will be posted on the district/school website. Participation is voluntary, student may choose not to answer any or all of the screening questions. Parents can choose to opt out of the screening **by contacting the school nurse**.

STUDENT SAFE LEARNING ENVIRONMENT

All students deserve the opportunity to work and learn in an environment of mutual respect. In order to create and maintain such an environment, students must treat each other with courtesy, consideration, and appreciation. The Spencer East Brookfield community is committed to adhering to the Spencer East Brookfield policy of providing a learning environment and work atmosphere for students, employees, and visitors that is free from harassment, bullying, hazing, and intimidation. Therefore, harassment, bullying, hazing, or intimidation in all forms is prohibited in all schools.

Hazing and Harassment
Every student has the right to attend this school without being threatened or intimidated by other students. If for any reason a student is threatened, harassed, or bullied at school or while on the school

bus, the student should report the incident to a teacher or the school administration. If a student observes such behavior he/she should report the incident to a teacher or the administration. Students found guilty will be punished with a detention or suspension; said individuals may also face consequences as defined by state law.

In 1985 it became illegal to practice hazing in Massachusetts public schools. "Whosoever is a principal organizer or participant in the crime of hazing...will be punished by a fine of not more than one thousand dollars or by imprisonment in a house of correction for not more than one hundred days, or by both such fine and imprisonment." (Acts and Resolves of Massachusetts 1985 Chapter 536). "Hazing" is defined as:

> any conduct or method of initiation into any student organization, whether on public or private property, which willfully or recklessly endangers the physical or mental health of any student or other person. Such conduct shall include whipping, beating, branding, forced calisthenics, exposure to the weather, forced consumption of any food, liquor, beverage, drug or other substance, or any other brutal treatment or forced physical activity which is likely to adversely affect the physical health or safety of any such student or other person, or which subjects such student or other person to extreme mental stress, including extended deprivation of sleep or rest or extended isolation. M.G.L. Chapter 269 Section 17

For the full text of the Massachusetts Hazing Law, M.G.L. Chapter 269 Section 17, Section 18, and Section 19 click on the links or See Appendix IV of this document, p. 41.

Bullying

The Bullying Prevention and Intervention Plan is a comprehensive approach to addressing bullying and cyberbullying, and the school is committed to working with students, members of school staff, families, law enforcement agencies, and the community to prevent issues of violence. In consultation with these constituencies, we have established this plan for preventing, intervening, and responding to incidents of bullying, cyberbullying, and retaliation. The principal is responsible for the implementation and oversight of this Plan. Full text and copies of reporting forms are printed in Appendix V of this handbook, 43.

Bullying, pursuant to M.G.L. c. 71, §37O, means the repeated use by one or more students or by a member of a school staff including, but not limited to, an educator, administrator, school nurse, cafeteria worker, custodian, bus driver, athletic coach, advisor to an extracurricular activity or paraprofessional of a written, verbal or electronic expression or a physical act or gesture or any combination thereof, directed at a target that:

(a) causes physical or emotional harm to the target or damage to the target's property;
(b) places the target in reasonable fear of harm to himself or herself or damage to his or her property;
(c) creates a hostile environment at school for the target;
(d) infringes on the rights of the target at school; or
(e) materially and substantially disrupts the education process or the orderly operation of a school.

Bullying shall include cyberbullying.

Aggressor means perpetrator of bullying or retaliation as defined in M.G.L. c. 71, §37O

For further definitions and terms as outlined by DESE please refer to section 49.02 on the following link: https://www.doe.mass.edu/lawsregs/603cmr49.html?section=all

STUDENT SUPPORT SERVICES

School Counseling Services

The school counselors at Knox Trail Middle School are here to provide services to all who are in need and are available for consultation with students, parents, and teachers. School counselors usually meet with individual students and/or small groups, but they may also conduct classroom guidance programs during the course of the school year. Students are encouraged and supported to pursue individualized educational and occupational interests. In addition, guidance in conjunction with clinical staff read, interpret and examine all test results to ensure that they are free from bias. All students who are limited-English proficient and/or disabled are provided adequate service delivery offered by the district.

Publication of Certain Student Information

Under Department of Elementary and Secondary Education regulations, the school may release for publication certain information concerning a student. This information includes but is not limited to the student's name, picture, videos, participation in officially recognized activities and sports, honors, and awards. Parents may request in writing that this information remain confidential.

The school will not release student demographic information to advertisers, recruiters, public or private schools, without written consent of the parent or guardian. (*Please refer to Appendix XIII for more information regarding the District's policy on FERPA.)*

Library/Media Center

- The library media center is open during the regular school day for students.
- Students are encouraged to be responsible with library books – library books should be returned on the due date and all students are responsible for lost, stolen, or damaged books.

Bus Transportation

All bus students will receive a copy of the "Spencer/East Brookfield Regional School District - Bus Rules for Students" on or before the first day of school. Full text is included in Appendix VI of this handbook. Students must familiarize themselves with these rules. Failure to comply with these rules and regulations may result in disciplinary action. Depending on the nature of the infraction, this may include warnings, (as outlined in the bus transportation warning system), detentions, suspensions from the bus, etc. Requests to ride a different bus cannot be honored except in case of an emergency. If there is an emergency, parents must write a note indicating the specific reason for the bus change request. The bus coordinator must also be contacted for approval in order to obtain a bus pass.

There are two dismissal times at Knox Trail. Students boarding the first round of buses should do so immediately. Walkers, students being picked up and students on the second round of buses should remain in homeroom until the bell rings for dismissal. Students awaiting bus arrival should stay back on the sidewalk and wait until their bus stops before boarding. Walkers and parent pick-ups are dismissed at the second bell which is after the first round of buses.

Cafeteria Expectations

Students are expected to conduct themselves in a courteous and orderly manner. There will be no "cutting" of the line. Students are to remain seated during lunch. No food or beverages can be taken from the cafeteria. Students are expected to take their tray, dirty dishes, and trash to the cleaning area once dismissed. Students are to leave the table clean with their chair placed back in position under the table. Inappropriate cafeteria behavior (throwing food, disturbing others, etc.) may result in removal from the cafeteria and/or further disciplinary action.

Fire Drills
Fire drills are required by the law and are held periodically. Instructions are posted in a conspicuous location in each room and corridor. When the alarm sounds, teachers will direct students to a safe area clear of the building where the students are to remain silent and remain together in class groups so teachers can account for all students. These same procedures will be followed in the event of an emergency.

Extracurricular Activities
Knox Trail offers a number of extracurricular activities. All extracurricular activities are nondiscriminatory. The skills and friendships developed in these activities help build the foundation for future success. New clubs and activities are also encouraged – students need only find a sponsor for their particular interest.

Drama Club
Boys & Girls Cross Country
Boys & Girls Basketball
Boys Baseball Girls Softball
Peer Leaders Football
Beginner's Band
National Junior Honor Society
Gaming Club
Art Club
Drama Club
Robotics Club

Eligibility for Participation
Participation in an extracurricular activity is a privilege. Students must maintain acceptable attendance, grades and behavior in order to be eligible.

- Attendance – Student attendance must be in compliance with the Mass General Laws in order to participate. Students struggling with chronic absenteeism/truancy are not eligible to participate in extra-curricular activities.

Grades – Students must pass Mathematics and English in order to be eligible. Any student with more than one F in any other subject will also be deemed ineligible. Academic eligibility will be based on interim progress reports and quarterly grades. Interim grades will determine if a student is eligible to return to participating in extracurricular activities.

- Behavior – Students will not be permitted to participate in activities if they repeatedly violate school rules. If a student receives a detention, the detention must be served before a student reports to an after-school activity. If a student receives a suspension, they are not allowed to attend any after school events (including athletics) on the day(s) of a suspension.

Peer Mediation
The purpose of peer mediation is for students to resolve their differences between peers and an adult observer. Mediation is voluntary and confidential. Everything said in a mediation session will be kept private to the extent possible under the circumstances or unless it is life threatening or illegal. Students can be referred for mediation by faculty, administration, or student request.

Field Trips
Educational field trips are supplemental activities in the schools and are not part of the required curriculum. The sponsoring teachers have the discretion to exclude any student from a field trip for academic or behavioral issues. Participation in after school activities is a privilege. Therefore, administration also reserves the right to deny students who are not academically satisfactory or who have had office referrals within the two weeks prior to activities, from participating. Parents will be notified if their student is not allowed to participate in a field trip.

Money is collected from the students to help defray the cost of transportation and to pay for admission when necessary. In order for a student to participate in the activity, parents must completely fill out and sign the permission slip and return it to school by the announced deadline. A CORI check is required for all trip chaperones, including parental volunteers, who have direct and unsupervised contact with the children.

Dances/Social Events

Dances and social events provided for the students are open to Spencer-East Brookfield students only. Parents should provide transportation to and from the activities, students must have a ride home at the end of the event. Students must remain until the conclusion of the event unless a parent/guardian comes in to pick them up. All school rules are in effect at school functions. Participation in after school activities is a privilege. Therefore, administration reserves the right to deny students who are not academically satisfactory or who have had office referrals within the two weeks prior to activities, from participating. Students will be notified during homeroom, in writing, the day before the event. In cases where the student has a behavior referral the day of the activity, contact will be made home by telephone.

TECHNOLOGY

Electronic Equipment

Upon the discretion of administration, teachers may obtain permission in order to utilize technology (i.e. IPODS, cell phones or other electronic devices) during classroom time. Otherwise, technology can be disruptive to the school environment and are not allowed during school hours. Any student found in possession of an electronic device or using an electronic device during the school day will be given a warning for the first offense, as well as an after school detention. The device will be confiscated at the second offense, as well as an after school detention. The student will be given detentions for multiple offenses thereafter. In addition, a parent will be required to pick up all confiscated electronics. At the discretion of the administration, the student may be able to pick up other confiscated items at the end of the school day. Repeat offenses may result in a conference with the administration.

Massachusetts law strictly prohibits the secret recording of any audio or conversations without the explicit consent of everyone involved (M.G.L. c. 272, § 99**).** To ensure a safe, respectful, and distraction-free learning environment, [School Name] enforces the following rules:

- **No Secret Recording:** Students may not use smartphones, tablets, smartwatches, or any other electronic devices to secretly record audio, video, or photos of teachers, staff, or peers anywhere on school property, school buses, or during school-sponsored events.
- **Consent is Required:** Even if done openly, you must ask for and receive permission from a teacher, administrator, or classmate *before* taking a photo or recording their voice or image.
- **Classroom Disruptions:** Recording during class time without prior teacher approval is considered a disruption to education.
- **Consequences:** Violating this policy will result in disciplinary action, which may include confiscation of the device, parent notification, detention, or suspension. Because secret audio recording is a violation of state law, serious infractions may also be referred to school administration and local law enforcement.

Acceptable Use Policy

Use of the Knox Trail Middle School Network/electronic resources is a privilege and will be extended to individuals as long as the Student Network Agreement is signed and adhered to according to the rules of the Spencer/East Brookfield District Acceptable Use Policy given to each student at the start of the school year. Failure to adhere to the Acceptable Use Policy will result in the termination of this privilege and the student could face additional consequences, including the possibility of detention and/or suspension. **Refer to Appendix VIII.**

Appendices

APPENDIX I - Student Handbook Section 37 H; Suspension and Expulsion Sections 37H 1/2, 37H 3/4.

Publication of District Policies

We actively encourage student, parent, and community involvement in the creation and revision of school policies and procedures. Please direct any questions regarding this student handbook to the administration at 508-885-8550 or via email to the principal, or contact the members of the School Council with your concerns.

MASSACHUSETTS GENERAL LAWS Chapter 71, Sections 37H, 37H1/2, 37H3/4

Section 37H. The superintendent of every school district shall publish the district's policies pertaining to the conduct of teachers and students. Said policies shall prohibit the use of any tobacco products within the school buildings, the school facilities or on the school grounds or on school buses by any individual, including school personnel. Said policies shall further restrict operators of school buses and personal motor vehicles, including students, faculty, staff and visitors, from idling such vehicles on school grounds, consistent with section 16B of chapter 90 and regulations adopted pursuant thereto and by the department. The policies shall also prohibit bullying as defined in section 37O and shall include the student-related sections of the bullying prevention and intervention plan required by said section 37O. Copies of these policies shall be provided to any person upon request and without cost by the principal of every school within the district.

Each school district's policies pertaining to the conduct of students shall include the following: disciplinary proceedings, including procedures assuring due process; standards and procedures for suspension and expulsion of students; procedures pertaining to discipline of students with special needs; standards and procedures to assure school building security and safety of students and school personnel; and the disciplinary measures to be taken in cases involving the possession or use of illegal substances or weapons, the use of force, vandalism, or violation of a student's civil rights. Codes of discipline, as well as procedures used to develop such codes shall be filed with the department of education for informational purposes only.

In each school building containing the grades nine to twelve, inclusive, the principal, in consultation with the school council, shall prepare and distribute to each student a student handbook setting forth the rules pertaining to the conduct of students. The student handbook shall include an age-appropriate summary of the student related sections of the bullying prevention and intervention plan required by section 37O. The school council shall review the student handbook each spring to consider changes in disciplinary policy to take effect in September of the following school year, but may consider policy changes at any time. The annual review shall cover all areas of student conduct, including but not limited to those outlined in this section.

Notwithstanding any general or special law to the contrary, all student handbooks shall contain the following provisions:

(a) Any student who is found on school premises or at school-sponsored or school-related events, including athletic games, in possession of a dangerous weapon, including, but not limited to, a gun or a knife; or a controlled substance as defined in chapter ninety-four C, including, but not limited to, marijuana, cocaine, and heroin, may be subject to expulsion from the school or school district by the principal.

(b) Any student who assaults a principal, assistant principal, teacher, teacher's aide or other educational staff on school premises or at school-sponsored or school-related events, including athletic games, may be subject to expulsion from the school or school district by the principal.

(c) Any student who is charged with a violation of either paragraph (a) or (b) shall be notified in writing of an opportunity for a hearing; provided, however, that the student may have representation, along with the opportunity to present evidence and witnesses at said hearing before the principal. After said hearing, a principal may, in his discretion, decide to suspend rather than expel a student who has been determined by the principal to have violated either paragraph (a) or (b).

(d) Any student who has been expelled from a school district pursuant to these provisions shall have the right to appeal to the superintendent. The expelled student shall have ten days from the date of the expulsion in which to notify the superintendent of his appeal. The student has the right to counsel at a hearing before the superintendent. The subject matter of the appeal shall not be limited solely to a factual determination of whether the student has violated any provisions of this section.

(e) Any school district that suspends or expels a student under this section shall continue to provide educational services to the student during the period of suspension or expulsion, under section 21 of chapter 76. If the student moves to another district during the period of suspension or expulsion, the new district of residence shall either admit the student to its schools or provide educational services to the student in an education service plan, under section 21 of chapter 76.

(f) Districts shall report to the department of elementary and secondary education the specific reasons for all suspensions and expulsions, regardless of duration or type, in a manner and form established by the commissioner. The department of elementary and secondary education shall use its existing data collection tools to obtain this information from districts and shall modify those tools, as necessary, to obtain the information. On an annual basis, the department of elementary and secondary education shall make district level de-identified data and analysis, including the total number of days each student is excluded during the school year, available to the public online in a machine readable format. This report shall include district level data disaggregated by student status and categories established by the commissioner.

(g) Under the regulations promulgated by the department, for each school that suspends or expels a significant number of students for more than 10 cumulative days in a school year, the commissioner shall investigate and, as appropriate, shall recommend models that incorporate intermediary steps prior to the use of suspension or expulsion. The results of the analysis shall be publicly reported at the school district level.

Section 37H1/2. Notwithstanding the provisions of section eighty-four and sections sixteen and seventeen of chapter seventy-six:

(1) Upon the issuance of a criminal complaint charging a student with a felony or upon the issuance of a felony delinquency complaint against a student, the principal or headmaster of a school in which the student is enrolled may suspend such student for a period of time determined appropriate by said principal or headmaster if said principal or headmaster determines that the student's continued presence in school would have a substantial detrimental effect on the general welfare of the school. The student shall receive written notification of the charges and the reasons for such suspension prior to such suspension taking effect. The student shall also receive written notification of his right to appeal and the process for appealing such suspension; provided, however, that such suspension shall remain in effect prior to any appeal hearing conducted by the superintendent. The student shall have the right to appeal the suspension to the superintendent. The student shall notify the superintendent in writing of his request for an appeal no later than five calendar days following the effective date of the suspension. The superintendent shall hold a hearing with the student and the student's parent or guardian within three calendar days of the student's request for an appeal. At the hearing, the student shall have the right to present oral and written testimony on his behalf, and shall have the right to counsel. The superintendent shall have the authority to overturn or alter the decision of the principal or headmaster, including recommending an alternate educational program for the student. The superintendent shall render a decision on the appeal within five calendar days of the hearing.

Such a decision shall be the final decision of the city, town or regional school district with regard to the suspension.

(2) Upon a student being convicted of a felony or upon an adjudication or admission in court of guilt with respect to such a felony or felony delinquency, the principal or headmaster of a school in which the student is enrolled may expel said student if such principal or headmaster determines that the student's continued presence in school would have a substantial detrimental effect on the general welfare of the school. The

student shall receive written notification of the charges and reasons for such expulsion prior to such expulsion taking effect. The student shall also receive written notification of his right to appeal and the process for appealing such expulsion; provided, however, that the expulsion shall remain in effect prior to any appeal hearing conducted by the superintendent. The student shall have the right to appeal the expulsion to the superintendent. The student shall notify the superintendent, in writing, of his request for an appeal no later than five calendar days following the effective date of the expulsion. The superintendent shall hold a hearing with the student and the student's parent or guardian within three calendar days of the expulsion. At the hearing, the student shall have the right to present oral and written testimony on his behalf, and shall have the right to counsel. The superintendent shall have the authority to overturn or alter the decision of the principal or headmaster, including recommending an alternate educational program for the student. The superintendent shall render a decision on the appeal within five calendar days of the hearing. Such decisions shall be the final decision of the city, town or regional school district with regard to the expulsion. Any school district that suspends or expels a student under this section shall continue to provide educational services to the student during the period of suspension or expulsion, under section 21 of chapter 76. If the student moves to another district during the period of suspension or expulsion, the new district of residence shall either admit the student to its schools or provide educational services to the student under an education service plan, under section 21 of chapter 76.

Section 37H3/4.

(a) This section shall govern the suspension and expulsion of students enrolled in a public school in the commonwealth who are not charged with a violation of subsections (a) or (b) of section 37H or with a felony under section 37H1/2.

(b) Any principal, headmaster, superintendent or other person acting as a decision-maker at a student meeting or hearing, when deciding the consequences for the student, shall exercise discretion; consider ways to reengage the student in the learning process; and avoid using expulsion as a consequence until other remedies and consequences have been employed.

(c) For any suspension or expulsion under this section, the principal or headmaster of a school in which the student is enrolled, or a designee, shall provide, to the student and to the parent or guardian of the student, notice of the charges and the reason for the suspension or expulsion in English and in the primary language spoken in the home of the student. The student shall receive the written notification and shall have the opportunity to meet with the principal or headmaster, or a designee, to discuss the charges and reasons for the suspension or expulsion prior to the suspension or expulsion taking effect. The principal or headmaster, or a designee, shall ensure that the parent or guardian of the student is included in the meeting, provided that such meeting may take place without the parent or guardian only if the principal or headmaster, or a designee, can document reasonable efforts to include the parent or guardian in that meeting. The department shall promulgate rules and regulations that address a principal's duties under this subsection and procedures for including parents in student exclusion meetings, hearings or interviews under this subsection.

(d) If a decision is made to suspend or expel the student after the meeting, the principal or headmaster, or a designee, shall update the notification for the suspension or expulsion to reflect the meeting with the student. If a student has been suspended or expelled for more than 10 school days for a single infraction or for more than 10 school days cumulatively for multiple infractions in any school year, the student and the parent or guardian of the student shall also receive, at the time of the suspension or expulsion decision, written notification of a right to appeal and the process for appealing the suspension or expulsion in English and in the primary language spoken in the home of the student; provided, however, that the suspension or expulsion shall remain in effect prior to any appeal hearing. The principal or headmaster or a designee shall notify the superintendent in writing, including, but not limited to, by electronic means, of any out-of-school suspension imposed on a student enrolled in kindergarten through grade 3 prior to such suspension taking effect. That notification shall describe the student's alleged misconduct and the reasons for suspending the student out of-school. For the purposes of this section, the term "out-of-school suspension" shall mean a disciplinary action imposed by school officials to remove a student from participation in school activities for 1 day or more.

(e) A student who has been suspended or expelled from school for more than 10 school days for a single infraction or for more than 10 school days cumulatively for multiple infractions in any school year shall have the right to appeal the suspension or expulsion to the superintendent. The student or a parent or guardian of the student shall notify the superintendent in writing of a request for an appeal not later than 5 calendar days following the effective date of the suspension or expulsion; provided, that a student and a parent or guardian of the student may request, and if so requested, shall be granted an extension of up to 7 calendar days. The superintendent or a designee shall hold a hearing with the student and the parent or guardian of the student within 3 school days of the student's request for an appeal; provided that a student or a parent or guardian of the student may request and, if so requested, shall be granted an extension of up to 7 calendar days; provided further, that the superintendent, or a designee, may proceed with a hearing without a parent or guardian of the student if the superintendent, or a designee, makes a good faith effort to include the parent or guardian. At the hearing, the student shall have the right to present oral and written testimony, cross-examine witnesses and shall have the right to counsel. The superintendent shall render a decision on the appeal in writing within 5 calendar days of the hearing. That decision shall be the final decision of the school district with regard to the suspension or expulsion.

(f) No student shall be suspended or expelled from a school or school district for a time period that exceeds 90 school days, beginning the first day the student is removed from an assigned school building.

APPENDIX II Chapter 622 and Title IX Non-Discrimination Policy

General Information Access to a full range of education programs

All students in the Spencer East Brookfield Regional School district, regardless of race, color, national background, religion, sex, disability, economic status, political party, age, handicap, sexual orientation, homelessness, gender identity and other human differences, have equal access to the general education program and the full range of any occupational/vocational education programs offered by the
district. Title VI: 42 U.S.C. 2000d; 34 CFR 100.3(a), (b); EEOA: 20 U.S.C. 1703(f); Title IX: 20 U.S.C. 1681; 34 CFR 106.31, 106.34, 106.35; Section 504: 29 U.S.C. 794; 34 CFR 104.4; Title II: 42 U.S.C. 12132; 28 CFR 35.130; IDEA 2004: 20 U.S.C. 1400; 34 CFR 300.110; NCLB: Title III, Part A, Sec. 3121(c)(1)(C); Title X, Part C, Secs. 721,
722(g)(4); Mass. Const. amend. art. 114; M.G.L. c. 71A, s. 7; c. 76, s. 5; 603 CMR 26.03

The Spencer-East Brookfield Regional School District's Policy of non-discrimination will extend to students, staff, the general public and individuals with whom it does business; and will apply to race, color, national background, religion, sex, disability, economic status, political party, age, handicap, sexual orientation, homelessness, gender identity and other human differences.

These laws are in accordance with M.G.L. c.76, s.5 and are based in the following: • Title VI of the Civil Rights Act of 1964 (prohibiting race, color, and national origin discrimination) • Title IX of the Education Amendments of 1972 (prohibiting sex discrimination) • Section 504 of the Rehabilitation Act of 1973 (prohibiting disability discrimination) • Age Discrimination Act of 1975 (prohibiting age discrimination)

- Title II of the Americans with Disabilities Act of 1990 (prohibiting disability discrimination by public entities, including public school districts, public colleges and universities, public vocational schools, and public libraries, whether or not they receive Federal financial assistance)

The Spencer-East Brookfield Regional School District's Civil Rights Coordinator is, Director of Pupil Services, 302 Main Street, Spencer, MA 01562. The Director of Pupil Services can be reached at (508) 8858515.

Procedure for filing a Discrimination Complaint Regarding Title VI, Title IX, and Section 504 – If you believe that you have been discriminated against because of your race, color, national background, religion, sex, disability, economic status, political party, age, handicap, sexual orientation, homelessness, gender identity and other human differences, please file a written complaint with the Spencer-East Brookfield Regional School District Civil Rights Coordinator within 30 days of the date of the alleged discriminatory act. The district's Civil Rights Coordinator is the Director of Pupil Services, 302 Main Street, Spencer, MA 01562. Please include the following information in writing when filing a complaint:

- Your name, address and telephone number. You must sign your name. (If you are filing a complaint on someone's behalf, include your name, address, telephone number, and a statement of your relationship to the individual – e.g., spouse, attorney, friend).
- Name and address of the institution or agency you believe discriminated against you. • How, why, and when you believe you were discriminated against. Any other relevant information.

In an effort to resolve the complaint, The Director of Pupil Services will convene a mediation session with all involved parties. If the mediation session is unable to resolve the complaint, all involved parties will meet with the Superintendent of Schools. If, after all these attempts have been made, the complaint has still not been resolved, the complainant may obtain an Office of Civil Rights (OCR) Complaint Form from the Director of Pupil Services, who will also assist the complainant in completing the form. The complaint must be filed with OCR within 180 days from the date of the alleged discriminatory act. The OCR may extend the 180-day period if good cause is shown.

Please refer to Appendix XI for the SEBRSD Sexual Harassment/Title IX Policy, and Appendix XII for the district's Title IX Sexual Harassment Grievance Procedure

Send Form To:

Office for Civil Rights (617) 565-3809 Fax U.S. Department of Health & Human Services (617) 565-1340;
JFK Federal Building – Room 1875, Boston, MA 02203 (617) 565-1343 (TDD) Any recipient of a discrimination complaint may not retaliate against any person who has made a complaint, testified, assisted, or participated in any manner in an investigation or proceeding under the five statutes listed above.

APPENDIX III Special Education Referral Process

The purpose of 603 CMR 28.00 is to ensure that eligible Massachusetts students receive special education services designed to develop the student's individual educational potential in the least restrictive environment in accordance with applicable state and federal laws.

The pre-referral process is as follows for student not yet determined eligible for special education–more specifically, these are examples of general education interventions:

1. Change the amount or type of work the child is required to do;
2. Change ability levels;
3. Change reading levels;
4. Change teachers and/or classes;
5. Provide tutorial help after school;
6. Work on a behavior modification program;
7. Provide counseling services through the guidance department;
8. Parent conferences;
9. Progress reports to parents.

Initial questions regarding the pre-referral process should be directed to the building principal.

Parents may submit a formal request in writing to have the child tested for special education services at any time. A letter outlining the specific area of concern for the child may be submitted to: Director of Pupil Services, Spencer-East Brookfield Regional School District, 302 Main Street, Spencer, MA 01562.

Special Education services are provided in the following areas:

1. Behavior and Emotional Needs – Classes for students with adjustment problems and students with re-integration into the regular classroom;
2. Specific Learning Needs – Learning Disability Programs assist students needing help in learning skills through tutorial services, individualized learning help and resource rooms; 3. Generic Needs – Programs and classes for special needs children with limited intellectual ability allow students to progress at their own rate. Students focus on basic educational skills and needs while taking part in regular activities for their grade, whenever possible;
4. Vision Needs – Itinerant teachers provide the partially sighted or blind child with special aids and instruction that the child need to adapt to the visual limitations and increase participation in regular classrooms.
5. Auditory Needs – Teachers help students with hearing loss to acquire needed communication and language skills so that they can function in the regular classroom whenever possible.
6. Speech & Language Needs – Speech services are available to those with various impediments and difficulties in speech. Itinerant teachers plan individual programs using a multi-sensory approach.
7. Mobility & Orientation Needs – Physical and Occupational therapy programs are for those physically handicapped who need services in specific functional areas such as the development and use of limbs and muscles for schoolwork now and actual work in the future.
8. Inclusion Services – Services for those children in the school who require need extra help in various subjects in the classroom/least restrictive environment during the school day; 9. Pre-school Programs for the Multiple Impaired – Prepare the child for the school
experience by emphasizing readiness skills in specific areas of learning and physical needs;
9. Alternative Programs – Redefine the school experience, combining academic work with prevocational training for students with different educational needs; 0. Adjustment counseling – Students experiencing behavioral, social, or other adjustment problems may receive counseling from a certified adjustment counselor.

APPENDIX IV Hazing

Massachusetts Hazing Law Commonwealth of Massachusetts General Laws 269:17, 18, 19

Section 17. HAZING: ORGANIZING OR PARTICIPATING: HAZING DEFINED. Whoever is a principal organizer or participant in the crime of hazing, as defined herein, shall be punished by a fine of not more than three thousand dollars or by imprisonment in a house of correction for not more than one year, or both such fine and imprisonment.

The term "hazing" as used in this section and in sections eighteen and nineteen, shall mean any conduct or method of initiation into any student organization, whether on public or private property, which willfully or recklessly endangers the physical or mental health of any student or other person. Such conduct shall include whipping, beating, branding, forced calisthenics, exposure to the weather, forced consumption of any food, liquor, beverage, drug or other substance, or any other brutal treatment or forced physical activity which is likely to adversely affect the physical health or safety of any such student or other person, or which subjects such student or other person to extreme mental stress, including extended deprivation of sleep or rest or extended isolation.

Notwithstanding any other provisions of this section to the contrary, consent shall not be available as a defense to any prosecution under this action.

Section 18. FAILURE TO REPORT HAZING.

Whoever knows that another person is the victim of hazing as defined in section seventeen and is at the scene of such crime shall, to the extent that such person can do so without danger or peril to himself or others, report such crime to an appropriate law enforcement official as soon as reasonably practicable. Whoever fails to report such crime shall be punished by a fine of not more than one thousand dollars.

Section 19. **COPIES OF SECS. 17 TO 19, ISSUANCE TO STUDENTS AND STUDENT GROUPS, TEAMS AND ORGANIZATIONS, REPORT.**

Each institution of secondary education and each public and private institution of post secondary education shall issue to every student group, student team or student organization which is part of such institution or is recognized by the institution or permitted by the institution to use its name or facilities or is known by the institution to exist as an unaffiliated student group, student team or student organization, a copy of this section and sections seventeen and eighteen; provided, however, that an institution's compliance with this section's requirements that an institution issue copies of this section and sections seventeen and eighteen to unaffiliated student groups, teams or organizations shall not constitute evidence of the institution's recognition or endorsement of said unaffiliated student groups, teams or organizations.

Each such group, team or organization shall distribute a copy of this section and sections seventeen and eighteen to each of its members, plebes, pledges or applicants for membership. It shall be the duty of each such group, team or organization, acting through its designated officer, to deliver annually, to the institution an attested acknowledgement stating that such group, team or organization has received a copy of this section and said sections seventeen and eighteen, that each of its members, plebes, pledges, or applicants has received a copy of sections seventeen and eighteen, and that such group, team or organization understands and agrees to comply with the provisions of this section and sections seventeen and eighteen.

Each institution of secondary education and each public or private institution of post-secondary education shall, at least annually, before or at the start of enrollment, deliver to each person who enrolls as a full time student in such institution a copy of this section and sections seventeen and eighteen.

Each institution of secondary education and each public or private institution of post-secondary education shall file, at least annually, a report with the board of higher education and in the case of secondary institutions, the board of education, certifying that such institution has complied with its responsibility to inform student groups, teams or organizations and to notify each full time student enrolled by it of the provisions of this section and sections seventeen and eighteen and also certifying that said institution has adopted a disciplinary policy with regard to the organizers and participants of hazing, and that such policy has been set forth with appropriate emphasis in the student handbook or similar means of communicating the institution's policies to its students. The board of higher education and, in the case of secondary institutions, the board of education shall promulgate regulations governing the content and frequency of such reports, and shall forthwith report to the attorney general any such institution which fails to make such report.

APPENDIX V Bullying

Spencer East Brookfield Regional School District Bullying Prevention and Intervention Plan

I. Leadership

School leaders have a primary role in teaching students to be civil to one another by promoting an understanding of – and respect for – diversity and difference. School leadership is a shared responsibility and all school leaders are responsible for setting priorities and for staying up to date with current research on ways to effectively prevent and respond to bullying.

A. Public Involvement: Massachusetts General Law Chapter 71 Section 370 requires each school's Bullying Prevention and Intervention Plan be developed in consultation with a variety of stakeholders including, but not limited to, teachers, administrators, school staff, parents, and students. The following individuals share this responsibility:

Principal and Assistant Principal
Guidance Counselor
Student Support Team – Administration, Guidance Counselor, School Nurse,
Adjustment Counselor(s), Special Education Staff, and School/District Psychologist School Council
Faculty supervisors of Peer Mediation
Parent Teacher Organization
Professional Development Committee

B. Assessing needs and resources: The school leaders will assess the adequacy of the current programs; review current policies and procedures; review all available data on bullying and behavioral incidents, and continue to assess all resources including curricula, training programs, and behavioral health services.

- The Student Support Team and the School Council will assess the adequacy of current programs, review current policies and procedures, and review available data on bullying and behavioral incidents to reveal patterns of behavior and areas of concern. When patterns and areas of concern are prevalent, the School Improvement Plan will be revised to provide prevention and intervention strategies through age-appropriate curricula and in school counseling, group treatment, mediation and other school support services.

- The Student Support Team will collect and analyze data on the prevalence and characteristics of bullying. The Student Support team will also conduct annual staff, student, and parent surveys to assess school safety and climate.

- The Student Support Team will administer a student survey developed by the Department of Elementary and Secondary Education every four years to assess school climate and the prevalence, nature and severity of bullying in schools. The results will be used to assess the effectiveness of bullying prevention curricula and instruction required by law.

- The Professional Development Committee, in partnership with the Student Support team, will review curricula, training programs, and behavioral health services available to the school. The committee will keep a record of the bullying prevention and intervention curricula delivered within the building, and coordinate professional development for the entire staff.

Where necessary and appropriate, both the Student Support Team and Professional Development Committee will partner with parents and outside agencies including You Inc., Community Health Link, the District

Attorney's office, the Department of Children and Families, the Massachusetts Aggression Reduction Center, and other social service agencies to meet the needs of the building.

C. Planning and Oversight: The following stakeholders will be responsible for the following tasks within the plan:

1. Administration and Guidance will be responsible for handling all complaints of bullying. All bullying incidents must be reported to the Principal, Assistant Principal or Guidance Counselor.

2. The Student Support Team and the School Council will collect and analyze building and/or school wide data on bullying to assess the extent of the problem and to measure outcomes. When necessary and appropriate, these two groups will make recommendations to amend the School Improvement Plan.

3. Administration and Guidance will record and track all incident reports and have access to all information related to targets and aggressors.

4. The Professional Development Committee and the Administration will plan for ongoing professional development and supervise the curricula of the school.
   Administration will arrange for the District Attorney's office to provide all staff with bullying prevention and intervention training annually. The committee will also review and approve readings and discussion topics within the ELA curriculum and evidenced-based lessons within the Physical Health and Education curriculum to specifically address bullying prevention.

5. The Student Support Team will plan supports that respond to the needs of targets and aggressors.

6. Administration and the School Council will work to choose and implement curricula that the school or district will use. In addition, trained peer mediation supervisors will provide training to students on bullying prevention, mediation, and peer leadership. In addition, these trained peer mediation supervisors will choose a group of students and train them in conflict mediation and bullying prevention, and the student support team will meet weekly to review all student concerns, prevention, and intervention planning.

7. The Student Support Team, the Parent Teacher Organization, and the School Council will review all policies and protocols relating to the plan.

8. Administration will conduct an annual review of student and staff handbooks and codes of conduct and amend these documents in accordance with data supported recommendations and Massachusetts General Laws.

9. Administration, Guidance Counselor, and the Student Support Team will engage families through annual surveys and through the provision of informational materials. All parents will be invited to attend a bullying prevention training provided by the District Attorney's office.
10. Administration, the Student Support Team, and the School Council will annually review and update the Plan.

D. Priority Statement: All students deserve the opportunity to work and learn in an environment of mutual respect. In order to create and maintain such an environment, students must treat each other with courtesy, consideration, and appreciation. The Spencer East Brookfield community is committed to adhering to the Spencer East Brookfield policy of providing a learning environment and work atmosphere for students, employees, and visitors that is free from harassment, bullying, hazing, and intimidation. Therefore, harassment, bullying, hazing, or intimidation in all forms is prohibited in all schools and will not be tolerated.

We will support this commitment in all aspects of our school community, including curricula, instructional programs, staff development, extracurricular activities, interventions, and parent/guardian involvement.

The Bullying Prevention and Intervention Plan is a comprehensive approach to addressing bullying and cyberbullying, and the school is committed to working with students, staff, families, law enforcement agencies, and the community to prevent issues of violence. In consultation with these constituencies, we have established this Plan for preventing, intervening, and responding to incidents of bullying, cyberbullying, and retaliation. The principal is responsible for the implementation and oversight of this Plan.

We understand that members of certain student groups may be more vulnerable to becoming targets of bullying, harassment, or teasing based on actual or perceived characteristics, including race, color, religion, ancestry, national origin, sex, socioeconomic status, homelessness, academic status, gender identity or expression, physical appearance, pregnant or parenting status, sexual orientation, or mental, physical, developmental or sensory disability, or by association with a person who has or is perceived to have one or more of these characteristics. The District takes specific steps to create a safe, supportive environment for vulnerable populations in the school community, and provide all students with the skills, knowledge, and strategies to prevent or respond to bullying, harassment, or teasing.

II. Training and Professional Development

A. Training and responsibilities: Annual training for all school staff will occur no later than October 30th of each school year. The Professional Development Committee will facilitate this training, and is responsible for informing the staff of the following responsibilities:

- Teachers will immediately report to the Principal, Assistant Principal, or Guidance Counselor any incident that meets the criteria for bullying as outlined in M.G.L. c. 71, § 37O.
- ELA and Health and Physical Education teachers will work with the Professional Development Committee and other instructional departments to develop and implement bullying prevention curricula and activities.
- All staff will use the curricular resources available through the Massachusetts Aggression Reduction Center to guide their work.
- Staff members hired after the start of the school year will participate in school-based training during the school year in which they are hired, unless they can demonstrate participation in an acceptable and comparable program within the last two years.
- Each year, at least one member of the Professional Development Committee will attend a seminar or workshop on current practices in the field of bullying prevention and intervention and share these findings with the Committee.
- Section IV of Policies and Procedures describes the steps that the principal or designee will follow upon receipt of a report of bullying or retaliation.

B. Ongoing professional development: The goal of professional development is to establish a common understanding of tools necessary for staff to create a school climate that promotes safety, civil communication, and respect for differences. Professional development will build the skills of staff members to prevent, identify, and respond to bullying. As required by M.G.L. c. 71, § 37O, the content of school wide and district-wide professional development will be informed by research and will include information on:

(i) Developmentally (or age-) appropriate strategies to prevent bullying;

(ii) **Developmentally** (or age-) appropriate strategies for immediate, effective interventions to stop bullying incidents;

(iii) Information regarding the complex interaction and power differential that can take place between and among an aggressor, target, and witnesses to the bullying;

(iv) Research findings on bullying, including information about specific categories of

students who have been shown to be particularly at risk for bullying in the school environment; (v)

Information on the incidence and nature of cyberbullying; and
(vi) Internet safety issues as they relate to cyberbullying.

Professional development will also address ways to prevent and respond to bullying or retaliation for students with disabilities that must be considered when developing students' Individualized Education Programs (IEPs). This will include a particular focus on the needs of students with autism or students whose disability affects social skills development.

Additional areas identified by the school or district for professional development may include: • Promoting and modeling the use of respectful language;
• Fostering an understanding of and respect for diversity and difference;
• Building relationships and communicating with families;
• Constructively managing classroom behaviors;
• Using positive behavioral intervention strategies;
• Applying constructive disciplinary practices;
• Teaching students skills including positive communication, anger management, and empathy for others;
• Engaging students in school or classroom planning and decision-making; and
• Maintaining a safe and caring classroom for all students.

C. Written notice to staff: Schools will provide all staff with an annual written notice of the Bullying Prevention and Intervention Plan by publishing information about it, including sections related to staff duties, in the school employee handbook and the code of conduct.

III. Access to Resources and Services: A key aspect of promoting positive school climates is ensuring that the underlying emotional needs of targets, aggressors, families, and others are addressed. The following plan has been put in place to assist in this area:

A. Identifying Resources: Students and staff who, by legal definition, have met the criteria for needing services as a target or aggressor will immediately receive support and corrective action as outlined in the school policy prohibiting harassment and bullying. Student specific services are outlined under the Counseling and other services section below.

B. Counseling and other services: Assessment of need will be initially determined by Guidance or Administration. Where necessary and appropriate, consultation with the Student Support Team will also occur. Both teams may implement any or all of the following possible interventions:

- School Based Counseling from any or all of the following members of the Student Support Team (Guidance, School adjustment Counselor, School psychologist, Assistant Principal, C.H.L. clinician).

- School Based Psycho-Educational Group programs provided by a member of the Student Support Team
- Peer Mediation provided by trained peer and staff mediators.
- In addition to appropriate consequences, a Restorative Justice/Practices conference may be convened for the purpose of:

(i.) Restoring relationships that have been negatively impacted;
(ii.) Holding people accountable for their misbehavior; and;
(iii.) Preserving the dignity of all parties.

These conferences will be chaired and conducted by the Conflict Mediation Advisor(s), the Guidance Counselor, and/or the School Psychologist.

- Safety Planning and Assessments for targets and aggressors provided by the School Psychologist, Assistant Principal, Guidance, Adjustment Counselor, or Positive Strategies Program Instructor.

- Early Intervention Assessment and Planning including Functional Behavioral Assessments and Behavior Intervention Planning provided by the Special Education Staff, the Guidance Counselor, and the School Psychologist.

- Partnership with – and referrals to – You Inc., Community Health Link, Department of Children and Families and other related agencies through the Student Support Team.

- Partnership with Children's Behavioral Health Initiative (C.B.H.I.) and the Mobile Crisis Team for Medicaid specific students. Referrals provided by any member of the Student Support Team.

- Any other services identified by the Student Support Team as needed.

C. Students with disabilities: As required by M.G.L. c. 71B, § 3, as amended by Chapter 92 of the Acts of 2010, when the IEP Team determines the student has a disability that affects social skills development or the student may participate in – or is vulnerable to – bullying, harassment, or teasing because of his/her disability, the Team will consider what should be included in the IEP to develop the student's skills and proficiencies to avoid and respond to bullying, harassment, or teasing.

D. Referral to Outside Services: Students who have been identified in need of services beyond the scope of what the school can provide will be referred to an outside agency for services and interventions.

IV. Academic and Non- Academic Activities

A. Specific bullying prevention approaches: Bullying prevention curricula will be informed by current research based on the Massachusetts Aggression Reduction Center model and will emphasize the following approaches:

- Using scripts and role plays to develop skills;
- Empowering students to take action by knowing what to do when they witness other students engaged in acts of bullying or retaliation, including seeking adult assistance;
- Helping students understand the dynamics of bullying and cyberbullying, including the underlying power imbalance;
- Emphasizing cyber safety, including safe and appropriate use of electronic communication technologies;
- Enhancing students' skills for engaging in healthy relationships and respectful communications • Engaging students in a safe, supportive school environment that is respectful of diversity and difference.

Initiatives will also teach students about the student-related sections of the Bullying Prevention and Intervention Plan. Administration and staff will review the plan with students annually, and this review will occur no later than the end of the first quarter of school. To date, students in all schools received training on various dates provided by the District Attorney's office, the first of which occurred on September 22, 2011.

B. General teaching approaches that support bullying prevention efforts: The following approaches are integral to establishing a safe and supportive school environment. These underscore the importance of our bullying intervention and prevention initiatives:

- Setting clear expectations for students and establishing school and classroom routines; •

Creating safe school and classroom environments for all students, including for students with disabilities, lesbian, gay, bisexual, transgender students, and homeless students;

• Using appropriate and positive responses and reinforcement, even when students require discipline; • Using positive behavioral supports;
• Encouraging adults to develop positive relationships with students;
• Modeling, teaching, and rewarding pro-social, healthy, and respectful behaviors; • Using positive approaches to behavioral health, including collaborative problem solving, conflict resolution training, teamwork, and positive behavioral supports that aid in social and emotional development;
• Using the Internet safely; and
• Supporting students' interest and participation in non-academic and extracurricular activities, particularly in their areas of strength.

V. POLICIES AND PROCEDURES FOR REPORTING AND RESPONDING TO BULLYING AND RETALIATION

I. Policy Prohibiting Peer Harassment and Bullying

A. **Reporting bullying or retaliation**: Reports of bullying or retaliation may be made by staff, students, parents or guardians, or others, and may be oral or written. Oral reports made by or to a staff member will be recorded in writing. A school or district staff member is required to report immediately to the principal or designee any instance of bullying or retaliation the staff member becomes aware of or witnesses. This includes reports of bullying by other students, staff, or administrators. Reports made by students, parents or guardians, or other individuals who are not school or district staff members, may be made anonymously by….The school or district will make a variety of reporting resources available to the school community including, but not limited to, an Incident Reporting Form,[1] a voicemail box, a dedicated mailing address, and an email address.

Use of an Incident Reporting Form is not required as a condition of making a report. The school or district will: 1) include a copy of the Incident Reporting Form in the beginning of the year packets for students and parents or guardians; 2) make it available in the school's main office, the counseling office, the school nurse's office, and other locations determined by the principal or designee; and 3) post it on the school's website. The Incident Reporting Form will be made available in the most prevalent language(s) of origin of students and parents or guardians.

At the beginning of each school year, the school or district will provide the school community, including administrators, staff, students, and parents or guardians, with written notice of its policies for reporting

acts of bullying and retaliation. A description of the reporting procedures and resources, including the name and contact information of the principal or designee, will be incorporated in student and staff handbooks, on the school or district website, and in information about the Plan that is made available to parents or guardians.

1. Reporting by Staff

A staff member will report immediately to the principal or designee when he/she witnesses or becomes aware of conduct that may be bullying or retaliation. The requirement to report to the principal or designee does not limit the authority of the staff member to respond to behavioral or disciplinary incidents consistent with school or district policies and procedures for behavior management and discipline.

2. Reporting by Students, Parents or Guardians, and Others

The school or district expects students, parents or guardians, and others who witness or become aware of an instance of bullying or retaliation involving a student to report it to the principal or designee. Reports may be made anonymously, but no disciplinary action will be taken against an alleged aggressor solely on the basis of an anonymous report. Students, parents or guardians, and others may request assistance from a staff member to complete a written report. Students will be provided practical, safe, private and

age-appropriate ways to report and discuss an incident of bullying with a staff member, or with the principal or designee.

B. Responding to a report of bullying or retaliation:

1. Safety

Before fully investigating the allegations of bullying or retaliation, the principal or designee will take steps to assess the need to restore a sense of safety to the alleged target and/or to protect the alleged target from possible further incidents. Responses to promote safety may include, but not be limited to, creating a personal safety plan; pre-determining seating arrangements for the target and/or the aggressor in the classroom, at lunch, or on the bus; identifying a staff member who will act as a "safe person" for the target; and altering the aggressor's schedule and access to the target. The principal or designee will take additional steps to promote safety during the course of and after the investigation, as necessary.

The principal or designee will implement appropriate strategies for protecting from bullying or retaliation a student who has reported bullying or retaliation, a student who has witnessed bullying or retaliation, a student who provides information during an investigation, or a student who has reliable information about a reported act of bullying or retaliation.

2. Obligations to Notify Others

a. **Notice to parents or guardians.** Upon determining that bullying or retaliation has occurred, the principal or designee will promptly notify the parents or guardians of the target and the aggressor of this, and of the procedures for responding to it. There may be circumstances in which the principal or designee contacts parents or guardians prior to any investigation. Notice will be consistent with state regulations at 603 CMR 49.00.

b. **Notice to Another School or District**. If the reported incident involves students from more than one school district, charter school, non-public school, approved private special education day or residential school, or collaborative school, the principal or designee first informed of the incident will promptly notify by telephone the principal or designee of the other school(s) of the incident so that each school may take appropriate action. All communications will be in accordance with state and federal privacy laws and regulations, and 603 CMR 49.00.

c. **Notice to Law Enforcement**. At any point after receiving a report of bullying or retaliation, including after an investigation, if the principal or designee has a reasonable basis to believe that criminal charges may be pursued against the aggressor, the principal will notify the local law enforcement agency. Notice will be consistent with the requirements of 603 CMR 49.00 and locally established agreements with the local law enforcement agency. Also, if an incident occurs on school grounds and involves a former student under the age of 21 who is no longer enrolled in school, the principal or designee will contact the local law enforcement agency if he or she has a reasonable basis to believe that criminal charges may be pursued against the aggressor.

In making this determination, the principal will, consistent with the Plan and with applicable school or district policies and procedures, consult with the school resource officer, if any, and other individuals the principal or designee deems appropriate under the circumstances.

C. Investigation: The principal or designee will investigate promptly all reports of bullying or retaliation and, in doing so, will consider all available information known, including the nature of the allegation(s) and the ages of the students involved.

During the investigation the principal or designee will, among other things, interview students, staff, witnesses, parents or guardians, and others as necessary. The principal or designee (or whoever is conducting the investigation) will remind the alleged aggressor, target, and witnesses that retaliation is strictly prohibited and will result in disciplinary action.

Interviews may be conducted by the principal or designee, other staff members as determined by the principal or designee, and in consultation with the school counselor, as appropriate. To the extent practicable, and given his/her obligation to investigate and address the matter, the principal or designee will maintain confidentiality to the extent practicable and within the confines of the law during the investigative process. The principal or designee will maintain a written record of the investigation.

Procedures for investigating reports of bullying and retaliation will be consistent with school or district policies and procedures for investigations. If necessary, the principal or designee will consult with legal counsel about the investigation.

D. Determinations: The principal or designee will make a determination based upon all of the facts and circumstances. If, after investigation, bullying or retaliation is substantiated, the principal or designee will take steps reasonably calculated to prevent recurrence and to ensure that the target is not restricted in participating in school or in benefiting from school activities. The principal or designee will: 1) determine what remedial action is required, if any, and 2) determine what responsive actions and/or disciplinary action is necessary.

Depending upon the circumstances, the principal or designee may choose to consult with the students' teacher(s) and/or school counselor, and the target's or aggressor's parents or guardians, to identify any underlying social or emotional issue(s) that may have contributed to the bullying behavior and to assess the level of need for additional social skills development.

The principal or designee will promptly notify the parents or guardians of the target and the aggressor about the results of the investigation and, if bullying or retaliation is found, what action is being taken to prevent further acts of bullying or retaliation. All notice to parents must comply with applicable state and federal privacy laws and regulations. Because of the legal requirements regarding the confidentiality of student records, the principal or designee cannot report specific information to the target's parent or guardian about the disciplinary action taken unless it involves a "stay away" order or other directive that the target must be aware of in order to report violations.

E. Responses to Bullying*:*

1. Teaching Appropriate Behavior through Skills-building

Upon the principal or designee determining that bullying or retaliation has occurred, the law requires that the school or district use a range of responses that balance the need for accountability with the need to teach appropriate behavior. M.G.L. c. 71, § 37O(d)(v). Skill-building approaches that the principal or designee may consider include:

- offering individualized skill-building sessions based on the school's/district's anti-bullying curricula;
- providing relevant educational activities for individual students or groups of students, in consultation with guidance counselors and other appropriate school personnel;
- implementing a range of academic and nonacademic positive behavioral supports to help students understand pro-social ways to achieve their goals;
- meeting with parents and guardians to engage parental support and to reinforce the anti-bullying curricula and social skills building activities at home;
- adopting behavioral plans to include a focus on developing specific social

skills;
- making a referral for evaluation.

2. Taking Disciplinary Action

If the principal or designee decides that disciplinary action is appropriate, the disciplinary action will be determined on the basis of facts found by the principal or designee, including the nature of the conduct, the age of the student(s) involved, and the need to balance accountability with the teaching of appropriate behavior. Discipline will be consistent with the Plan and with the school's or district's code of conduct.

Discipline procedures for students with disabilities are governed by the federal Individuals with Disabilities Education Improvement Act (IDEA), which should be read in cooperation with state laws regarding student discipline.

If the principal or designee determines that a student knowingly made a false allegation of bullying or retaliation, that student may be subject to disciplinary action.

3. Promoting Safety for the Target and Others

The principal or designee will consider what adjustments, if any, are needed in the school environment to enhance the target's sense of safety and that of others as well. One strategy that the principal or designee may use is to increase adult supervision at transition times and in locations where bullying is known to have occurred or is likely to occur.

Within a reasonable period of time following the determination and the ordering of remedial and/or disciplinary action, the principal or designee will contact the target to determine whether there has been a recurrence of the prohibited conduct and whether additional supportive measures are needed. If so, the principal or designee will work with appropriate school staff to implement them immediately.

VI. COLLABORATION WITH FAMILIES

A. Parent education and resources. The school or district will offer education programs for parents and guardians that are focused on the parental components of the anti-bullying curricula and any social competency curricula used by the district or school. The programs will be offered in collaboration with the PTO, School Councils, Special Education Parent Advisory Council, or similar organizations.

B. Notification requirements. Each year the school or district will inform parents or guardians of enrolled students about the anti-bullying curricula that are being used. This notice will include information about the dynamics of bullying, including cyberbullying and online safety. The school or district will send parents written notice each year about the student-related sections of the Plan and the school's or district's Internet safety policy. All notices and information made available to parents or guardians will be in hard copy and electronic formats, and will be available in the language(s) most prevalent among parents or guardians. The school or district will post the Plan and related information on its website.

VII. Problem Resolution System

Any parent/guardian wishing to file a claim/concern or seeking assistance outside of the District may do so with the Department of Elementary and Secondary Education Program Resolution System (PRS). Information on filing a complaint through PRS can be found at: https://www.doe.mass.edu/prs/intake/default.html. Emails can be sent to compliance@doe.mass.edu. Individuals can call 781-338-3700. Hard copies of this information is also available at Pupil Services at SEBRSD.

VIII. PROHIBITION AGAINST BULLYING AND RETALIATION

Acts of bullying, which include cyberbullying, is prohibited:

(i) on school grounds and property immediately adjacent to school grounds, at a school-sponsored or school-related activity, function, or program whether on or off school grounds, at a school bus stop, on a school bus or other vehicle owned, leased, or used by a school district or school; or through the use of technology or an electronic device owned, leased, or used by a school district or school, and
(ii) at a location, activity, function, or program that is not school-related through the use of technology or an electronic device that is not owned, leased, or used by a school district or school, if the acts create a hostile environment at school for the target or witnesses, infringe on their rights at school, or materially and substantially disrupt the education process or the orderly operation of a school.

Retaliation against a person who reports bullying, provides information during an investigation of bullying, or witnesses or has reliable information about bullying is also prohibited.

As stated in M.G.L. c. 71, § 37O, nothing in this Plan requires the district or school to staff any non-school related activities, functions, or programs.

VIII. DEFINITIONS

Aggressor is a student who engages in bullying, cyberbullying, or retaliation.

Bullying, as defined in M.G.L. c. 71, § 37O, is the repeated use by one or more students of a written, verbal, or electronic expression or a physical act or gesture or any combination thereof, directed at a target that: (i) causes physical or emotional harm to the target or damage to the target's property;

(ii) places the target in reasonable fear of harm to himself or herself or of damage to his or her property;
(iii) creates a hostile environment at school for the target;
(iv) infringes on the rights of the target at school; or
( ) materially and substantially disrupts the education process or the orderly operation of a school.

Cyberbullying, is bullying through the use of technology or any electronic communication, including transfer of signs, signals, writing, images, sounds, data or intelligence of any nature transmitted in whole or in part by a wire, radio, electromagnetic, photo electronic or photo optical system, including but not limited to, email, instant messages, internet communications, text messages, facsimile communications and Internet postings. Cyber-bullying also includes the creation of a web page or blog where the creator assumes the identity of another, or the knowing impersonation of another as the author of posted content or messages, if the creation or impersonation creates any of the conditions listed above in the definition of "Bullying" from (i) through (v). Cyber-bullying is also the distribution by electronic means of a communication to more than one person or the posting of material on an electronic medium accessible by one or more persons where the distribution or posting creates any of the conditions listed in the definition of "Bullying" from (i) through (v). See M.G.L. c. 71, § 37O for the full legal definition of cyberbullying.

Hostile environment, as defined in M.G.L. c. 71, § 37O, is a situation in which bullying causes the school environment to be permeated with intimidation, ridicule, or insult that is sufficiently severe or pervasive to alter the conditions of a student's education.

Retaliation is any form of intimidation, reprisal, or harassment directed against a student who reports bullying, provides information during an investigation of bullying, or witnesses or has reliable information about bullying.

Staff includes, but is not limited to, educators, administrators, counselors, school nurses, cafeteria workers,

custodians, bus drivers, athletic coaches, advisors to extracurricular activities, support staff, or paraprofessionals.

Target is a student against whom bullying, cyberbullying, or retaliation has been perpetrated.

IX. RELATIONSHIP TO OTHER LAWS

Consistent with state and federal laws, and the policies of the school or district, no person will be discriminated against in admission to a public school of any town or in obtaining the advantages, privilege and courses of study of such public school on account of race, color, sex, gender identity, religion, national origin, or sexual orientation. Nothing in the Plan prevents the school or district from taking action to remediate discrimination or harassment based on a person's membership in a legally protected category under local, state, or federal law, or school or district policies.

In addition, nothing in the Plan is designed or intended to limit the authority of the school or district to take disciplinary action or other action under M.G.L. c. 71, §§ 37H or 37H$^{1}/_{2}$, other applicable laws, or local school or district policies in response to violent, harmful, or disruptive behavior, regardless of whether the Plan covers the behavior.

BULLYING PREVENTION AND INTERVENTION INCIDENT REPORTING FORM

KTMS Bullying Incident Reporting Form

**Adapted from DESE Appendix A Sample Form*

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1. **Name of Reporter/Person Fl iing the Report:** ....
   This line may be left. blank if an anonymous reporl is being made
   (Note: Reports may be made anonymously, but no disciplinary action will be taken against an alleged aggressor solely on the basis of an anonymous report.)

2. **Check whether you are the:** g **Target of the behavior** D **Reporter (not the target)**

3. **Check whether you are a:** Ej] **Student** D **Staff member (specify role}:**

   D **Parent** **Administrator** ID **Other (specify):**

   Your contact informatlo n/telephone number=*-*---

4. If **student, stat e your** schooll: **Knox Trall Mli:li:lle Sclioo** **Grade:**

5. **If staff member, state your school or work site:**

6. **Information about the Incident:**

   Name of Target (of behavior):

   Name of Aggressor (Person who engaged in the behavior): _____ _

   Date(s) of Incident.{s) :

   Time When Incident(s) Occurred:

   Location of Incident(s) (Be as specific as possible): _____ _

---

7. **Witnesses** (List people who saw the incident or have infonmation about it}:

   Name: D Student ☐ Staff Oother: **Name:**

   D Student D Staff D Other:

   Name: D Student D Staff D Other:

KTMS Bullying Incident Reporting Form

•Adapted from DESE Appendix A Sample Form

8. Describe the details of the Incident (Including names of people Involved, what occurred, and what each person did and said, Including speciHc words u;sed). Please use additional space on back If necessary.

9. Signature of Person Filing this Report: _____, _____Date:

(Note: Reports may be filed anonymously.)

10: Form Given to: _____, _____;Position: _____'Date: _____, _____

APPENDIX VI SPENCER-EAST BROOKFIELD REGIONAL SCHOOL DISTRICT BUS RULES FOR STUDENTS

WAITING FOR BUS

Students must be waiting at assigned bus stops. Students should arrive at the bus stop at least five minutes before the school bus arrives. **STUDENTS WAIT FOR BUS, BUSES DO NOT WAIT FOR STUDENTS!** Parents/Guardians are responsible for children at bus stops; not the school or bus company. Children should never run after the school bus to try to catch it if they miss their ride.

As the school bus is approaching the bus stop you should wait ten (10) feet back from the road. Do not approach the bus until it has stopped and the driver has opened the door. Bus drivers are to stop only at designated stops and are ***NOT*** to wait for students.

LOADING AND LEAVING BUS

If you must cross the street to board the bus, you should always cross **IN FRONT** of the school bus only after making eye contact with the driver. You should walk at least ten (10) feet in front of the bus so the driver can see you at all times. **IF YOU DROP SOMETHING NEAR OR UNDER THE SCHOOL BUS, *NEVER ATTEMPT TO PICK IT UP.* LET THE DRIVER KNOW AND THE DRIVER WILL TAKE CARE OF IT.**

PLEASE NOTE: Kindergarten students must be met by a parent/guardian in the afternoon or they will not be let off the bus. If a kindergarten students' parent/guardian is not at assigned bus stop, the child will be returned to school, after the bus route is complete. It will be the responsibility of the parent/guardian to pick their child up at school at the after-school program.

IMPORTANT TO REMEMBER

Stay out of the danger zones – around the bus

Always stay at least 10 feet from the school bus

Once inside the school bus, take a seat as quickly as possible and put your belongings on your lap

A school bus cannot be put into motion until all students are seated and orderly

Listen carefully and obey all directions from the driver

You must wait until the school bus comes to a complete stop before standing up to get off

RIDING THE BUS.

• There will be no eating and/or drinking on the bus.

• Do not throw anything on or at the bus.

• Do not extend arms or heads out of the bus. Extending arms and heads out of the bus is very dangerous. • Do NOT change seats. Sit in the seat facing forward with personal belongings on your lap. • Drivers can, and are advised to assign seats.

• No SMOKING – Smoking on a school bus is prohibited and **WILL** result in losing your riding privilege.

• No swearing – inappropriate language will not be tolerated.

• Do not bring anything on the bus that does not fit on your lap.

• No large musical instruments.

• Back packs are to be removed from back and placed on your lap. Back packs on wheels must be picked up and carried to your seat; then placed on your lap. DO NOT WHEEL down aisle or up steps. • No animals - pets, insects (for show and tell), ant farms (science projects), etc.

The driver of any school bus is responsible for the orderly conduct of the students transported. Disorderly conduct or refusal to obey the driver is reason to be denied transportation.

BUS TRANSPORTATION – WARNING SYSTEM

Any students who violate the rules on the bus will receive a BUS TRANSPORTATION WARNING. This must be signed by the parent/guardian and returned to the driver when the student boards the bus the following day. The driver will then submit a copy to the principal, return a copy to the student and keep a copy on the bus.

If a student violates the bus rules for a second time, the driver will report the incident in writing to the Principal. The SECOND BUS TRANSPORTATION WARNING will be issued by the Principal. A second violation will result in a three-day suspension from the bus.

A third violation will result in a meeting of the Principal, the Superintendent, the student, his/her parents/guardian, and a representative of management from the school bus company. If charges against the student are found to be true, the Superintendent will determine a length of time for bus suspension. In such a case, it will be the responsibility of the parent/guardian to provide transportation to school.

BUS PASSES

Students will go home on the bus they are assigned to, and will get off the bus at their assigned stop. Parents requesting any change, must contact the bus company and send a note from home to the school office. The school will then issue a "bus pass" to be given to the bus driver with instructions for that student for the day. ALL BUS PASSES will be signed by the Principal.

Examples of reasons that WILL BE CONSIDERED for approval: after school work (Big Y, McDonalds, Klems, etc.) A babysitter bus route change will only be allowed if for five (5) days per week, and other situation deemed an EMERGENCY BY THE SCHOOL.
Reasons that ARE NOT CONSIDERED ACCEPTABLE would be a bus trip to brownies, cub scouts, birthday parties, to a friend's house after school, etc.

If a child changes residence during the school year, he/she may need to be assigned to a different bus. Buses will not be rerouted to accommodate residential changes.

It is in the best interest of everyone (driver, student, parent and school) that each student behaves on the bus. We should all work together toward that end. PLEASE remember that SAFETY is our #1 concern.

We would appreciate it if you would save these rules and review them periodically.

APPENDIX VII Massachusetts RMV Rules for Vehicle Idling

540 CMR: REGISTRY OF MOTOR VEHICLES
540 CMR 27.00: REGULATION OF MOTOR VEHICLE IDLING ON SCHOOL GROUNDS
Section
27.01: Scope and Applicability
27.02: Definitions
27.03 : General Restrictions
27.04 : Exemptions
27.05 : Signage
27.06 : Training of School Bus Drivers 27.07: Penalties
27.08: Enforcement

27.01 : Scope and Applicability

540 CMR 27.00 is adopted by the Registrar of Motor Vehicles pursuant to the authority of M.G.L. c. 90, § 16B. 540 CMR 27.00 governs the operation and idling of all motor vehicles on school grounds. The purpose of 540 CMR 27.00 is to restrict unnecessary idling time and to govern the time during which a motor vehicle can idle on school grounds, in order to improve and protect school campus air quality. Enforcement of 540 CMR 27.00 is to be undertaken by local law enforcement authorities.

27.02 : Definitions

In addition to the definitions contained in M.G.L. c. 90, § 1, the following definitions will also apply. School Grounds. For the purposes of 540 CMR 27.00, school grounds will mean in, on or within 100 feet of the real property comprising a public or private accredited preschool, accredited Head Start facility, elementary, vocational or secondary school whether or not in session, and will include any athletic field or facility and any playground used for school purposes or functions which are owned by a municipality or school district, regardless of proximity to a school building, as well as any parking lot appurtenant to such school athletic field, facility, or playground.

27.03 : General Restrictions

(1) No motor vehicle operator will cause or allow the engine of any motor vehicle operated by him or her on school grounds to idle unnecessarily, except under the conditions described in 540 CMR 27.04: Exemptions.

(2) A motor vehicle operator will not idle a motor vehicle within 100 feet from a known and active school air intake system, unless the school has determined that alternative locations block traffic, impair student safety or are not cost effective. Reasonable efforts should be made by schools to identify by signage all such known and active air intake systems.

27.04. Exemptions

540 CMR 27.04 does not apply for the period or periods during which idling is necessary under the following circumstances:

(f) Traffic Conditions.

1. For traffic conditions over which the driver has no control; or
2. For an official traffic control device or signal; or
3. At the direction of a uniformed police officer or a person authorized to direct traffic. (b) Queuing at a School.

1. Where the physical configuration of a school requires a queue of vehicles for the sequential discharge or pickup of students, and the queue of vehicles is actively engaged in the discharge or pickup of students.

27.04 : continued

(e) Turbo-charged Diesel Engine Cool Down or Warm Up. When the manufacturer's specifications require idling the engine, to cool down or warm up a turbo-charged diesel engine. Documentation of this requirement will be kept in the vehicle at all times.

(f) Cold/Hot Weather - School Buses.

1. If the interior temperature

of any school bus is less than 35° F, then idling is allowed to heat the interior of the school bus for a period or periods

aggregating not more than three minutes in any 15-minute period during which the school bus is waiting to accept or discharge passengers; or

2. If the interior temperature of any school bus is greater than 80° F and it is not practical or possible to open the windows or to park in a shaded area, and the school bus is equipped with air conditioning, then idling is allowed to cool the interior of the motor vehicle for a period or periods aggregating not more than three minutes in any 15 minute period during which the school bus is waiting to accept or discharge passengers.

(g) Cold/Hot Weather - Motor Vehicles Other Than School Buses.

1. If the exterior temperature is less than 35° F, then idling is allowed to heat the interior of any motor vehicle other than a school bus for a period or periods aggregating not more than one minute in any 15-minute period during which the motor vehicle is waiting to accept or discharge passengers; or 27.06: Training of School Bus Drivers

(1) The Registry of Motor Vehicles will notify, during the annual school bus driver certification process required by M.G.L. c. 90, all individuals certified and endorsed to be
school bus operators of the requirements of M.G.L. c. 90, § 16B and 540 CMR 27.00 relative to idling on school grounds and of the consequences of not complying with those requirements.

(2) School bus companies within the Commonwealth of Massachusetts will ensure that each school bus driver employed by them, upon employment and at least once per year thereafter, is informed of the requirements of M.G.L. c. 90, § 16B and 540 CMR 27.00 relative to idling on school grounds and of the consequences of not complying with those requirements.

2. If the exterior temperature is greater than 80° F and it is not practical or possible to open the windows or to park in a shaded area, and the vehicle is equipped with air conditioning, then idling is allowed to cool the interior of the motor vehicle other than a school bus for a period or periods aggregating not more than one minute in any 15 minute period during which the motor vehicle is waiting to accept or discharge passengers.

(f) Safety and Emergencies.

1. To ascertain that the school bus or other commercial vehicle is in safe operating condition and equipped as required by all provisions of law, and all equipment is in good working order, either as part of the driver's daily vehicle inspection, or as otherwise needed; or

2. To operate the flashing signal lamps and/or stop signal arm devices required by law where the operation of those devices cannot be undertaken by battery power alone; or 3. To operate defrosters, or other equipment to ensure the safe operation of the vehicle, or as otherwise required by federal or state motor carrier safety regulations, or other local requirements; or

4. To operate a heater or an air conditioner for only the period necessary to ensure a reasonable interior temperature in a vehicle that has, or will have, one or more children aboard with temperature sensitive disabilities; or.

5. To operate a lift or other piece of equipment designed to ensure safe loading, unloading, or transport of persons with one or more disabilities; or

6.Use of school bus as an emergency vehicle. (g) Maintenance of Operations.

1. For testing, servicing, repairing, or diagnostic purposes; or 2. To recharge a battery or other energy storage unit of a hybrid electric bus.

27.05: Signage

Each public or private accredited preschool, accredited Head Start facility, elementary,

vocational, secondary school, school district or municipality will erect and maintain in a conspicuous location on school grounds "NO IDLING" permanent signage as described below. All such signage will be sized and contain appropriately sized font so as to be visible from a distance of 50 feet.

NO IDLING.

PENALTIES OF $100 FOR FIRST OFFENSE AND $500 FOR SECOND AND SUBSEQUENT OFFENSES

27.07: Penalties

M.G.L. C. 90, § 16B and 540 CMR 27.00

An operator or owner of a motor vehicle who violates the provisions of M.G.L. c. 90, § 16B or the regulations promulgated thereunder at 540 CMR 27.00 will be subject to a civil assessment as follows:

(a) A penalty of $100 for the first offense; or

(b) A penalty of $500 for the second offense, and any subsequent offenses. 27.08: Enforcement

The prohibitions of M.G.L. c. 90, § 16B will be enforced by state or local law enforcement agencies. REGULATORY AUTHORITY

540 CMR 27.00: M.G.L. c.90, § 16B.

APPENDIX VIII SEBRSD Responsible Use Policy for Technology

Acceptable uses of school resources are activities that support teaching and learning at the Spencer East Brookfield Regional Schools [SEBRSD]. For this reason, district-owned and personal electronic devices present in the public-school setting may be used solely for educational purposes and with the consent of district staff members in accordance with the district's *Empowered Digital Use Policy (IJNDB)*. Unauthorized or irresponsible use of technology may result in disciplinary and/or legal actions.

Parent/Guardian permission is required for all users under the age of 18. Electronic technology access is a privilege, not a right. Users and Parents/Guardians will honor this signed agreement. The district is not responsible for the actions of users who violate this policy. Assume no personal privacy when using any district-owned electronic technology whether on or off school grounds. The district maintains the right and ability to monitor all devices, network and email usage on school grounds and/or school equipment and may do so either during routine maintenance or when requested by an investigating authority. All email is considered public record. Users and/or parent/guardian will indemnify the district for any consequences caused by the inappropriate use of equipment or the network. Users of SEBRSD electronic technologies are also expected to comply with all the same rules, good manners, codes of conduct, and guidelines that are used with other daily school activities, as well as with all laws and regulations. Violations may result in a user's account being restricted or terminated, disciplinary action, suspension or expulsion from school, and/or legal action as determined by authorities.

All users of SEBRSD electronic technologies are required to be responsible users. Responsible users:

- Do not communicate or post information that, if acted upon, could cause damage, danger, or disruption to the educational process and/or violates school rules or codes of conduct.
- Do not abuse network resources; including but not limited to, sending chain letters, spamming, spoofing or unauthorized streaming.
- Do not use the SEBRSD network or equipment for commercial purposes, including offering, providing or purchasing products/services or by conducting political action/activism through the network (except for educational purposes).
- Do not misuse or disrupt any SEBRSD equipment, destroy data, or breach the security of devices or the district network. • Do not use SEBRSD equipment/network/credentials to send, post or view communications that may be deemed by a reasonable person as abusive, obscene, sexually oriented, threatening, harassing, bullying, violent, damaging to another's reputation, or illegal.
- Follow copyright rules for the distribution/use of any copyrighted materials including software and information. • Do not share or give out personal information about others, such as names, addresses, telephone numbers, passwords, or any other personal information. Do not provide your own personal information, except when used for approved educational or career exploration purposes.
- Do not use proxy websites, unauthorized VPN's, or network circumventing technologies.
- Do not use social networking websites; including, but not limited to Instagram, Facebook, Instagram, Twitter, ... etc. except as authorized by school or district administrators for educational purposes.
- Post information respectfully and responsibly. Messages posted to authorized sites / applications in violation of any policy can be removed by an authority of SEBRSD. Misuse of posting rights may result in termination of posting / publishing rights. • Do not begin or engage in non-academic or unauthorized online relationships with anyone. Never agree to meet with a person or persons met online.
- Promptly disclose to a teacher or other school employee when any communication seen, heard or otherwise received or observed is inappropriate or might cause a reasonable person to feel uncomfortable.
- Report inappropriate use of or damage to technology immediately.
- Do not attempt to gain illegal or inappropriate access to the network or electronic devices.
- Do not relocate hardware or peripherals (except for portable devices) without authorized consent from technology staff. • May, for academic purposes when authorized by district or school staff, digitally record, store and share appropriate educational content that complies with all aspects of responsible use.

The particular consequence for violations of this policy shall be determined by school and/or district administrators. The Superintendent or Designee shall determine when school expulsion and/or legal action by authorities are the appropriate

course of action.

SPENCER EAST BROOKFIELD REGIONAL SCHOOL DISTRICT RESPONSIBLE USE POLICY TECHNOLOGY USER CONTRACT

I agree to abide by the expectations, guidelines and rules set forth in the Spencer East Brookfield Regional School Districts' Responsible Use Policy and to all applicable local, state and federal laws and regulations. I understand that failure to abide may subject me to negative consequences, disciplinary actions, and/or the filing of civil or criminal complaints against me. I understand that consequences limiting or denying my access to electronic devices and/or network technologies may severely limit my access to digital learning materials and activities.

User's Name:

School:

Date:

Signature: _____

[Signature of parent / guardian required for minors younger than 18 years old]

For school use only:

Student ID Number:

APPENDIX IX Spencer-East Brookfield Regional School District
Generative Artificial Intelligence Policy for K-12 teachers and students
Policy #1XXX
Adopted: December 12, 2024

The Spencer-East Brookfield Regional School District is innovative and responsive to the needs of an ever-changing world and sees AI as a skill that students should learn; the school committee wants it to be a priority but is wary of over-legislating given their lack of expertise with genAI. This is their policy:

The Spencer-East Brookfield Regional School District recognizes the importance of generative artificial intelligence (genAI) as a component of a strong 21st -century education. The availability of genAI provides an opportunity for students and staff to access new and innovative ways to engage with the world of information, to communicate with others, to improve efficiency of a range of tasks, and to create novel artistic and conceptual expressions. Therefore, the Spencer-East Brookfield Regional School District will incorporate the teaching and use of genAI into relevant aspects of the K-12 curriculum.

Given the nascent and rapidly changing nature of genAI, the Committee expects its administration to create sound, grade-appropriate guidelines to help support the wise and ethical use of genAI by teachers and students. Further, it expects that these guidelines will be regularly revisited and evaluated to ensure that they remain relevant and up-to-date with the changing technology landscape.

Guidance on the Use of AI in Our Schools

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Purpose

This document guides our students, staff, and school communities on the appropriate and responsible use of artificial intelligence (AI), particularly generative AI tools, in classroom instruction, school management, and systemwide operations. Generative AI has potential benefits for education and risks that must be thoughtfully managed.

Artificial intelligence refers to computer systems that are taught to automate tasks normally requiring human intelligence. "Generative AI" refers to tools, such as Bing Chat, ChatGPT, Gemini, Midjourney, and DALL-E, that can produce new content, such as text, images, or music, based on patterns they've learned from their training data.This is made possible through "machine learning," a subset of AI where computers learn from data without being explicitly programmed for a specific task. Think of it as teaching a computer to be creative based on examples it has seen. While generative AI tools show great promise and often make useful suggestions, they are designed to predict what is right, which isn't always right. As a result, their output can be inaccurate, misleading, or incomplete.

Scope

This guidance applies to all students, teachers, staff, administrators, and third parties who develop, implement, or interact with AI technologies used in our education system. It covers all AI systems used for education, administration, and operations, including, but

not limited to, generative AI models, intelligent tutoring systems, conversational agents, automation software, and analytics tools. This guidance complements existing policies on technology use, data protection, academic integrity, and student support.

Guiding Principles for AI Use

The following principles guide the appropriate and safe use of AI and address current and future educational goals, teacher and student agency, academic integrity, and security. We commit to adopting internal procedures to operationalize each principle.

4. We use AI to help all of our students achieve their educational goals. We will use AI to help us reach our community's goals, including improving student learning, teacher effectiveness, and school operations. We aim to make AI resources universally accessible, focusing especially on bridging the digital divide among students and staff. We are committed to evaluating AI tools for biases and ethical concerns, ensuring they effectively serve our diverse educational community.

5. We reaffirm adherence to existing policies and regulations. AI is one of many technologies used in our schools, and its use will align with existing regulations to protect student privacy, ensure accessibility to those with disabilities, and protect against harmful content. We will not share personally identifiable information with consumer-based AI systems. We will thoroughly evaluate existing and future technologies and address any gaps in compliance that might arise.

6. We educate our staff and students about AI. Promoting AI literacy among students and staff is central to addressing the risks of AI use and teaches critical skills for students' futures. Students and staff will be given support to develop their AI literacy, which includes how to use AI, when to use it, and how it works, including foundational concepts of computer science and other disciplines. We will support teachers in adapting instruction in a context where some or all students have access to generative AI tools.

7. We explore the opportunities of AI and address the risks. In continuing to guide our community, we will work to realize the benefits of AI in education, address risks associated with using AI, and evaluate if and when to use AI tools, paying special attention to misinformation and bias.

8. We use AI to advance academic integrity. Honesty, trust, fairness, respect, and responsibility continue to be expectations for both students and teachers. Students should be truthful in giving credit to sources and tools and honest in presenting work that is genuinely their own for evaluation and feedback.

9. We maintain student and teacher agency when using AI tools. AI tools can provide recommendations or enhance decision-making, but staff and students will serve as "critical consumers" of AI and lead any organizational and academic decisions and changes. People will be responsible and accountable for pedagogical or decision-making processes where AI systems may inform decision-making.

10. We commit to auditing, monitoring, and evaluating our school's use of AI. Understanding that AI and technologies are evolving rapidly, we commit to frequent and regular reviews and updates of our policies, procedures, and practices.

Responsible Use of AI Tools

Our school system recognizes that responsible uses of AI will vary depending on the context, such as a classroom activity or assignment. Teachers will clarify if, when, and how AI tools will be used while the school system will ensure compliance with applicable laws and regulations regarding data security and privacy. Appropriate AI use should be guided by the specific parameters and objectives defined for an activity. Below are some examples of responsible uses that serve educational goals.

Student Learning

- Aiding Creativity: Students can harness generative AI to spark creativity across diverse subjects, including writing, visual arts, and music composition.

- Collaboration: Generative AI tools can partner with students in group projects by contributing concepts, supplying research support, and identifying relationships between varied information.

- Communication: AI can offer students real-time translation, personalized language exercises, and interactive dialogue simulations.

- Content Creation and Enhancement: AI can help generate personalized study materials, summaries, quizzes, and visual aids, help students organize thoughts and content, and help review content.

- Tutoring: AI technologies have the potential to democratize one-to-one tutoring and support, making personalized learning more accessible to a broader range of students. AI-powered virtual teaching assistants may provide non-stop support, answer questions, help with homework, and supplement classroom instruction.

Teacher Support

- Assessment Design and Analysis: In addition to enhancing assessment design by creating questions and providing standardized feedback on common mistakes, AI can conduct diagnostic assessments to identify gaps in knowledge or skills and enable rich performance assessments. Teachers will ultimately be responsible for evaluation, feedback, and grading, including determining and assessing the usefulness of AI in supporting their grading work. AI will not be solely responsible for grading.

- Content Development and Enhancement for Differentiation: AI can assist educators by differentiating curricula, suggesting lesson plans, generating diagrams and charts, and customizing independent practice based on student needs and proficiency levels.

- Continuous Professional Development: AI can guide educators by recommending teaching and learning strategies based on student needs, personalizing professional development to teachers' needs and interests, suggesting collaborative projects between subjects or teachers, and offering simulation-based training scenarios such as teaching a lesson or managing a parent/teacher conference.

- Research and Resource Compilation: AI can help educators by recommending books or articles relevant to a lesson and updating teachers on teaching techniques, research, and methods.

School Management and Operations

- Communications: AI tools can help draft and refine communications within the school community, deploy chatbots for routine inquiries, and provide instant language translation.

- Operational Efficiency: Staff can use AI tools to support school operations and streamline administrative processes, including scheduling courses, automating inventory management, increasing energy savings, and generating performance reports.

- Learning Management Systems (LMS): AI can analyze student performance data to provide insights to educators,

helping them tailor instruction or interventions.

Prohibited Use of AI Tools

As we work to realize the benefits of AI in education, we also recognize that risks must be addressed. Below are the prohibited uses of AI tools and the measures we will take to mitigate the associated risks.

Student Learning

- Bullying/harassment: Using AI tools to manipulate media to impersonate others for bullying, harassment, or any form of intimidation is strictly prohibited. All users are expected to employ these tools solely for educational purposes, upholding values of respect, inclusivity, and academic integrity at all times.

- Overreliance: Dependence on AI tools can decrease human discretion and oversight. Important nuances and context can be overlooked and accepted. Teachers will clarify if, when, and how AI tools should be used in their classrooms, and teachers and students are expected to review outputs generated by AI before use.

- Plagiarism and cheating: Students and staff should not copy from any source, including generative AI, without prior approval and adequate documentation. Students should not submit AI-generated work as their original work. Staff and students will be taught how to properly cite or acknowledge the use of AI where applicable. Teachers will be clear about when and how AI tools may be used to complete assignments and restructure assignments to reduce opportunities for plagiarism by requiring personal context, original arguments, or original data collection. Existing procedures related to potential violations of our Academic Integrity Policy will continue to be applied.

- Unequal access: If an assignment permits the use of AI tools, the tools will be made available to all students, considering that some may already have access to such resources outside of school.

Teacher Support

- Societal Bias: AI tools trained on human data will inherently reflect societal biases in the data. Risks include reinforcing stereotypes, recommending inappropriate educational interventions, or making discriminatory evaluations, such as falsely reporting plagiarism by non-native English speakers. Staff and students will be taught to understand the origin and implications of societal bias in AI, AI tools will be evaluated for the diversity of their training data and transparency, and humans will review all AI-generated outputs before use.

- Diminishing student and teacher agency and accountability: While generative AI presents useful assistance to amplify teachers' capabilities and reduce teacher workload, these technologies will not be used to supplant the role of human educators in instructing and nurturing students. The core practices of teaching, mentoring, assessing, and inspiring learners will remain the teacher's responsibility in the classroom. AI is a tool to augment human judgment, not replace it. Teachers and staff must review and critically reflect on all AI-generated content before use, thereby keeping “humans in the loop.”

- Privacy concerns: AI tools will not be used to monitor classrooms for accountability purposes, such as analyzing teacher-student interactions or tracking teacher movements, which can infringe on students’ and teachers' privacy rights and create a surveillance culture.

School Management and Operations

- Compromising Privacy: The education system will not use AI in ways that compromise teacher or student privacy or lead to unauthorized data collection, as this violates privacy laws and our system’s ethical principles. See the Security, Privacy, and Safety section below for more information.

- Noncompliance with Existing Policies: We will evaluate AI tools for compliance with all relevant policies and regulations, such as privacy laws and ethical principles. AI tools will be required to detail if/how personal information is used to ensure that

personal data remains confidential and isn't misused.

Special Consideration: Advancing Academic Integrity

While it is necessary to address plagiarism and other risks to academic integrity, we will use AI to advance the fundamental values of academic integrity - honesty, trust, fairness, respect, and responsibility.

- Staff and students can use AI tools to quickly cross-reference information and claims, though they must still be critical of the output.
- Advanced AI tools can increase fairness by identifying and minimizing biases in grading and assessments.
- AI can adapt materials for students with different learning needs, showing respect for individual differences.

Additional Recommendations for Advancing Academic Integrity

- Teachers might allow the limited use of generative AI on specific assignments or parts of assignments and articulate why they do not allow its use in other assignments.
- Teachers may use technologies that purport to identify the use of generative AI to detect cheating and plagiarism, as their accuracy is questionable.
- If a teacher or student uses an AI system, its use must be disclosed and explained. As part of the disclosure, students may choose to cite their use of an AI system using one of the following resources:
  - **MLA Style - Generative AI**
  - **APA Style - ChatGPT**
  - **Chicago Style - Generative AI**

Special Consideration: Security, Privacy, and Safety

We will implement reasonable security measures to secure AI technologies against unauthorized access and misuse. All AI systems deployed within the school will be evaluated for compliance with relevant laws and regulations, including those related to data protection, privacy, and students' online safety. For example, providers will make it clear when a user is interacting with an AI versus a human.

Staff and students are prohibited from entering confidential or personally identifiable information into unauthorized AI tools, such as those without approved data privacy agreements. Sharing confidential or personal data with an AI system could violate privacy if not properly disclosed and consented to.

Review

This guidance will be reviewed annually, or sooner, to ensure it continues to meet the school's needs and complies with changes in laws, regulations, and technology. We welcome feedback on this policy and its effectiveness as AI usage evolves

Appendix X: Restraint/ Seclusion Policy

Spencer East Brookfield Regional Public Schools' Policy on Physical Restraint and Time-Out

(CR 17A Use of physical restraint on any student enrolled in a publicly-funded education program)

The Spencer East Brookfield Regional Public Schools complies with the Department of Elementary and Secondary Education (hereinafter "DESE") regulations governing the use of physical restraint, which can be found at 603 CMR 46.00 et seq. (hereinafter "Regulations"). According to their terms, the Regulations apply not only at school but also at school-sponsored events and activities, whether or not on school property. Additional information, including a copy of the regulations can be obtained from the Director of Student Support Services Office or obtained at https://www.doe.mass.edu/lawsregs/603cmr46.html?section=all.

Only lawful physical restraint will be used in the Spencer East Brookfield Regional Public Schools. Physical restraint shall be used only in emergency situations of last resort, after other lawful and less intrusive alternatives have failed or been deemed inappropriate, and with extreme caution. School personnel shall use physical restraint with two goals in mind:

a. To administer a physical restraint only when needed to protect a student and/or a member of the school community from assault or imminent, serious, physical harm; and

(g) To prevent or minimize any harm to the student as a result of the use of physical restraint.

* Nothing in this policy shall preclude a teacher, employee, or agent of the Spencer East Brookfield Regional Public Schools from using reasonable force to protect students, other persons or themselves from assault or imminent, serious, physical harm. Nothing in this Policy or the Regulations prohibits law enforcement or school security personnel from exercising their responsibilities, including physical detainment of an individual alleged to have committed a crime or posing a security risk.

DEFINITIONS (603 CMR 46.02):

Mechanical Restraint: the use of any physical device or equipment to restrict a student's freedom of movement.

3. Mechanical restraint does not include devices implemented by trained school personnel, or utilized by a student, that have been prescribed by an appropriate medical or related services professional, and are used for the specific and approved positioning or protective purposes for which such devices were designed. Examples of such devices include: adaptive devices or mechanical supports used to achieve proper body position, balance, or alignment to allow greater freedom of mobility than would be possible without the use of such devices or mechanical supports; vehicle safety restraints when used as intended during the transport of a student in a moving vehicle; restraints for medical immobilization; or orthopedically prescribed devices that permit a student to participate in activities without risk of harm.

Medication Restraint: the administration of medication for the purpose of temporarily controlling behavior.

4. Medication prescribed by a licensed physician and authorized by the parent for administration in the school setting is not medication restraint.

Physical Escort: a temporary touching or holding, without the use of force, of the hand, wrist, arm, shoulder, or back for the purpose of inducing a student who is agitated to walk to a safe location.

Physical Restraint: direct physical contact that prevents or significantly restricts a student's freedom of movement.

The following are not physical restraints:

5. Brief physical contact to promote student safety (such as guiding a student or re-directing a student);
6. Providing physical guidance or prompting when teaching a skill;
7. Redirecting attention or providing comfort by touch (such as to a shoulder, face or torso);
8. Physical escort (as defined above)

Prone Restraint: a physical restraint in which a student is placed face down on the floor or another surface, and physical pressure is applied to the student's body to keep the student in the face-down position.

Seclusion: involuntary confinement of a student alone in a room or area, with or without adult supervision, from which the student is not permitted to leave.

The following are not seclusion:

9. A classroom or school environment where, as a general rule, all students need permission to leave the room or area, such as to use the restroom;
10. Placing a student in a separate location within a classroom with others or with an instructor, so long as the student has the same opportunity to receive and engage in instruction;
11. Time-out (as defined below)

Time-Out: a behavioral support strategy in which a student temporarily separates from the learning activity or the classroom, either by choice or by direction from staff, for the purpose of calming. During time-out, a student must be continuously observed by a staff member in an unlocked setting from which the student is permitted to leave. Staff shall be with the student or immediately available to the student at all times. Time-out shall cease as soon as the student has calmed.

REQUIREMENTS FOR THE USE OF PHYSICAL RESTRAINT (603 CMR 46.03):
Physical restraint is an emergency procedure of last resort. It may be used only when the student's behavior poses a threat of assault or imminent, serious, physical harm to self and/or others, and the student is not responsive to verbal directives or other lawful and less intrusive behavior interventions, or such interventions are deemed to be inappropriate under the circumstances.

Physical restraint shall be limited to the use of such reasonable force as is necessary to protect a student or another member of the school community from assault or imminent, serious, physical harm. The staff member administering physical restraint shall use the safest method available and appropriate to the situation, subject to the safety requirements set forth in 603 CMR 46.05.

PROHIBITIONS
Mechanical restraint, medication restraint, prone restraint (unless permitted under the conditions described below), seclusion (unless permitted under the conditions described below) and the use of physical restraint in a manner inconsistent with 603 CMR 46.00 are strictly prohibited in the Spencer East Brookfield Regional Public Schools.

Physical restraint, of any kind, shall not be used:

- As a means of discipline or punishment;
- When the student cannot be safely restrained because it is medically contraindicated for reasons including, but not limited to, asthma, seizures, a cardiac condition, obesity, bronchitis, communication-related disabilities, or risk of vomiting;
- As a response to property destruction, disruption of school order, a student's refusal to comply with a policy or directive, or verbal threats when those actions do not constitute a threat of assault, or imminent, serious, physical harm; or

11. As a standard response for any individual student. No written individual behavior plan or individualized education program (IEP) may include use of physical restraint as a standard response to any behavior. Physical restraint is an emergency procedure of last resort.

Prone restraints are prohibited, except on an individual basis and when all of the following conditions, which require specific, advance documentation, are met:

12. The student has a documented history of repeatedly causing serious self-injuries and/or injuries to other students or staff;
13. All other forms of physical restraint have failed to ensure the safety of the student and/or others;
14. There are no medical contraindications, as documented by a licensed physician;
15. There is psychological or behavioral justification for the use of prone restraint and no psychological or behavioral contraindications, as documented by a licensed mental health professional;
16. The program has obtained consent to use prone restraint in an emergency and the use of prone restraint is approved in writing by the Principal; and
17. The program has documented all of the above before using prone restraint and maintains the documentation.

The only staff authorized to administer a prone restraint are staff who have received in-depth restraint training in accordance with the regulations at 603 C.M.R. 46.00.

Seclusion is prohibited, except on an individual basis and when all of the following conditions, which require specific, advance documentation, are met:

8. The student has a documented history of repeatedly causing serious self-injuries and/or injuries to other students or staff;
9. The student is not responsive to directives or other less intrusive behavior interventions, or such interventions are deemed to be inappropriate under the circumstances;
10. Other forms of intervention have failed to ensure the safety of the student and/or others;
11. There are no medical contraindications, as documented by a licensed physician;
12. There is psychological or behavioral justification for the use of seclusion and no psychological or behavioral contraindications, as documented by a licensed mental health professional;
13. The program has obtained consent from the student's parent and, if appropriate, the student, to use seclusion in an emergency and the use has been approved in writing by the Principal;
14. Any individual using seclusion has received training about alternative behavior interventions and management techniques; and
15. The program has documented all of the above before using seclusion and maintains the documentation.

No written individual behavior plan or individualized education program (IEP) may include use of seclusion as a standard response to any behavior. At all times during the use of seclusion, a staff member will continuously monitor and observe the student, be immediately available to the student, and continue to use calming and deescalation strategies with the student, unless it is unsafe or counterproductive to do so. The emergency use of seclusion will cease as soon as the student's behavior no longer poses a threat of

assault or imminent serious physical harm or if the student is observed to be in severe distress. The Principal's approval must be obtained if seclusion is used for a period longer than 30 minutes.

Any program of the Spencer East Brookfield Regional Public Schools which uses seclusion, consistent with the requirements above, must examine alternatives and strategies for reducing and eliminating its use no later than 3 years from the effective date of the Regulations.

PROPER ADMINISTRATION AND SAFETY REQUIREMENTS (603 CMR 46.05)

Only personnel who have received the appropriate training pursuant to the Regulations shall administer physical restraint on students. Whenever possible, the administration of a restraint shall be witnessed by at least one adult who does not participate in the restraint. When administering a physical restraint, trained staff shall comply with the requirements regarding use of force, method, duration of the restraint, and safety, as set forth in the Regulations.

- No restraint shall be administered in such a way that the student is prevented from breathing or speaking. During the administration of a restraint, a staff member shall continuously monitor the physical status of the student, including skin temperature and color, and respiration.

(c) Restraint shall be administered in such a way so as to prevent or minimize physical harm. If, at any time during a physical restraint, the student expresses or demonstrates significant physical distress including, but not limited to, difficulty breathing, the student shall be released from the restraint immediately, and school staff shall take steps to seek medical assistance.

3. If a student is restrained for a period longer than 20 minutes, program staff shall obtain the approval of the Principal. The approval shall be based upon the student's continued agitation during the restraint justifying the need for continued restraint.

(h) Program staff shall review and consider any known medical or psychological limitations, known or suspected trauma history, and/or behavioral intervention plans regarding the use of physical restraint on an individual student.

28 After the release of a student from a restraint, program staff shall implement follow-up procedures. These procedures shall include reviewing the incident with the student to address the behavior that precipitated the restraint; reviewing the incident with the staff person(s) who administered the restraint to discuss whether proper restraint procedures were followed; and consideration of whether any follow-up is appropriate for students who witnessed the incident.

STAFF TRAINING

All school staff will receive training with respect to the Spencer East Brookfield Regional Public Schools restraint prevention and behavior support policy and requirements when restraint is used. Staff training will occur at the beginning of each school year, and, for new hires, within one month of being hired. Training shall include:

(v) Information on the role of various individuals in preventing restraint;
(vi) The Physical Restraint and Time-Out Policy and procedures;
(vii) Interventions that may preclude the need for restraint, including de-escalation techniques;
(viii) Types of permitted physical restraints and related safety considerations;
(ix) Administering physical restraint in accordance with medical or psychological limitations, known or suspected trauma history, and/or behavioral intervention plans applicable to an individual student; and
(x) Identification of program staff who have received in-depth training in the use of physical restraint, who may serve as school-wide resources to assist in ensuring proper administration of physical restraint.

In addition, the Principal will identify program staff who will participate in additional, in-depth training on the use of physical restraint, consistent with the requirements of 603 CMR 46.04(3),(4).

REPORTING

Any and all physical restraints (including emergency seclusion, if used), regardless of duration, will be reported to the Principal, the Parents, and the Department of Elementary and Secondary Education (DESE) as indicated below.

Reporting to Principal: The staff member who administered the restraint/seclusion shall notify the Principal or designee verbally as soon as possible and in writing no later than the next school working day. If the Principal administered the restraint, the Principal shall prepare the report and submit it to the Superintendent.

(iii) The Principal or designee shall maintain an on-going record of all reported instances of physical restraint and emergency seclusion, if any (the "Physical Restraint Log" and "Seclusion Log").

(iv) The Principal shall conduct **a weekly review** of the Physical Restraint Log and Seclusion Log to identify student(s) who have been restrained/secluded multiple times during the week and convene teams to review the student's needs, as appropriate. The review team will review the written physical restraint reports; analyze the circumstances leading up to each restraint, including factors such as time of day, day of the week, antecedent events, and individuals involved; consider factors that may have contributed to escalation of behaviors and alternatives to restraint, with the goal of reducing or eliminating the use of restraint in the future; and create a written plan of action, if appropriate. The Principal shall ensure that a record of any such individual student review team is maintained and made available to DESE or the Parents upon request.

(v) The Principal shall also conduct **a monthly review** of the Physical Restraint Log and Seclusion Log in order to consider patterns in the time of day, day of week, or individuals involved; the number and duration of restraints/seclusions school-wide and for individual students; the number and type of injuries, if any, resulting from use of restraint; and the need for additional staff training, policy modifications, or other action to reduce or eliminate restraints.

(vi) The Physical Restraint Log and Seclusion Log, if any, shall be made available for review by a parent (in accordance with student records regulations) or the DESE upon request.

Reporting to Parents: The Principal or designee shall make reasonable efforts to inform the student's Parent(s) of the restraint within 24 hours of the event and shall notify the student's Parent(s) by written report within three school working days of the restraint. The information in the report shall comply with 603 CMR 46.06(4). The written restraint report must be provided to the student's parent(s) in the language in which report cards and other necessary school-related information are customarily provided. The Principal shall provide the student and the parent(s) an opportunity to comment orally and in writing on the use of the restraint and on information in the written report.

Reporting to DESE: If a physical restraint or emergency seclusion results in injury to either a student or a staff member, the Spencer East Brookfield Regional Public Schools will send a copy of the written report of that restraint to the DESE within three (3) school working days, along with a copy of Physical Restraint Log and Seclusion Log, if any, for the 30-day period prior to that restraint. Additionally, the Spencer East Brookfield Regional Public Schools will annually report physical restraint data to DESE in a manner and form directed by DESE.

SAFEGUARDS (603 CMR 46.07)
See also Policy SE 55 Special Education Facilities and Classrooms

Any room or area used for Time-Out will be clean, safe, and sanitary. It will be appropriate for the purpose of calming students, including being of appropriate size for the students served. It will be appropriately lighted, ventilated, and heated and cooled, consistent with the remainder of the building. The space will be free of objects or fixtures that are inherently dangerous and in compliance with local fire and building code requirements.

Any room used for seclusion, if permitted under the conditions enumerated in 603 CMR 46.07(2), will meet the same physical requirements as a Time-Out space, described above. Any room used for seclusion will be inspected by the program for compliance with such requirements at least weekly.

PREVENTING STUDENT VIOLENCE AND SELF-INJURIOUS BEHAVIOR
As set forth in the Regulations, the Spencer East Brookfield Regional Public Schools shall develop methods for preventing student violence, self-injurious behavior, and suicide, including individual crisis planning, behavior intervention plans, and de-escalation of potentially dangerous behavior occurring among groups of students or with an individual student.

PARENT ENGAGEMENT
In accordance with the Regulations, the Spencer East Brookfield RegionalPublic Schools shall engage parent(s) in discussions about restraint prevention and the use of restraint solely in an emergency situation of last resort. This Physical Restraint and Time-Out Policy will be posted on the district's website and within school handbooks. Parents are also welcome to request a meeting with the Principal or Team Chair to discuss any individual restraint or to discuss restraint and time-out procedures in general use.

GREIVANCE PROCEDURE
The Spencer East Brookfield Regional Public Schools will consider and investigate any complaints that it receives regarding the use of physical restraint or time-out in school. Any individual who believes that a physical restraint of a student may have been unwarranted or conducted inappropriately may submit a written complaint to the Principal. The written complaint should include the time, date, and location of the incident; the names of all students and staff involved; and references to which aspects of this policy or the Regulations that the complainant believes have not been followed. The Principal or designee will conduct a thorough investigation which may include interviewing the complainant, witnesses, staff, and/or the student; reviewing all written documentation leading up to and pertaining to the incident; and reviewing available data on physical restraint and/or time-outs within the building. The Principal or designee will provide a written response to the complainant summarizing the investigation, conclusions, and corrective action, if any.

PREVENTION AND ALTERNATIVES TO PHYSICAL RESTRAINT
Students, families, and school staff each play a role in preventing restraint and ensuring the safety of the school community.

28 Students: Students are responsible for knowing and following the school rules and code of conduct, as outlined in the Student/Family Handbooks. Students are also encouraged to report to staff whenever another student evinces violent or dangerous behavior towards themselves or others.

29 Families: Families should be aware of and encourage adherence to the school rules and code of conduct, as outlined in the Student/Family Handbooks. Regular communication between Parent(s) and school is important to facilitate support for any student experiencing difficulty.

30 School Staff: Staff are responsible for reviewing, attending training, and implementing the school policies and procedures, including those related to physical restraint and time-out. Staff are also responsible for discussing and explaining these policies and procedures to families and students to prevent misunderstanding.
31 Administration: The Spencer East Brookfield Regional Public Schools will annually review its Physical Restraint and Time-Out Policy and related procedures, provide it to school staff, provide annual training to school staff, and make the policy and procedures available to families of enrolled students.

De-escalation Techniques and Alternatives to Restraint
Spencer East Brookfield Regional Public Schools' staff may utilize a variety of behavioral interventions in order to de-escalate a student, including but not limited to:

- Offering choices of activities
- Positive behavioral interventions
- Verbal redirection
- Verbal directive to cease behavior
- Opportunity for a movement break
- Opportunity for a sensory break
- Breathing exercises
- Access to a preferred, tangible item
- Reducing the demands/amount of work expected
- Reminding student of reinforcers available for engaging in appropriate behaviors (e.g. first work, then you can read)
- Prompting the student to use functional language to communicate their feelings or needs (e.g. if you are frustrated you can tell me "I need a break")
- Offering opportunities to speak with professionals (e.g. teacher, administrator, nurse, or guidance counselor)
- Working in small groups outside classroom on academic related work
- Time-out for the purpose of calming.
- Whenever there is a behavior support plan in place for a student, staff should defer to the specific interventions outlined in the behavior plan.

PROCEDURE FOR USE OF TIME-OUT
Time-out is a behavioral support strategy in which a student temporarily separates from the learning activity or the classroom, either by choice or direction from staff, for the purpose of calming. During a time-out, the student will be continuously observed by staff in an unlocked setting from which the student is permitted to leave.

It is the expectation of the Spencer East Brookfield Regional Public Schools that a staff member will be physically present with the student during time-out; however, if it is not safe for the staff member to remain in the room with the student, staff will remain immediately available to the student and will continuously observe the student during time-out. The time-out will cease as soon as the student has calmed, based on staff observation of the student's physical cues, tone of voice, and demeanor. The student shall not be required to complete any specific task or checklist to demonstrate that he/she has calmed.

If a time-out may last longer than 30 minutes, staff will obtain approval from the Principal or designee to continue the time-out. Any such approval will be based on careful consideration of the individual student's presentation and level of agitation. If, in the opinion of the Principal or designee, the student has calmed, then the time-out will cease. For any time-out approaching or exceeding 30 minutes duration, staff will also consider the need to follow-up and debrief the incident with the student at a later time and/or whether the student's behavior warrants convening a Team meeting; modifying an existing behavior plan; or creating a new behavior plan. Staff will attempt to contact the student's parent(s) within 24 hours and offer an opportunity to discuss the circumstances of the extended time-out.

Time-out does not include time spent meeting with administrators; visits to nurse; performing an errand in another part of the school building; or working in small groups outside the classroom. Students may also take space for calming while remaining fully aware of the learning activities in the classroom. For example, "planned ignoring;" asking students to put their heads down; or placing a student in a different location within the classroom are alternatives to time-out.

Documenting Time-Out
It is the expectation of the Spencer East Brookfield Regional Public Schools that school staff will document the use of time-out for individual students in the following manner. For each instance of time-out, staff should record the student's name, date, location, time the time-out began, duration, behavior prior to time-out, person initiating the time-out, alternative behavior management strategies attempted, name of the staff present during time-out, strategies used to calm the student during the time-out, the written approval of the principal or designee if the time-out lasted longer than 30 minutes, and the attempts to notify the student's parent(s) if time-out lasted longer than 30 minutes. Such documentation of time-out shall be kept and reviewed by the Principal or designee, in a manner similar to the Physical Restraint Log.

APPENDIX XI SEBRSD Sexual Harassment/ Title IX Policy

This policy applies to the extent that there is an allegation of sexual harassment under the Federal definition of sexual harassment. If the allegations are under solely the state definition of harassment, the district will utilize other policies and procedures.

Definitions

Under state law, sexual advances, requests for sexual favors and other verbal or physical conduct of a sexual nature constitute sexual harassment under Massachusetts law when:

1. Submission to such conduct is made either explicitly or implicitly a term or condition of an individual's advancement (quid pro quo harassment);
2. Submission to or rejection of such conduct by an individual is used as the basis for employment decisions;
3. Such conduct interferes with an individual's job duties; or
4. The conduct creates an intimidating, hostile or offensive work environment.

Under Federal law, sexual harassment means conduct on the basis of sex that satisfies one or more of the following:

- An employee of the recipient conditioning the provision of an aid, benefit, or service of the recipient on an individual's participation in unwelcome sexual conduct ("quid pro quo harassment");
- Unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the recipient's education program or activity ("hostile environment harassment"); or
- "Sexual assault" as defined in 20 U.S.C. 1092(f)(6)(A)(v), "dating violence" as defined in 34 U.S.C. 12291(a)(10), "domestic violence" as defined in 34 U.S.C. 12291(a)(8), or "stalking" as defined in 34 U.S.C. 12291(a)(30)

The District will promptly investigate all allegations of sexual harassment of which it has actual knowledge and which are alleged to occur in the school's programs and activities, including locations, events, and/ or circumstances in which the school district exercises substantial control, in a way that is not deliberately indifferent.

The following additional definitions apply:

"Actual knowledge" means notice of sexual harassment or allegations of sexual harassment to any employee of the district, except that this standard is not met when the only official of the district with actual knowledge is the respondent (where the respondent is an employee). Imputation of knowledge based solely on vicarious liability or constructive notice is insufficient to constitute actual knowledge. Complaints will be addressed whenever the district has actual knowledge of the allegation.

"Administrative leave" means placing an employee on leave pursuant to state law. Nothing in the Title IX regulations precludes a recipient from placing a non-student employee respondent on administrative leave during the pendency of a grievance process, provided that Massachusetts laws are followed.

"Consent" means cooperation in act or attitude pursuant to an exercise of free will of a conscious person with informed knowledge of the nature of the act or actions. A current or previous relationship shall not be sufficient to constitute consent. Consent will not be found when submission to the act or actions is undertaken due the influence of fear, fraud, forcible compulsion, threats, and/ or the complainant possessed any legal incapacity to consent at the time of the act or actions. Consent is a defense to all types of sexual harassment.

"Complainant" means an individual who is alleged to be the victim of conduct that could constitute sexual harassment.

"Deliberate indifference" means a response to sexual harassment that is clearly unreasonable in light of the known circumstances.

"Emergency removal" means the suspension or expulsion of a student on an emergency basis, consistent with state law. Nothing in the Title IX regulations precludes a district from removing a respondent from the district's education program or activity on an emergency basis, provided that the district follows all procedures under Massachusetts law, undertakes an individualized safety and risk analysis, determines that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sexual harassment justifies removal, and provides the respondent with notice and an opportunity to challenge the decision immediately following the removal.

Formal complaint means a document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment and requesting that the district investigate the allegation of sexual harassment.

"Respondent" means an individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

"Supportive measures" means non-disciplinary, non-punitive individualized services offered as appropriate, as reasonably available, and without fee or charge to the complainant or the respondent before or after the filing of a formal complaint or where no formal complaint has been filed. Such measures are designed to restore or preserve equal access to the recipient's education program or activity without unreasonably burdening the other party, including measures designed to protect the safety of all parties or the recipient's educational environment, or deter sexual harassment. Supportive measures may include counseling, extensions of deadlines or other course-related adjustments, modifications of work or class schedules, campus escort services, mutual restrictions on contact between the parties, changes in work or housing locations, leaves of absence, increased security and monitoring of certain areas of the campus, and other similar measures. The district must maintain as confidential any supportive measures provided to the complainant or respondent, to the extent that maintaining such confidentiality would not impair the ability of the recipient to provide the supportive measures. The Title IX Coordinator is responsible for coordinating the effective implementation of supportive measures

Complaints and Reports of Sexual Harassment
Upon receiving actual notice of alleged sexual harassment without a formal complaint, staff members must notify the Title IX Coordinator. The Title IX Coordinator must then contact the complainant within five school days of receiving the complaint and do the following:

- Discuss and offer supportive measures;
- Consider the complainant's wishes with respect to supportive measures;
- Explain that supportive measures may be received with or without filing a formal complaint;
- Determine whether the complainant wishes to file a formal complaint; and
- Explain to the complainant the purpose of filing a formal complaint.

The Title IX Coordinator must document in writing the supportive measures offered/provided or why no supportive measures were offered/provided. Complainant and respondents must be offered supportive measures even if they do not file a formal complaint.

If the complainant declines to file a formal complaint, the Title IX Coordinator must consider whether to sign a formal complaint and start an investigation despite the complainant's preferences. This decision may be appropriate when safety or similar concerns lead the district to conclude that a non-deliberately indifferent response to actual knowledge of Title IX sexual harassment could reasonably require the school district to investigate and potentially sanction a respondent. A Title IX Coordinator's decision to override the complainant's decision not to file a formal complaint must be documented in writing along with an explanation of why this decision was necessary in order to avoid deliberate indifference.

Formal complaints may also be filed directly with the Title IX Coordinator by a complainant in person, by mail, by email, or by telephone at any time, including during non-business hours.

The contact information for the Title IX Coordinator is David Gates, who can be emailed at gatesds@sebrsd.org

The complaint may be written by the complainant, or it will be reduced to writing by either the school employee who receives the complaint, the building Principal, or the Title IX Coordinator. Whether the complaint is reduced to writing by a student, parent, or staff member, the written complaint should include the name of the complainant, the name of the alleged victim (if different), the name of the respondent, the location of the school/department where the alleged discriminatory action occurred, the basis for the complaint, witnesses (if any), and the corrective action the complainant is seeking. This information will be made on or transferred to a discrimination/ harassment complaint form maintained by the District.

There is no time limit or statute of limitation on timing to file a formal complaint. However, at the time of filing a formal complaint, an alleged victim must be participating or attempting to participate in a program or activity of the school district. Additionally, the district has discretion to dismiss a formal complaint where the passage of time would result in the district's inability to gather evidence sufficient to reach a determination regarding responsibility, or when the district loses responsibility for the respondent (e.g., the

respondent no longer attends or is employed by the district).

If the conduct alleged in the formal complaint would not constitute sexual harassment as defined in this policy even if proved, did not occur in the school district's education program or activity, or did not occur against a person in the United States, then the school district must dismiss the formal complaint under these procedures, but could investigate it under other policies and procedures. The school district must send written notice of any dismissal.

Investigations to allegations of sexual harassment will be prompt and the formal process will be completed within a sixty school day timeframe where feasible. There may be a temporary delay of the grievance process or the limited extension of time frames for good cause with written notice to the complainant and the respondent of the delay or extension and the reasons for the action. Good cause may include considerations such as the absence of a party, a party's advisor, or a witness; concurrent law enforcement activity; or the need for language assistance or accommodation of disabilities.

Written Notice
Before any investigation can begin, the district must send written notice to both parties including sufficient details. Sufficient details include the identities of the parties involved in the incident, if known, the conduct allegedly constituting sexual harassment, and the date and location of the alleged incident, if known. The written notice must include a statement that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the grievance process. The written notice must inform the parties that they may have an advisor of their choice, who may be, but is not required to be, an attorney, and may inspect and review evidence. The written notice must inform the parties that the District's code of conduct prohibits knowingly making false statements or knowingly submitting false information during the grievance process.

If additional allegations are added during the course of the investigation, additional written notice must be provided.

Informal Resolution
Where appropriate, after notice has been issued, the Title IX Coordinator should also consider offering the parties an option for informal resolution (e.g., mediation). Informal resolution may only be offered after a formal complaint is filed, and the parties must give written consent to engage in this process. Informal resolution may not be used if the allegation is against an employee respondent. Facilitators of informal resolution will be designated by the Title IX Coordinator and must not be biased against any of the parties.

Informal resolution is entirely voluntary. Complainants may elect to pursue formal procedures at any step in the process of making their complaint, even if informal resolution has already begun. Similarly, respondents may elect to follow formal procedures and decline informal resolution.

If the complainant and the respondent feel that their grievances have been sufficiently addressed via informal resolution, then no further action needs to be taken. This voluntary conversation must occur within thirty (30) school days after receiving the complaint of discrimination or harassment, unless both parties agree otherwise. The results of an informal resolution shall be maintained by the facilitator, in writing.

If the complainant is not satisfied with the resolution from the informal process, or if he/she does not choose informal resolution, then he/she can begin the formal complaint procedure described below.

Investigation
If informal resolution is not offered to or accepted by the parties, the Title IX Coordinator will designate an investigator and a decision maker, who may not be the same person. The Title IX Coordinator is free to cast himself/ herself as investigator, where appropriate.

The investigator must not be biased against any of the parties at the outset of the investigation. The investigator will be responsible for interviewing parties and witnesses, finding facts, and making determinations related to credibility, all of which will go into a written report. The investigator must avoid all questions that are protected by legal privilege, unless the privilege has been waived, and should avoid asking about the complainant's sexual history unless it is directly relevant to prove consent to the conduct at issue or to prove that the conduct was committed by someone other than the respondent.

Prior to completion of the investigative report, the school district will send to each party and the party's advisor, if any, the evidence subject to inspection and review in an electronic format or a hard copy, and the parties must have at least 10 days to submit a written response, which the investigator will consider prior to completion of the investigative report.

The investigator must avoid making any final determinations of responsibility for sexual harassment.

Findings should be written in a factual way in an investigative report. Credibility determinations may not be based on an individual's

status as complainant, witness, or respondent.

During the investigative process and any further hearings, complainants and respondents have a right to have advisors of their choice participate in all aspects of the proceedings. The district will provide both parties with written notice of investigative interviews, meetings, and hearings, with sufficient time to prepare.

Findings of Responsibility
After the investigator has completed the investigation, the designated decision-maker will be assigned to determine final responsibility or lack thereof for violating Title IX. The decision-maker must not be biased against any of the parties at the outset of this process.

Before the district can determine responsibility, an investigative report will be sent to the parties and the decision-maker will offer both the complainant and respondent the opportunity to submit proposed relevant, written questions to ask of any party or witness, to respond to questions posed by another party, and to offer additional limited follow-up. Questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant, unless such questions and evidence about the complainant's prior sexual behavior are offered to prove that someone other than the respondent committed the conduct alleged by the complainant, or if the questions and evidence concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent. The decision-maker(s) must explain to the party proposing the questions any decision to exclude a question as not relevant.

After this process is complete, the decision-maker will create a written determination regarding whether sexual harassment has occurred using a preponderance of the evidence standard.

A "preponderance of the evidence" means that it is more likely than not that the alleged conduct occurred. The decision-maker shall further recommend what action, if any, is required. If it is determined that sexual harassment occurred, the District will take steps to prevent the recurrence of the harassment and correct its discriminatory effect on the complainant and others if appropriate. Such remedies may include supportive measures.

The written determination must be issued to both parties simultaneously and must include:
(A) Identification of the allegations potentially constituting sexual harassment;
(B) A description of the procedural steps taken from the receipt of the formal complaint through the determination, including any notifications to the parties, interviews with parties and witnesses, site visits, methods used to gather other evidence, and hearings held;
(C) Findings of fact supporting the determination;
(D) Conclusions regarding the application of the recipient's code of conduct to the facts;
(E) A statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility, any disciplinary sanctions the recipient imposes on the respondent, and whether remedies designed to restore or preserve equal access to the recipient's education program or activity will be provided by the recipient to the complainant; and
(F) The district's procedures and permissible bases for the complainant and respondent to appeal (a copy of, or direct reference to, this policy will suffice).

Formal disciplinary actions may be imposed in the event that the preponderance of the evidence indicates a violation of this policy, up to and including expulsion or termination. Any disciplinary action will be in accordance with due process rights under State law and any applicable collective bargaining agreement.

As indicated above, these procedures do not limit the District from removing a student or employee from a program or activity on an emergency basis based on immediate threats to people's physical health or safety or placing an employee on administrative leave during the pendency of the investigation.

Records
A record will be maintained for a period of seven years of any actions, including supportive measures, taken in response to a report or formal complaint of sexual harassment and district staff will document the basis for the district's conclusion that its response was not deliberately indifferent.

Training
The district will ensure that Title IX Coordinators, investigators, decision-makers, and any person who facilitates an informal resolution process, receive training on the definition of sexual harassment, the scope of the recipient's education program or activity, how to conduct an investigation and grievance process including hearings, appeals, and informal resolution processes, as applicable, and how to serve impartially, including by avoiding prejudgment of the facts at issue, conflicts of interest, and bias.

The district will ensure that decision-makers receive training on any technology to be used in interviews and on issues of relevance of questions and evidence, including when questions and evidence about the complainant's sexual predisposition or prior sexual behavior

are not relevant,.

The district also must ensure that investigators receive training on issues of relevance to create an investigative report that fairly summarizes relevant evidence.

Any materials used to train Title IX Coordinators, investigators, decision-makers, and any person who facilitates an informal resolution process, must not rely on sex stereotypes and must promote impartial investigations and adjudications of formal complaints of sexual harassment.

These training materials will be posted on the school district's website.

Appeals
Any party may appeal the decision in writing to the Superintendent within five (5) school days of receipt of the findings of the formal procedure or a dismissal on the following bases:

(A) Procedural irregularity that affected the outcome of the matter;

(B) New evidence that was not reasonably available at the time the determination regarding responsibility or dismissal was made, that could affect the outcome of the matter; and

(C) The Title IX Coordinator, investigator(s), or decision-maker(s) had a conflict of interest or bias for or against complainants or respondents generally or the individual complainant
or respondent that affected the outcome of the matter.

The school district will notify the other party in writing when an appeal is filed and implement
appeal procedures equally for both parties. Both parties will have a reasonable, equal opportunity to submit a written statement in support of, or challenging, the outcome.

The Superintendent or designee, as a further impartial decision-maker, will review the comprehensiveness and accuracy of the investigation and the conclusions, and issue written findings to both the complainant and respondent within thirty (30) school days of the appeal.

Contact information for the Superintendent:
Superintendent. .....

External Grievance Procedure

Any student, parent or employee who chooses not to use the District's internal grievance procedures or who is not satisfied with the District's internal grievance procedures may file a complaint of discrimination or harassment with an appropriate state or federal agency.

For complaints related to discrimination/harassment of students:
The Office for Civil Rights, US Department of Education
5 Post Office Square, 8th Floor
Boston, MA 02109-3921
Telephone: 617-289-0111, FAX: 617-289-0150, TDD: 877-521-2172

OR

The Massachusetts Commission Against Discrimination
One Ashburton Place
Sixth Floor, Room 601
Boston, MA 02108
Phone 617-994-6000, TIY: 617-994-6196

For complaints related to discrimination/harassment of parents:
The Office for Civil Rights, US Department of Education
5 Post Office Square, 8th Floor
Boston, MA 02109-3921
Telephone: 617-289-0111, FAX: 617-289-0150, TDD: 877-521-2172

For complaints related to discrimination/harassment of employees:
The Office for Civil Rights, US Department of Education
5 Post Office Square, 8th Floor
Boston, MA 02109-3921
Telephone: 617-289-0111, FAX: 617-289-0150, TDD: 877-521-2172

OR

The Massachusetts Commission Against Discrimination
One Ashburton Place
Sixth Floor, Room 601
Boston, MA 02108
Phone 617-994-6000, TIY: 617-994-6196

OR
The Equal Employment Opportunities Commission
John F. Kennedy Federal Building
475 Government Center
Boston, MA 02203
Phone: 1-800-669-4000

Referral to Law Enforcement, Other Agencies
Some alleged conduct may constitute both a violation of District policies and criminal activity. The building Principal, coordinator, Superintendent, or designee will refer matters to law enforcement and other agencies as appropriate under the law or District policy, and inform the complainant/ alleged victim of the right to file a criminal complaint.

Retaliation
Complainants and those who participate in the complaint resolution process or who otherwise oppose in a reasonable manner an act or policy believed to constitute discrimination are protected from retaliation by law and District policy. The coordinator or designee will inform all involved individuals that retaliation is prohibited, and that anyone who feels that they have experienced retaliation for filing a complaint or participating in the resolution process should inform the coordinator. The coordinator will investigate reports of retaliation and, where retaliation is found, take separate remedial and disciplinary action.

APPENDIX XII SEBRSD Title IX Sexual Harassment Grievance Procedure

OVERVIEW

The North Reading Public School District ("District") is committed to maintaining school environments free of sexual harassment.

Sexual harassment in any form or for any reason is prohibited. This includes sexual harassment by administrators, personnel, students, vendors, and other individuals in school or at school related events.

The District does not discriminate on the basis of sex in its educational programs or activities and is required by Title IX of the Education Amendments of 1972 not to discriminate on the basis of sex. Such non-discrimination also extends to admissions and the employment application process. Retaliation against any individual who has brought sexual harassment to the attention of school officials, or against an individual who has participated, or refused to participate, in the investigation thereof is unlawful and will not be tolerated by the North Reading Public Schools.

SCOPE

The Title IX Sexual Harassment Grievance Procedure has been developed in accordance with the Title IX regulations, 34 CFR Part 106, effective August 14, 2020, which established a new definition of sexual harassment under Title IX and which mandate specific procedures for responding to and investigating allegations of sexual harassment under Title IX.

The Title IX Sexual Harassment Grievance Procedure applies only to allegations of sexual harassment under Title IX and is defined in the Definitions section below.

The Title IX Sexual Harassment Grievance Procedure applies to conduct that occurs within the United States in an education program or activity of the District, regardless of whether such District program or activity is conducted on or off school grounds. A District education program or activity includes locations, events, or circumstances over which the District exercised substantial control over both the respondent and the context in which the sexual harassment occurred.

Allegations of conduct that meet the definition of sexual harassment under Title IX will be addressed through the Title IX Sexual Harassment Grievance Procedure. Allegations of conduct that meet the definition of sexual harassment under Title IX and simultaneously meet the definitions of sexual harassment under Title VII of the Civil Rights Act of 1964 (employees), M.G.L. c. 151B (employees), and/or M.G.L. c. 151C (students), will also be addressed through the Title IX Sexual Harassment Grievance Procedure.

Allegations of conduct that do not meet the definition of sexual harassment under Title IX, but could, if proven, meet the definition(s) of sexual harassment under Title VII (employees), M.G.L. c. 151B (employees), and/or M.G.L. c. 151C (students), will be addressed through the District's Civil Rights Grievance Procedure. (See exception under Section II, Part 4, Step 4 below). The definitions of sexual harassment under Title VII, M.G.L. c. 151B, and M.G.L. c. 151C are set out in the Civil Rights Grievance Procedure.

The District's Civil Rights Grievance Procedure is available at:

https://www.North Readingpublicschools.org/district/civil_rights_grievance_procedures

CONFIDENTIALITY

The District will keep the identity of complainants, respondents, and witnesses confidential, except as permitted by the Family Educational Rights and Privacy Act (FERPA), as otherwise required by law, and/or as necessary to carry out this Procedure.

DEFINITIONS

Complainant: An individual who is alleged to be the victim of conduct that could constitute sexual harassment under Title IX. Parents and/or legal guardians of a complainant are not considered a complainant but may file a Formal Complaint on behalf of a minor child and act on behalf of the minor child in any Title IX matter. For the purpose of this Procedure the terms "complainant" and "alleged victim" shall have the same meaning.

Formal Complaint: A document or electronic submission filed by a complainant, that contains the complainant's physical or digital signature or otherwise indicates that the complainant is the person filing the Formal Complaint, or a document signed by the Title IX coordinator, that:

(h) alleges sexual harassment against a respondent; and

(i) requests that the District investigate the allegation of sexual harassment.

At the time of filing a Formal Complaint, the complainant must be participating in or attempting to participate in the District's education program or activity with which the Formal Complaint is being filed.

Sexual Harassment: Under Title IX, the term "sexual harassment" includes three (3) types of misconduct based on sex:

(1) any instance of quid pro quo harassment by a school employee;

(2) unwelcome conduct on the basis of sex that is sufficiently severe and pervasive and objectively offensive conduct, effectively denying a person equal educational access; or

(3) any instance of sexual assault, dating violence, domestic violence, or stalking as defined below.

Sexual Assault: An offense that meets the definition of rape, criminal sexual contact, incest, or statutory rape as used in the FBI's Uniform Crime Reporting system and set out below:

- Rape: penetration, no matter how slight, of the vagina or anus with any body part or object, or oral penetration by a sex organ of another person, or by a sex-related object. This definition also includes instances in which the victim is incapable of giving consent because of temporary or permanent mental or physical incapacity (including due to the influence of drugs or alcohol) or because of age. Physical resistance is not required on the part of the victim to demonstrate lack of consent.

- Criminal Sexual Contact: the intentional touching of the clothed or unclothed body parts without consent of the victim for the purpose of sexual degradation, sexual gratification, or sexual humiliation.

The forced touching by the victim of the actor's clothed or unclothed body parts, without consent of the victim for the purpose of sexual degradation, sexual gratification, or sexual humiliation.

*In Massachusetts, pursuant to M.G.L. c. 265, § 13B, a child under the age of 14 is incapable of giving consent to indecent touching.

- Incest: nonforcible sexual intercourse between persons who are related to each other within the degrees wherein marriage is prohibited by law.

- Statutory Rape: nonforcible sexual intercourse with a person who is under the statutory age of consent.

*In Massachusetts, pursuant to M.G.L. c. 265, § 23, the statutory age of consent is 16 years of age.

For the purposes of the definition of sexual assault, the term "consent" shall be defined in a manner consistent with Massachusetts laws.

Dating Violence: Violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the victim. The existence of such a relationship shall be determined based on the reporting party's statement and with consideration of the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship. For the purposes of this definition, dating violence includes, but is not limited to, sexual or physical abuse or the threat of such abuse. Dating violence does not include acts covered under the definition of domestic violence.

Domestic Violence: A felony or misdemeanor crime of violence committed by a current or former spouse or intimate partner of the victim; by a person with whom the victim shares a child in common; by a person who is cohabitating with, or has cohabitated with, the victim as a spouse or intimate partner; by a person similarly situated to a spouse of the victim under the domestic or family violence laws of the jurisdiction in which the crime of violence occurred; by any other person against an adult or youth victim who is protected from that person's acts under the domestic or family violence laws of the jurisdiction in which the crime of violence occurred.

Stalking: Engaging in a "course of conduct" directed at a specific person that would cause a "reasonable person" to fear for the person's safety or the safety of others or suffer "substantial emotional distress."

For the purposes of this definition:

"Course of conduct" means two or more acts, including, but not limited to, acts in which the stalker directly, indirectly, or through third parties, by any action, method, device, or means, follows, monitors, observes, surveils, threatens, or communicates to or about a person, or interferes with a person's property.

"Reasonable person" means a reasonable person under similar circumstances and with similar identities to the victim.

"Substantial emotional distress" means significant mental suffering or anguish that may, but does not necessarily, require medical or other professional treatment or counseling.

Party or Parties: The complainant and/or respondent.

Principal: The Principal or Principal's designee.

Respondent: An individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

Superintendent: The Superintendent or Superintendent's designee.

Supportive Measures: Individualized services reasonably available that are non-punitive, non-disciplinary, and not unreasonably burdensome to the Complainant or Respondent, while designed to ensure equal educational access, protect safety, and/or deter sexual harassment. Supportive Measures may be offered before or after the filing of a Formal Complaint or where no Formal Complaint has been filed. Supportive measures are individualized services reasonably available that are non-punitive, non-disciplinary, and not unreasonably burdensome to the other party, while designed to ensure equal educational access, protect safety, and/or deter sexual harassment. Supportive measures available to complainants and respondents include, but are not limited to: counseling; extensions of deadlines or other course-related adjustments; modifications of work or class schedules; campus escort services; mutual restrictions on contact between the parties; changes in work locations; leaves of absence; increased security and monitoring of certain areas of the building and/or campus; and other similar measures. Violations of the restrictions imposed by supportive measures may be considered a violation of school rules and may also be considered in determining whether sexual harassment has occurred.

Title IX Coordinator: Employee(s) designated by the District to coordinate its efforts to comply with Title IX.

- <u>REPORTING SEXUAL HARASSMENT</u>

12. Who May Report Sexual Harassment: Anyone may report an allegation of sexual harassment.

18. How to Report Sexual Harassment: Individuals are encouraged to report allegations of sexual harassment to the Title IX Coordinator or the Principal, but any District employee who receives a report of sexual harassment will respond to the report as outlined below.

1.Internal Reporting: Any District employee who receives a report of sexual harassment shall respond by promptly informing the Principal or Title IX Coordinator of the report. Any District employee who observes sexual harassment of a student should intervene to stop the conduct and shall promptly inform the Principal or Title IX Coordinator of the incident. If a report involves an allegation against the Principal or Title IX Coordinator, the District employee shall instead report the allegation to the Superintendent.

Any Principal who receives a report of sexual harassment shall promptly inform the relevant Title IX Coordinator of the report.

• District's Response to Report: The District will respond to all reports of sexual harassment promptly and equitably, and in a manner consistent with this Procedure and any other relevant District procedures and policies. Upon receipt of a report, the Title IX Coordinator shall:

(d) Promptly and confidentially contact the complainant to discuss the availability of supportive measures;

(e) Inform the complainant of the availability of supportive measures with or without the filing of a Title IX Formal Complaint;

(f) Consider the complainant's wishes with respect to supportive measures;

(g) If the District does not provide the complainant with supportive measures, document the reasons why such response was reasonable; and

(h) Explain to the complainant the process for filing a Title IX Formal Complaint.

4. FILING A TITLE IX FORMAL COMPLAINT

Only the filing of a Title IX Formal Complaint will trigger the Title IX Formal Complaint grievance process, outlined below.

(i) Who may file a Title IX Formal Complaint: Although anyone may report sexual harassment, only a complainant or a Title IX Coordinator may file a Title IX Formal Complaint. If a complainant chooses not to file a Formal Complaint, the complainant's choice to not initiate an investigation will generally be respected, unless the Title IX Coordinator determines that signing a Formal Complaint to initiate an investigation over the wishes of the complainant is not clearly unreasonable in light of the known circumstances. The Title IX Coordinator will take into account concerns articulated by the parties, the best interests of the community, fairness to all concerned, and the District's legal obligations under applicable state and federal laws. Where the Title IX Coordinator signs the Formal Complaint, the Title IX Coordinator is not a complainant or a party during the grievance process and must comply with the requirement to be free from conflicts or bias.

29 Processing of a Title IX Formal Complaint: Title IX Formal Complaints will be investigated promptly and equitably by the Title IX Coordinator or designee, as follows:

Step 1: Title IX Formal Complaint is filed:

32 A Formal Complaint shall state (if known to the reporter or alleged victim) the name(s) of the persons involved, witnesses to the conduct, if any, a description of the conduct, and to the extent possible, the dates and locations of the conduct. A Formal Complaint will not be dismissed solely because it was not completely filled out or it was filled out incorrectly.

33 A Formal Complaint may be filed at any time, including during non-business hours. Formal Complaints submitted outside of normal business hours will be deemed received on the following school working day.

34 At the time of the filing of the Formal Complaint, the alleged victim must be participating in or attempting to participate in the education program or activity of the school district with which the Formal Complaint is filed.

35 A Formal Complaint may be filed with the Title IX Coordinator in person, by mail, or by electronic mail, by using the contact information for the Title IX Coordinator listed in this Procedure, and by any additional method designated by the school.

36 Consolidation of Formal Complaints: Schools may consolidate Formal Complaints where the allegations arise out of the same facts.

37 Consideration of the use of the Informal Resolution Process with the consent of the parties. See Section II(D).

38 Throughout this process, there shall be a presumption that the respondent is not responsible for the alleged conduct until a determination regarding responsibility is made at the conclusion of the grievance process.

Step 2: Consideration of Supportive Measures for both the Complainant and Respondent: Once a Formal Complaint is filed, the Title IX Coordinator will ensure that supportive measures are considered for both parties. See Section I(D).

Step 3: Written Notice of Allegations: Upon receipt of a Formal Complaint, the District shall send written notice of the allegations, including the identity of the parties, to both the complainant and the respondent, if their identities are known. The written notice must include: (1) a statement prohibiting knowingly submitting false information; (2) sufficient details known at the time to allow the respondent the opportunity to respond to the allegations; (3) a statement that the respondent is presumed not responsible for the alleged conduct; (4) that a determination regarding responsibility is made at the conclusion of the grievance process; (5) that the parties may have an advisor of their choice and at their own expense, who may be, but is not required to be, an attorney; and (6) that the parties/advisors may inspect and review evidence in accordance with this Procedure. If, in the course of the investigation, the District decides to investigate allegations of sexual harassment that are not included in the initial written notice of allegations, the District shall provide notice of the additional allegations to the parties whose identities are known.

Step 4: Consider Whether Dismissal of Formal Complaint Warranted: Some Formal Complaints will be subject to mandatory or discretionary dismissal under Title IX.

- Mandatory Dismissal of Formal Complaint: The Title IX Coordinator shall dismiss a Formal Complaint under Title IX when the conduct alleged:
- even if proved, would not meet the definition of sexual harassment under Title IX;
- did not occur in an education program or activity of the District; or
- did not occur against a person in the United States.

(vii) Discretionary Dismissal of Formal Complaint: The Title IX Coordinator may dismiss a Formal Complaint or allegations therein for purposes of Title IX at any time if:

a. the complainant informs the Title IX Coordinator in writing that the complainant desires to withdraw the Formal Complaint or allegations;

- the respondent is no longer enrolled in or employed by the District; or

4. specific circumstances prevent the District from gathering sufficient evidence to make a determination.

F. The Title IX Coordinator must provide the parties with written notice of any dismissal of a Formal Complaint, the reasons for the dismissal, and of their right to appeal.

G. Dismissal of a Formal Complaint for purposes of Title IX shall not preclude the District from addressing the allegations under any other relevant District policies or procedure(s), including but not limited to, the Civil Rights Grievance Procedure, the Bullying Prevention and Intervention Plan, the Student Code of Conduct, and/or a collective bargaining agreement or employment contract. The Title IX Coordinator shall have the discretion to make any such referrals and proceed as appropriate in regard to the allegations.

Step 5: Initial Investigation: All Formal Complaints will be investigated by the Title IX Coordinator or other individual(s) designated to serve as the investigator by the Title IX Coordinator. The investigator shall be responsible for seeking and gathering evidence relative to the investigation. Any Formal Complaint against an employee who holds a supervisory position shall be investigated by a person who is not subject to that supervisor's authority. During the Formal Complaint resolution process:

(v) Standard of Proof: The investigator shall make factual findings based on a preponderance of the relevant evidence standard.

(vi) The burden for gathering evidence and the burden of proof remains on the District, not on the parties.

(vii) The District shall provide equal opportunity for the parties to present fact and expert witnesses and other inculpatory and exculpatory evidence.

(viii) The District shall not restrict the ability of the parties to discuss the allegations or gather evidence (e.g., no "gag" orders).

(ix) Each party may have one (1) advisor of their own selection and at their own expense participate in this grievance process. In the case of a student under the age of 18, this advisor may be in addition to the student's parents/guardians. Any restrictions on the participation of an advisor will be applied equally to each party. The advisor may, but is not required to, be an attorney. Any evidence received by an advisor in this process is subject to confidentiality and may be used only for the purpose of the grievance process. Advisors are prohibited from disseminating or disclosing such evidence outside of the grievance process.

(x) The District shall send prior written notice to the parties of any investigative interviews, meetings, or hearings in which their participation is invited or expected.

(xi) The District may not access or use either the complainant's or the respondent's medical, psychological, or similar treatment records unless the District obtains the party's informed written consent to do so.

(xii) The investigator may impose reasonable timeframes on all parties as required to facilitate the timely completion of the investigation. The investigator may extend any of the timeframes beyond the time periods identified in this Procedure for good cause. If a complaint or report of sexual harassment is received within three (3) weeks of the end of the academic school year, the investigator will attempt to complete the investigation by the end of the school year. In the event that the investigation extends beyond the last day of school, the District will make reasonable efforts to complete the investigation within the applicable time frames, but may extend the investigation period to account for the unavailability of witnesses while school is not in session. If the investigator extends the investigation, the investigator will notify the parties of the extension and the reasons therefore in writing.

Step 6: Opportunity for Parties to Respond to Evidence: The District must send the parties, and their advisor(s) (if they have one) evidence directly related to the allegation(s), in electronic format or hard copy. Parties shall be afforded ten (10) calendar days to inspect, review and respond to the evidence prior to the issuance of the final Investigative Report. The District shall not require, allow, rely upon, or otherwise use evidence that constitutes information protected from disclosure by a legally recognized privilege, unless it has been waived by the holder of the privilege.

11. Prior to providing evidence to the parties, the investigator may redact confidential information that is not directly related to the allegations or that is otherwise barred from use under Title IX or by privilege (e.g., treatment records), the Family Educational Rights and Privacy Act and/or 603 CMR 23.00. Information that is directly related to the investigation, and that is not expressly barred from disclosure under Title IX (e.g., treatment records), the Family Educational Rights and Privacy Act, and/or 603 CMR 23.00, must be made available for review by both parties.

12. The parties and their advisors shall be prohibited from disseminating any of the evidence for any purpose not directly related to this grievance procedure.

Step 7: Completion of the Investigative Report: The District must send the parties, and their advisor, an Investigative Report that fairly summarizes the relevant evidence but does not reach any conclusions regarding responsibility, in electronic format or hard copy, within twenty-five (25) school days of receipt of the Formal Complaint, unless otherwise extended for good cause. A copy of the Investigative Report will also be sent to the decision-maker.

Step 8: Parties' Opportunity to Respond to Investigative Report: The District shall provide each party ten (10) calendar days for the parties to respond to the investigative report. The Investigative Report will notify the parties of the opportunity to submit to the decision-maker directed written questions of the other party and/or any witness within that same ten (10) calendar days.

Step 9: Directed Written Questions from the Parties: After the Investigative Report has been sent to the parties, but prior to reaching a determination regarding responsibility, the decision-maker shall afford both the complainant and the respondent the opportunity to submit to the decision-maker written, relevant questions of the other party or any witness, provide the party with the other party's and/or witness's written responses to said written questions, if any, and allow for additional, limited follow-up questions from each party in writing. Questions that seek disclosure of information protected under a legally recognized privilege, the Family Educational Rights and Privacy Act, and/or 603 CMR 23.00 shall not be permitted, unless the person holding the privilege has waived the privilege.

X. The complainant shall be protected from answering questions about the complainant's prior sexual behavior unless such questions and evidence about the complainant's prior sexual behavior are offered to prove that someone other than the respondent committed the conduct alleged by the complainant, or if the questions and evidence concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent.

XI. Upon receipt of the Investigative Report, each party shall have ten (10) calendar days to submit directed relevant questions to the decision-maker in writing.

• All questions must be posed in a respectful manner (e.g., without profanity and without attacking a person's character or motivations).

3. Questions that are not relevant will be excluded, and the decision-maker shall explain to the party posing the question the reason(s) for excluding any question.

10. Upon receipt of the directed questions from the District, each party and witness shall have five (5) calendar days to respond to those questions in writing.

11. After receipt of the answers by the parties any follow-up questions by the parties shall be submitted to the decision-maker in writing within three (3) calendar days. The party or witness to whom any such follow up questions are forwarded by the decision-maker Shall be provided with three (3) calendar days to submit their response(s), if any.

12. Each party will be provided a copy of the other party's or witness's written answers.

Step 10: Determination of Responsibility/Findings of Fact by the Decision-Maker:

(3) The decision-maker shall issue a written determination regarding responsibility with a description of the procedural steps taken, findings of fact, conclusions about whether the alleged conduct occurred, rationale for the result as to each allegation, the range of disciplinary sanctions to which the respondent may be subject, whether remedies will be provided to the complainant, and procedures and bases for appeal. The decision-maker's written determination shall not be completed by the Title IX Coordinator or the investigator.

(4) Standard of Proof: The decision-maker shall make factual findings based on a preponderance of the relevant evidence standard.

(5) The decision-maker's findings shall be based on an objective review of all relevant evidence, inculpatory and exculpatory, and avoid credibility determinations based on a person's status as a complainant, respondent, or witness.

(6) The decision-maker shall not draw inferences about the determination of responsibility based solely on a party's failure or refusal to answer questions.

(7) The written determination shall be sent simultaneously to both parties and their advisor(s), if any.

(8) This determination shall be sent within twenty (20) school days of the issuance of the investigative report unless an extension is agreed upon by the parties or if the process is otherwise reasonably delayed. Except where the parties have agreed to an extension of the timeline or where the process is otherwise reasonably delayed, the written determination shall be issued within sixty (60) school days of receipt of the Formal Complaint.

(h) Remedies: If the decision-maker determines that sexual harassment has occurred, the District shall take steps to eliminate the harassing environment, which must include but need not be limited to providing remedies to a complainant that are designed to restore or preserve the complainant's equal access to the District's education programs and/or activities. These remedies may be the same individualized services as the supportive measures outlined in Section I(D) above and/or may consist of alternative interventions and/or punitive or disciplinary sanctions that burden the respondent.

• Discipline: Persons who engage in sexual harassment or retaliation may be subject to disciplinary action, including, but not limited to, reprimand, suspension, termination, expulsion (if applicable under M.G.L. c. 71, §§ 37H or 37H ½), or other sanctions as determined by the District, subject to applicable procedural requirements.

(f) Although the respondent may, in accordance with Title IX, be subject to emergency removal at any time, the respondent may not be subject to disciplinary sanctions for the misconduct defined under this Procedure until after this grievance process has been completed.

• Informal Process: Only after a Formal Complaint is filed may the District opt to offer and facilitate informal resolution options, such as mediation or restorative justice. Both parties must give voluntary, informed, written consent to attempt any offered informal resolution. Any informal resolution under this Procedure will be facilitated by trained personnel.

○ The informal resolution process is not available to resolve allegations that an employee sexually harassed a student.

○ The informal process is voluntary, and the alleged victim and/or respondent may terminate or decline any informal process at any time and resume the Formal Complaint grievance process.

○ The informal process shall not exceed thirty (30) calendar days.

Participation in the informal process will stay the timelines of the Formal Complaint process.

o Emergency Removal under Title IX: The District may remove a respondent on an emergency basis at any time provided that the District: (1) undertakes an individualized safety and risk analysis; (2) determines that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sexual harassment justifies removal and that there is no alternative to the respondent's emergency removal to mitigate the threat presented; and (3) provides the respondent with notice and the opportunity to challenge the decision immediately following the removal.

• Anonymous Reports: The District may be on notice of an allegation of sexual harassment through receipt of an anonymous report. In cases of anonymous reports, the District's obligation is to respond in a manner that is not clearly unreasonable in light of the known circumstances, and offer supportive measure that are consistent with any request for confidentiality. If an anonymous report is received without a disclosure of the complainant's identity, the District will be unable to provide the complainant supportive measures in response to that report. The District may in conformance with applicable state laws and regulations be required to report sexual harassment identified in an anonymous complaint to state and/or local authorities such as the Massachusetts Department of Children and Families in conformance with state statutes and regulations and/or take actions to protect the safety of the school community (contacting the police, for example) that may result in the identity of the reporting person being disclosed. Although the District shall respond to anonymous reports of sexual harassment in accordance with this Procedure, a Formal Complaint cannot be filed anonymously.

• Appeals: The complainant or respondent may appeal from a determination regarding responsibility and/or from the District's dismissal of a Formal Complaint or any allegations therein, only on the following bases:

10. procedural irregularity that affected the outcome of the matter;

11. newly discovered evidence that could affect the outcome of the matter; and/or

12. Title IX personnel had a conflict of interest or bias that affected the outcome of the matter.

An appeal may be made to the Superintendent or designee within five (5) calendar days after receiving the determination of responsibility or dismissal. The Superintendent will decide the appeal and issue a written decision thereon no later than thirty (30) calendar days of the date of receipt of the written appeal. In cases in which it has been determined that a respondent student is subject to long-term suspension as a result of a finding of sexual harassment in accordance with this Procedure, the respondent may elect to exercise their appeal under the disciplinary due process requirements applicable to the circumstances (e.g., M.G.L. c. 71, §§ 37H, 37H ½ or 37H ¾) in place of this appellate procedure. Appeals must be made in writing (email to **Patrick Daly, pdaly@nrpsk12.org**) to the Superintendent, North Reading Public Schools, 189 Park Street, North Reading, Massachusetts 01864.

Title IX Formal Complaint grievance process is deemed complete when either the time period for appeal has lapsed or upon the issuance of the Superintendent's decision on a timely filed appeal.

3. Recordkeeping: Records related to this Procedure will be maintained for a period of seven (7) years.

APPENDIX XIII Spencer-East Brookfield Public Schools Notification of Rights Under FERPA (Family Educational Rights and Privacy Act) and Massachusetts Student Records Regulations Notification of Rights under FERPA

The Family Educational Rights and Privacy Act (FERPA) and Massachusetts Student Records Regulations affords parents and students over 14 years of age ("eligible students") certain rights with respect to the student's education records.

These rights are:

(1) The right to inspect and review the student's education records. Access is generally provided within 10 days of the request. State law sets forth specific procedures prior to the release of records to a non-custodial parent (M.G.L. c. 71, §34H). Parents or eligible students should submit to the School principal [or appropriate school official] a written request that identifies the record(s) they wish to inspect. The School principal will make arrangements for access and notify the parent or eligible student of the time and place where the records may be inspected. Upon request, copies of any information contained in the student record will be furnished to the parent or eligible student, subject to a reasonable copying fee.

(2) The right to request the amendment of the student's education records that the parent or eligible student believes is inaccurate, misleading, or otherwise in violation of the student's privacy rights under FERPA or state law. Parents or eligible students who wish to ask the School to amend a record should write the School principal [or appropriate school official], clearly identify the part of the record they want changed, and specify why it should be amended. If the School decides not to amend the record as requested by the parent or eligible student, the School will notify the parent or eligible student of the decision and advise them of their right to a hearing regarding the request for amendment.

(3) The right to consent to disclosures of personally identifiable information contained in the student's education records, except to the extent that FERPA and state law authorize disclosure without consent. (4) The right to file a complaint with the U.S. Department of Education concerning alleged failures by the school district to comply with these legal requirements. Complaints may be filed with the Massachusetts Department of Elementary and Secondary Education (DESE), 75 Pleasant St., Malden, MA 02148 and/or the Family Policy Compliance Office, U.S. Department of Education, 400 Maryland Ave., SW, Washington, DC 20202- 5901.

FERPA Directory Information Notice

The Family Educational Rights and Privacy Act (FERPA), a Federal law, requires that East Bridgewater Public Schools, with certain exceptions, obtain your written consent prior to the disclosure of personally identifiable information from your child's education records.

However, the SEBRPS may disclose appropriately designated "directory information" without written consent, unless you have advised the District to the contrary in accordance with District procedures. The primary purpose of directory information is to allow the district to include this type of information from your child's education records in certain school publications. Examples include: A playbill, showing your student's role in a drama production; the annual yearbook; honor roll or other recognition lists; graduation programs; and sports programs/sheets, such as for wrestling, showing weight and height of team members.

Directory information, which is information that is generally not considered harmful or an invasion of privacy if released, can also be disclosed to outside organizations without a parent's prior written consent. Outside organizations include, but are not limited to, companies that manufacture class rings or publish yearbooks. In addition, two federal laws require local educational agencies (LEAs) receiving assistance under the Elementary and Secondary Education Act of 1965 (ESEA) to provide military recruiters, upon request, with three directory information categories—names, addresses and telephone listings—unless parents have advised the LEA that they do not want their student's information disclosed without their prior written consent.

If you do not want SEBRPS to disclose directory information from your child's education records without your prior written consent, you must notify your school principal in writing. The following has been designated as directory information: Student's name, participation in officially recognized activities and sports, address, telephone listing, weight and height of members of athletic teams, electronic mail address, photograph and video image, degrees, honors, and awards received, date and place of birth, major field of study, dates of attendance, grade level, and post-high school plans.

APPENDIX XIV NOTICE OF PARENT AND STUDENT RIGHTS UNDER SECTION 504: THE REHABILITATION ACT OF 1973

The Rehabilitation Act of 1973, commonly referred to as "Section 504," is a nondiscrimination statute enacted by the United States Congress. One purpose of the Act is to prohibit discrimination and to assure that disabled students have educational opportunities and benefits equal to those provided to non-disabled students. An eligible student under Section 504 is a student who (a) currently has, or (b) has a record of having, or (c) is regarded as having a physical or mental impairment which substantially limits a major life activity such as learning, self-care, walking, seeing, hearing, speaking, breathing,working or performing manual tasks.

DUAL ELIGIBILITY: Many students will be eligible for educational services under both Section 504 and the Individuals with Disabilities Education Act (IDEA/PL 94-142). Students who are eligible under the IDEA/PL 94-142 have many specific rights that are not available to students who are eligible solely under Section 504. It is the purpose of this notice form to set out the rights assured by Section 504 to those disabled students who do not qualify under the IDEA/PL 94-142.

The enabling regulations for Section 504 as set out in 34 CFR 104 provide parents and/or students with the following rights:
1. You have a right to be informed by the school district of your rights under Section 504. (The Purpose of this notice form is to advise you of those rights). 34 CFR 104.32.

2. Your child has the right to a free appropriate public education designed to meet his/her individual educational needs as adequately as the needs of non-disabled students are met. 34 CFR 104.33.

3. Your child has the right to free educational services except for those fees that are imposed on non-disabled students or their parents. Insurers and similar third parties are not relieved from an otherwise valid obligation to provide or pay for services provided to a disabled student. 34 CFR 104.33.

4. Your child has a right to placement in the least restrictive environment. 34 CFR 104.34.

5. Your child has a right to facilities, services and activities that are comparable to those provided for non-disabled students. 34 CFR 104.34.

6. Your child has a right to an evaluation prior to an Initial Section 504 placement and any subsequent significant change in placement. 34 CFR 104.35.

7. Testing and other evaluation procedures must conform with the requirements of 34 CFR 104.35 as to validation, administration, areas of evaluation, etc. The district shall consider, as appropriate, information from a variety of sources, including aptitude and achievement tests, teacher recommendations, physical condition, social and cultural background, adaptive behavior, physical or medical reports, student grades, progress reports, parent observations, anecdotal reports, and other sources. 34 CFR 104.35.

8. Placement decisions must be made by a group of persons (i.e., the Section 504 Committee), including persons knowledgeable about your child, the meaning of the evaluation data, the placement options, and the legal requirements for least restrictive environment and comparable facilities. 34 CFR 104.35.

9. If eligible under Section 504, your child has a right to a periodic formal or informal re- evaluation, generally every three years. 34 CFR 104.35.

10. You have the right to notice prior to any action by the district in regard to the identification, evaluation, or placement of your child. 34 CFR 104.36.

11. You have the right to examine relevant records. 34 CFR 104.36.

12. On Section 504 matters you have a right to file a complaint with the district's Section 504Coordinator (or designee), who will investigate the allegations to the extent warranted by the nature of the complaint in an effort to reach a prompt and equitable resolution.

13. If you wish to challenge the actions of the district's Section 504 Committee in regard to your child's identification, evaluation, or educational placement, you should file a written Notice of Appeal with the district's Section 504 Coordinator after you receive written notice of the Section 504 Committee's action(s).

14. You may also request a hearing directly with the Massachusetts Bureau of Special Education Appeals in Malden. Specifically, you have the right to an impartial hearing with respect to the district's actions regarding your child's identification, evaluation, or educational placement, with opportunity for parental participation in the hearing and representation by an attorney. 34 CFR 104.36.

15. If you disagree with the decision of the impartial hearing officer, you have a right to a review of that decision by a court of competent jurisdiction. 34 CFR 104.36.

16. You also have a right to file a complaint with the Office for Civil Rights. The address of the Regional Office which covers Massachusetts is:
Office for Civil Rights, Region 1
U.S. Department of Education
5 Post Office Square, Suite 900, 8th Floor
Boston, MA 02109-3921
Telephone: (617) 289-0111
Fax: (617) 289-0150

Special Education DISCIPLINE

All students are expected to meet the requirements for behavior set forth in the student handbook. However, students eligible for special education are entitled to certain additional protections under state and federal law. Specifically, these laws include M.G.L. c. 71B and its implementing regulations (603 CMR 28.00) and 20 USC 1401 et.seq. ("the IDEA") and its implementing regulations (34 CFR 300 et. seq.).
Students eligible for special education who violate school rules are subject to removal from their current educational placement for up to ten school days per school year, to the extent that such removal would be applied to students without disabilities, without prior determination as to whether the misconduct is related to the student's disability.

Anytime school personnel seek to remove a student from his or her current educational placement for more than ten school days in a school year, **this constitutes a "change of placement"** and invokes certain procedural rights including but not limited to a review by the IEP TEAM of the relationship between the student's disability and the behavior subject to the disciplinary action, which is referred to as a **Manifestation Determination (See Appendix R).**

If the behavior is a manifestation of the student's disability the student's TEAM will conduct a Functional Behavior Assessment and develop a Behavior Support Plan, provided that such an assessment was not already conducted before the behavior occurred. In the situation where an assessment was already conducted and a Behavior Support Plan is already in place, the TEAM will review the plan and revise it accordingly. **The student will also be returned to his educational placement unless the parent and the school agree otherwise.**

If the behavior is not a manifestation of the student's disability, then the student may be removed from his educational placement to the same extent that a regular education student would be removed. The special education student must continue to receive his special education services in order to participate in the general education curriculum although in another setting, and to continue to progress toward meeting the goals set out in the student's IEP. Additionally, the student should receive, as appropriate, a Functional Behavioral Assessment and Behavior Support Plan to prevent the behavior from happening again.

There are certain situations in which school personnel may order a change in placement of a special education student without regard to whether the student's behavior is determined to be a manifestation of the student's disability. These situations include when a special education student:
- Carries or possesses a weapon to or at school, on school premises, or to or at a school function under the jurisdiction of a State or local educational agency
- Knowingly possesses or uses illegal drugs, or sells or solicits the sale of a controlled substance, while at school, on school premises, or at a school function under the jurisdiction of a State or local educational agency; or
- Has inflicted serious bodily injury upon another person while at school, on school premises, or at a school function under the jurisdiction of a state or local educational agency.

In these situations, school personnel may remove the special education student to an appropriate Interim Alternative Educational Setting (IAES) for not more than forty- five (45) school days without regard to whether the student's behavior is determined to be a manifestation of the student's disability. If a special education student commits an offense which causes the student to be expelled from school, the school district continues to be responsible for providing the student with a free appropriate public education in another educational setting.

For more information regarding the rights of special education students see the Massachusetts Department of Education's Procedural Safeguards Notice, which is available in many languages, at http://www.doe.mass.edu/sped/prb/. Additionally, copies of the state and federal special education laws are available online at the Massachusetts Bureau of Special Education Appeals website, at http://www.doe.mass.echi/bsea/or can be requested from the Director of Special Education at (508) 261-7507.

Discipline of Students Not Yet Eligible for Special Education

A student who has not been determined to be eligible for special education and related services and who has engaged in behavior that violates a code of student conduct, may assert any of the protections provided for special education students if the school had knowledge (as determined by the IDEA) that the student was a student with a disability before the behavior that precipitated the disciplinary action occurred.

The school district may be considered to have prior knowledge if, before the behavior that resulted in the disciplinary action occurred:

(j) The parent of the student expressed concern in writing to supervisory or administrative personnel of the student's school or to a teacher of the student that the student is in need of special education and related services; or

(k) The parent requested an evaluation of the student; or

(l) District staff expressed, directly to the special education director or other supervisory personnel, specific concerns about a pattern of behavior demonstrated by the student.

The district may not be deemed to have had knowledge if the parent has not consented to an evaluation of the student or has refused special education services, or if an evaluation of the student was completed and resulted in a determination of ineligibility.

If the district had no knowledge that the student is a student with a disability prior to taking disciplinary action, the student may be subjected to disciplinary measures applied to students without disabilities. However, if an evaluation is requested during the time period in which the student is subjected to these disciplinary measures, the district must conduct the evaluation in an expedited manner. Until the evaluation is completed, the student remains in the educational placement determined by the district, which can include suspension or expulsion without educational services. If, after the evaluation, the student is determined to be eligible the district must provide special education and related services in accordance with the IDEA.